ZAKON[1]
O RATIFIKACIJI KONVENCIJE O PRIVREMENOM UVOZU

član 1

Ratifikuje se Konvencija o privremenom uvozu, sačinjena 26. juna 1990. godine u Istanbulu, u originalu na engleskom i francuskom jeziku.

član 2

Tekst Konvencije o privremenom uvozu u originalu na engleskom jeziku i u prevodu na crnogorski jezik glasi:

CONVENTION ON TEMPORARY ADMISSION

PREAMBLE

THE CONTRACTING PARTIES to this Convention, established under the auspices of the Customs Co-operation Council

NOTING that the present situation regarding the proliferation and dispersed nature of international Customs Conventions on temporary admissions is unsatisfactory,

CONSIDERING that the situation could worsen in the future when new categories of temporary admission need to be regulated internationally,

HAVING REGARD to the wishes of trade representatives and other interested parties, to the effect that the accomplishment of temporary admission formalities be facilitated,

CONSIDERING that the simplification and harmonization of Customs procedures and, in particular, the adoption of a single international instrument combining all existing Conventions on temporary admission can facilitate access to international provisions governing temporary admission and effectively contribute to the development of international trade and of other international exchange,

CONVINCED that an international instrument proposing uniform provisions in respect of temporary admission can bring substantial benefits for international exchanges and ensure a high degree of simplification and harmonization of Customs procedures, which is one of the essential aims of the Customs Co-operation Council,

RESOLVED to facilitate temporary admission by simplifying and harmonizing procedures, in pursuit of economic, humanitarian,

[1] Ovaj zakon je objavljen u Službenom listu Crne Gore, Međunarodni ugovori, broj 3/2008.

cultural, social or touring objectives,

CONSIDERING that the adoption of standardized model temporary admission papers as international Customs documents with international security contributes to facilitating the temporary admission procedure where a Customs document and security are required,

HAVE AGREED as follows :

CHAPTER I

General provisions

Definitions

Article 1

For the purposes of this Convention, the term :

a) "temporary admission" means :

the Customs procedure under which certain goods (including means of transport) can be brought into a Customs territory conditionally relieved from payment of import duties and taxes and without application of import prohibitions or restrictions of economic character; such goods (including means of transport) must be imported for a specific purpose and must be intended for re-exportation within a specified period and without having undergone any change except normal depreciation due to the use made of them ;

b) "import duties and taxes" means :

Customs duties and all other duties, taxes, fees or other charges which are collected on or in connection with the importation of goods (including means of transport), but not including fees and charges which are limited in amount to the approximate cost of services rendered ;

c) "security" means :

that which ensures to the satisfaction of the Customs that an obligation to the Customs will be fulfilled. Security is described as "general" when it ensures that the obligations arising from several operations will be fulfilled;

d) "temporary admission papers" means :

the international Customs document accepted as a Customs declaration which makes it possible to identify goods (including means of transport) and which incorporates an internationally valid guarantee to cover import duties and taxes ;

e) "Customs of Economic Union" means :

a Union constituted by, and composed of Members, as referred to in Article 24, paragraph 1, of this Convention, which has competence to adopt its own legislation that is binding on its Members, in respect of matters

governed by this Convention, and has competence to decide, in accordance with its internal procedures, to sign, ratify or accede to this Convention;

f) "person" means :

both natural and legal persons, unless the context otherwise requires;

g) "the Council" means :

the Organization set up by the Convention establishing a Customs Co-operation Council, Brussels, 15 December 1950;

h) "ratification" means :

ratification, acceptance or approval.

CHAPTER II

Scope of the Convention

Article 2

1. Each Contracting Party undertakes to grant temporary admission, in accordance with the provisions of this Convention, to the goods (including means of transport) specified in the Annexes to this Convention.

2. Without prejudice to the provisions of Annex E, temporary admission shall be granted with total conditional relief from import duties and taxes and without application of import restrictions or prohibitions of economic character.

Structure of the Annexes

Article 3

Each Annex to this Convention consists, in principle, of :

a) definitions of the main Customs terms used in the Annex;

b) special provisions applicable to the goods (including means of transport) which form the subject of the Annex

CHAPTER III

Special provisions

Document and security

Article 4

1. Unless otherwise provided for in an Annex, each Contracting Party shall have the right to make the temporary admission of goods (including means of transport) subject to the production of a Customs document and provision of security.

2. Where (under paragraph 1 above) security is required, persons who regularly use the temporary admission procedure may be authorized to provide general security.

3. Unless otherwise provided for in an Annex, the amount of security shall not exceed the amount of the import duties and taxes from which the goods (including means of transport) are conditionally relieved .

4. For goods (including means of transport) subject to import prohibitions or restrictions under national legislation, an additional security may be required under the provisions laid down in national legislation.

Temporary admission papers

Article 5

Without prejudice to temporary admission operations under the provisions of Annex E, each Contracting Party shall accept, in lieu of its national Customs documents and as due security for the sums referred to in Article 8 of Annex A, temporary admission papers valid for its territory and issued and used in accordance with the conditions laid down in that Annex for goods (including means of transport) temporarily imported under the other Annexes to this Convention which it has accepted.

Identification

Article 6

Each Contracting Party may make the temporary admission of goods (including means of transport) subject to the condition that they be identifiable when temporary admission is terminated.

Period for re-exportation

Article 7

1. Goods (including means of transport) granted temporary admission shall be re-exported within a given period considered sufficient to achieve the object of temporary admission. Such a period is laid down separately in each Annex.

2. The Customs authorities may either grant a longer period than that provided for in each Annex, or extend the initial period.

3. When the goods (including means of transport) granted temporary admission cannot be re-exported as a result of a seizure other than a seizure made at the suit of private persons, the requirement of re-exportation shall be suspended for the duration of the seizure.

Transfer of temporary admission

Article 8

Each Contracting Party may, on request, authorize the transfer of the benefit of the temporary admission procedure to any other person, provided that such other person :

a) satisfies the conditions laid down in this Convention; and

b) accepts the obligations of the first beneficiary of the temporary admission procedure.

Termination of temporary admission

Article 9

Temporary admission is normally terminated by re-exportation of the goods (including means of transport) granted temporary admission.

Article 10

Temporarily admitted goods (including means of transport) may be re-exported in one or more consignments.

Article 11

Temporarily admitted goods (including means of transport) may be re-exported through a Customs office other than that through which they were imported.

Other possible cases of termination

Article 12

Temporary admission may be terminated with the agreement of the competent authorities, by placing the goods (including means of transport) in a free port or free zone, in a Customs warehouse or under a Customs transit procedure with a view to their subsequent exportation or other authorized disposal.

Article 13

Temporary admission may be terminated by clearance for home use , when circumstances justify and national legislation

so permits, subject to compliance with the conditions and formalities applicable in such case.

Article 14

1. Temporary admission may be terminated where goods (including means of transport) have been seriously damaged by accident or force majeure and are, as the Customs authorities may decide :

a) subjected to the import duties and taxes to which they are liable at the time when they are presented to the Customs in their damaged condition for the purpose of terminating temporary admission;

b) Abandoned, free of all expense, to the competent authorities of the territory of temporary admission, in which case the person benefiting from temporary admission shall be free of payment of import duties and taxes; or

c) destroyed, under official supervision, at the expense of the parties concerned any parts or materials salvaged being subjected, if cleared for home use, to the import duties and taxes to which they are liable at the time when, and in the condition in which they are presented to the Customs after accident or force majeure.

2. Temporary admission may also be terminated where, at the request of the person concerned, the goods (including means of transport) are disposed of in one of the ways provided for in paragraph 1 (b) or (c) above, as the Customs authorities may decide.

3. Temporary admission may also be terminated at the request of the person concerned where that person satisfies the Customs authorities of the destruction or total loss of the goods (including means of transport) by accident or force majeure. In that case, the person benefiting from temporary admission shall be free of payment of import duties and taxes.

CHAPTER IV

Miscellaneous provisions

Reduction of formalities

Article 15

Each Contracting Party shall reduce to a minimum the Customs formalities required in connection with the facilities provided for in this Convention. All regulations concerning such formalities shall be promptly published.

Prior authorization

Article 16

1. When temporary admission is subject to prior authorization, this shall be granted by the competent Customs office as soon as possible.

2. When, in exceptional cases, non-Customs authorization is required, this shall be granted as soon as possible.

Minimum facilities

Article 17

The provisions of this Convention set out the minimum facilities to be accorded. They do not prevent the application of greater facilities which Contracting Parties grant or may grant in future by unilateral provisions or by virtue of bilateral or multilateral agreements.

Customs or Economic Unions

Article 18

1. For the purpose of this Convention, the territories of Contracting Parties which form a Customs or Economic Union may be taken to be a single territory .

2. Nothing in this Convention shall prevent Contracting Parties which form a Customs or Economic Union from enacting special provisions applicable to temporary admission operations in the territory of that Union, provided those provisions do not reduce the facilities provided for by this Convention.

Prohibitions and restrictions

Article 19

The provisions of this Convention shall not preclude the application of prohibitions or restrictions imposed under national laws and regulations on the basis of non-economic considerations such as considerations of public morality or order, public security and public hygiene or health, veterinary or phytosanitary considerations, considerations relating to the protection of endangered species of wild fauna and flora, or considerations relating to the protection of copyright and industrial property.

Offences

Article 20

1. Any breach of the provisions of this Convention shall render the offender liable in the territory of the Contracting Party where the offence was committed to the penalties prescribed by the legislation of that Contracting Party.

2. When it is not possible to establish in which territory an irregularity occurred, it shall be deemed to have been committed in the territory of the Contracting Party where it is detected.

Exchange of information

Article 21

The Contracting Parties shall communicate to one another, on request and to the extent allowed by national legislation, information necessary for implementing the provisions of this Convention.

CHAPTER V

Final provisions

Administrative Committee

Article 22

1. There shall be established an Administrative Committee to consider the implementation of this Convention, any measures to secure uniformity in the interpretation and application thereof, and any amendments proposed thereto. The Administrative Committee shall decide upon the incorporation of new Annexes to this Convention.

2. The Contracting Parties shall be members of the Administrative Committee. The Committee may decide that the competent administration of any Member, State or Customs territory referred to in Article 24 of this Convention which are not Contracting Parties, or representatives of international organizations may, for questions which interest them, attend the sessions of the Committee as observers .

3. The Council shall provide the Committee with Secretariat services .

4. The Committee shall, on the occasion of every session, elect a Chairman and a Vice-Chairman.

5. The competent administrations of the Contracting Parties shall communicate to the Council proposals for amendments to this Convention and the reasons therefore, together with any requests for the inclusion of items on the Agenda of the sessions of the Committee. The Council shall bring them to the attention of the competent administrations of the Contracting Parties and of the Members, States or Customs territories referred to in Article 24 of this Convention which are not Contracting Parties .

6. The Council shall convene the Committee at a time fixed by the Committee and also at the request of the competent administrations of at least two Contracting Parties. It shall circulate the draft Agenda to the competent administrations of the Contracting Parties and of the Members, States or Customs territories referred to in Article 24 of this Convention which are not Contracting Parties, at least six weeks before the Committee meets.

7. On the decision of the Committee, taken by virtue for the provisions of paragraph 2 of this Article, the Council shall invite the competent administrations of the Members, States or Customs territories referred to in Article 24 of this Convention which are not Contracting Parties and the international organizations concerned to be represented by observers at the sessions of the Committee.

8. Proposals shall be put to the vote. Each Contracting Party represented at the meeting shall have one vote. Proposals other than proposals for amendments to this Convention shall be adopted by the Committee by a majority of Members present and voting. Proposals for amendments to this Convention shall be adopted by a two-thirds majority of Members present and voting .

9. Where Article 24, paragraph 7 of this Convention applies, the Customs or Economic Unions Parties to this Convention shall have, in case of voting, only a number of votes equal to the total votes allotted to their Members which are Contracting Parties to this Convention .

10. Before the closure of its session, the Committee shall adopt a report.

11. In the absence of relevant provisions in this Article, the Rules of Procedure of the Council shall be applicable unless the Committee decides otherwise.

Settlement of disputes

Article 23

1. Any dispute between two or more Contracting Parties concerning the interpretation or application of this Convention shall so far as possible be settled by negotiation between them .

2. Any dispute which is not settled by negotiation shall be referred by the Contracting Parties in dispute to the Administrative Committee which shall thereupon consider the dispute and make recommendations for its settlement.

3. The Contracting Parties in dispute may agree in advance to accept the recommendations of the Administrative Committee as binding.

Signature, ratification and accession

Article 24

1. Any Member of the Council and any Member of the United Nations or its specialized agencies may become a Contracting Party to this Convention :

   (a) by signing it without reservation of ratification;

   (b) by depositing an instrument of ratification after signing it subject to ratification; or

   (c) by acceding to it.

2. This Convention shall be open for signature by the Members referred to in paragraph 1 of this Article, either at the Council Sessions at which it is adopted, or, thereafter at the Headquarters of the Council in Brussels until 30 June 1991. After that date, it shall be open for accession by such Members.

3. Any State, or Government of any separate Customs territory which is proposed by a Contracting Party having responsibility for the formal conduct of its diplomatic relations but which is autonomous in the conduct of its commercial relations, not being a Member of the Organizations referred to in paragraph 1 of this Article, to which an invitation to that effect has been addressed by the depositary at the request of the Administrative Committee,

may become a Contracting Party to this Convention by acceding thereto after its entry into force .

4. Any Member, State or Customs territory referred to in paragraph 1 or 3 of this Article shall at the time of signing without reservation of ratification, ratifying or acceding to this Convention specify the Annexes it accepts, it being necessary to accept Annex A and at least one other Annex . It may subsequently notify the depositary that it accepts one or more further Annexes.

5. Contracting Parties accepting any new Annex which the Administrative Committee decides to incorporate in this Convention shall notify the depositary in accordance with paragraph 4 of this Article.

6. Contracting Parties shall communicate to the depositary the conditions of application of or the information required under Article 8 and Article 24, paragraph 7 of this Convention; Annex A, Article 2, paragraphs 2 and 3; Annex E, Article 4. They shall also communicate any changes in the application of those provisions.

7. Any Customs or Economic Union may become, in accordance with paragraphs 1, 2 and 4 of this Article, a Contracting Party to this Convention. Such Customs or Economic Union shall inform the depositary of its competence with respect to the matters governed by this Convention. The Customs or Economic Union which is a Contracting Party to this Convention shall, for the matters within its competence, exercise in its own name the rights, and fulfil the responsibilities, which this Convention confers on its Members which are Contracting Parties to this Convention. In such case, these Members shall not be entitled to individually exercise these rights, including the right to vote .

Depositary

Article 25

1. This Convention, all signatures with or without reservation of ratification and all instruments of ratification or ratification or accession shall be deposited with the Secretary General of the Council .

2. The depositary shall :

(a) receive and keep custody of the original texts of this Convention;

(b) prepare certified copies of the original texts of this Convention and transmit them to the Members and the Customs or Economic Unions referred to in Article 24, paragraphs 1 and 7, of this Convention;

(c) receive any signature with or without reservation of ratification, ratification or accession to this Convention and receive and keep custody of any instruments, notifications and communications relating to it;

(d) examine whether the signature or any instrument, notification or communication relating to this Convention is in due and proper form and, of need be, bring the matter to the attention of the Contracting Party in question;

(e) notify the Contracting Parties to this Convention, the other signatories, those Members of the Council that are

not Contracting Parties to this Convention, and the Secretary General of the United Nations of;

signatures, ratifications, accessions and acceptances of Annexes under Article 24 of this Convention;

new Annexes which the Administrative Committee decides to incorporate in this Convention;

the date of entry into force of this Convention and of each of the Annexes in accordance with Article 26 of this Convention;

notifications received in accordance with Articles 24, 29, 30 and 32 of this Convention;

denunciations under Article 31 of this Convention;

any amendment deemed to have been accepted in accordance with Article 32 of this Convention and the date of its entry into force.

3. In the event of any difference appearing between a Contracting Party and the depositary as to the performance of the latter's functions, the depositary or that Contracting Party shall bring the question to the attention of the other Contracting Parties and the signatories or, where appropriate, to the Council.

Entry into force

Article 26

1. This Convention shall enter into force three months after five of the Members or Customs or Economic Unions referred to in Article 24, paragraphs 1 and 7, of this Convention have signed this Convention without reservation of ratification or have deposited their instruments of ratification or accession .

2. For any Contracting Party signing without reservation of ratification, ratifying or acceding to this Convention after five Members or Customs or Economic Unions have signed it without reservation of ratification or have deposited their instruments of ratification or accession, this Convention shall enter into force three months after the said Contracting Party has signed without reservation of ratification or deposited its instrument of ratification or accession.

3. Any Annex to this Convention shall enter into force three months after five Members or Customs or Economic Unions have accepted that Annex.

4. For any Contracting Party which accepts an Annex after five Members or Customs or Economic Unions have accepted it, that Annex shall enter into force three months after the said Contracting Party has notified its acceptance. No Annex shall, however, enter into force for a Contracting Party before this Convention has entered into force for that Contracting Party.

Rescinding provision

Article 27

Upon the entry into force of an Annex to this Convention containing a rescinding provision, that Annex shall terminate and replace the Conventions or the provisions of the Conventions which are the subject of the rescinding provision, in relations between the Contracting Parties which have accepted that Annex and are Contracting Parties to such Conventions .

Convention and Annexes

Article 28

1. For the purposes of this Convention, any Annexes to which a Contracting Party is bound shall be construed to be an integral part of this Convention, and in relation to that Contracting Party any reference to this Convention shall be deemed to include a reference to such Annexes .

2. For the purpose of voting in the Administrative Committee, each Annex shall be taken to be a separate Convention .

Reservations

Article 29

1. Any Contracting Party which accepts an Annex shall be deemed to accept all the provisions therein, unless at the time of accepting the Annex or any time thereafter it notifies the depositary of the provisions in respect of which it enters reservations, insofar as this possibility is provided for in the Annex concerned, stating the difference existing between the provisions of its national legislation and the provisions concerned.

2. Each Contracting Party shall at least once every five years review the provisions in respect of which it has entered reservations, compare them with the provisions of its national legislation and notify the depositary of the results of that review.

3. Any Contracting Party which has entered reservations may withdraw them, in whole or in part, at any time, by notification to the depositary specifying the date on which such withdrawal takes effect.

Territorial extension

Article 30

1. Any Contracting Party may, at the time of signing this Convention without reservation or ratification or of depositing its instrument of ratification or accession, or at any time thereafter , declare by notification given to the depositary that this Convention shall extend to all or any of the territories for whose international relations it is responsible. Such notification shall take effect three months after the date of the receipt thereof by the depositary. However, this Convention shall not apply to the territories named in the notification before this Convention has entered into force for the Contracting Party concerned.

2. Any Contracting Party which has made a notification under paragraph 1 of this Article extending this Convention to any territory for whose international relations it is responsible may notify the depositary, under the procedure of Article 31 of this Convention, that the territory in question will no longer apply this Convention.

Denunciation

Article 31

1. This Convention is of unlimited duration but any Contracting Party may denounce it at any time after the date of its entry into force under Article 26 of this Convention .

2. The denunciation shall be notified by an instrument in writing, deposited with the depositary.

3. The denunciation shall take effect six months after the receipt of the instrument of denunciation by the depositary.

4. The provisions of paragraphs 2 and 3 of this Article shall also apply in respect of the Annexes to this Convention, any Contracting Party being entitled, at any time after the date of their entry into force under Article 26 of this Convention, to withdraw its acceptance of one of more Annexes. Any Contracting Party which withdraws its acceptance of all the Annexes shall be deemed to have denounced this Convention. Furthermore, a Contracting Party which withdraws its acceptance of Annex A, even though it continues to accept other Annexes, shall be deemed to have denounced this Convention.

Amendment procedures

Article 32

1. The Administrative Committee, meeting in accordance with Article 22 of this Convention, may recommend amendments to this Convention and its Annexes .

2. The text of any amendment so recommended shall be communicated by the depositary to all Contracting Parties to this Convention, to the other signatories and to those Members of the Council that are not Contracting Parties to this Convention.

3. Any recommended amendment communicated in accordance with the preceding paragraph shall enter into force in respect of all Contracting Parties six months after the expiry of a period of twelve months following the date of communication of the recommended amendment if no objection to the recommended amendment has been notified during that period to the depositary by a Contracting Party .

4. If an objection to the recommended amendment has been notified to the depositary by a Contracting Party

before the expiry of the period of twelve months specified in paragraph 3 of this Article, the amendment shall be deemed not to have been accepted and shall have no effect whatsoever.

5. For the purposes of notifying an objections, each Annex shall be taken to be a separate Convention.

Acceptance of amendments

Article 33

1. Any Contracting Party which ratifies this Convention or accedes thereto shall be deemed to have accepted any amendments thereto which have entered into force at the date of deposit of its instrument of ratification or accession.

2. Any Contracting Party which accepts an Annex shall be deemed, unless it enters reservations under Article 29 of this Convention , to have accepted any amendments to that Annex which have entered into force at the date on which it notifies its acceptance to the depositary.

Registration and authentic texts

Article 34

In accordance with Article 102 of the Charter of the United Nations, this Convention shall be registered with the Secretariat of the United Nations, at the request of the depositary.

In witness whereof the undersigned, being duly authorized thereto, have signed this Convention.

Done at Istanbul this twenty-sixth day of June nineteen hundred and ninety, in a single original, in the English and French languages, both texts being equally authentic. The depositary is requested to prepare and circulate authoritative translations of this Convention in the Arabic, Chinese, Russian and Spanish languages .

ANNEX A

CONCERNING TEMPORARY ADMISSION PAPERS

(ATA CARNETS AND CPD CARNETS)

CHAPTER I

Definitions

Article 1

For the purpose of this Annex, the term

a) "temporary admission papers" means :

the international Customs document accepted as a Customs declaration which makes it possible to identify goods (including means of transport) and which incorporates an internationally valid guarantee to cover import duties and taxes ;

b) "ATA carnet" means :

the temporary admission papers used for the temporary admission of goods, excluding means of transport;

c) "CPD carnet" means :

the temporary admission papers used for the temporary admission of means of transport ;

d) "guaranteeing chain" means :

a guaranteeing scheme administered by an international organization to which guaranteeing associations are affiliated;

e) "international organization" means :

an organization to which national associations authorized to guarantee and issue temporary admission papers are affiliated;

f) "guaranteeing association" means :

an association approved by the Customs authorities of a Contracting Party to guarantee the sums referred to in Article 8 of this Annex, in the territory of that Contracting Party, and affiliated to a guaranteeing chain;

g) "issuing association" means :

an association approved by the Customs authorities to issue temporary admission papers and affiliated directly or indirectly to a guaranteeing chain ;

h) "corresponding issuing association" means :

an issuing association established in another Contracting Party and affiliated to the same guaranteeing chain;

i) "Customs transit" means :

the Customs procedure under which goods are transported under Customs control form one Customs office to

another.

CHAPTER II

Scope

Article 2

1. 1. In accordance with Article 5 of this Convention, each Contracting Party shall accept in lieu of its national Customs documents, and as due security for the sums referred to in Article 8 of this Annex, temporary admission papers valid for its territory and issued and used in accordance with the conditions laid down in this Annex for goods (including means of transport), temporarily imported under the other Annexes to this Convention which it has accepted.

2. 2. Each Contracting Party may also accept temporary admission papers, issued and used under the same conditions, for temporary admission operations under its national laws and regulations.

3. 3. Each Contracting Party may accept temporary admission papers, issued and used under the same conditions, for Customs transit.

4. Goods (including means of transport), intended to be processed or repaired shall not be imported under cover of temporary admission papers.

Article 3

1. Temporary admission papers shall correspond to the models set out in the Appendices to this Annex : Appendix I for ATA carnets, Appendix II for CPD carnets.

2. The Appendices to this Annex shall be construed to be an integral part of the Annex.

CHAPTER III

Guarantee and issue of temporary admission papers

Article 4

1. Subject to such conditions and guarantees as it shall determine, each Contracting Party may authorize guaranteeing associations to act as guarantors and to issue temporary admission papers, either directly or through issuing associations.

2. A guaranteeing association shall not be approved by any Contracting Party unless its guarantee covers the

liabilities incurred in that Contracting Party in connection with operations under cover of temporary admission papers issued by corresponding issuing associations.

Article 5

1. Issuing associations shall not issue temporary admission papers with a period of validity exceeding one year from the date of issue.

2. Any particulars inserted on temporary admission papers by the issuing associations may be altered only with the approval of the issuing or guaranteeing association. No alteration to those papers may be made after they have been accepted by the Customs authorities of the territory of temporary admission, except with the consent of those authorities.

3. Once an ATA carnet has been issued, no extra item shall be added to the list of goods enumerated on the reverse of the front cover of the carnet, or on any continuation sheets appended thereto (General list).

Article 6

The following particulars shall appear on the temporary admission papers :

- the name of the issuing association;
- the name of the international guaranteeing chain;
- the countries or Customs territories in which the temporary admission papers are valid; and
- the names of the guaranteeing associations of the countries or Customs territories in question.

Article 7

The period fixed for the re-exportation of goods (including means of transport) imported under cover of temporary admission papers shall not in any case exceed the period of validity of those papers.

CHAPTER IV

Guarantee

Article 8

1. Each guaranteeing association should undertake to pay to the Customs authorities of the Contracting Party in the territory of which it is established the amount of the import duties and taxes and any other sums, excluding those referred to in Article 4, paragraph 4, of this Convention, payable in the event of non-compliance with the

conditions of temporary admission, or of Customs transit, in respect of goods (including means of transport) introduced into that territory under cover of temporary admission papers issued by a corresponding issuing association. It shall be liable jointly and severally with the persons from whom the sums mentioned above are due, for payment of such sums.

2. ATA carnet :

The liability of the guaranteeing association shall not exceed the amount of the import duties and taxes by more than ten percent.

CPD carnet :

The guaranteeing association shall not be required to pay a sum greater than the total amount of the import duties and taxes, together with interest if applicable.

3. When the Customs authorities of the territory of temporary admission have unconditionally discharged temporary admission papers in respect of certain goods (including means of transport), they can no longer claim from the guaranteeing association payment of the sums referred to in paragraph 1 of this Article in respect of these goods (including means of transport). A claim may nevertheless still be made against the guaranteeing association if it is subsequently discovered that the discharge of the papers was obtained improperly or fraudulently or that there had been a breach of the conditions of temporary admission or of Customs transit.

4. ATA carnet :

Customs authorities shall not in any circumstances require from the guaranteeing association payment of the sums referred to in paragraph 1 of this Article if a claim has not been made against the guaranteeing association within a year of the date of expiry of the validity of the ATA carnet.

5. CPD carnet :

Customs authorities shall not in any circumstances require from the guaranteeing association payment of the sums referred to in paragraph 1 of this Article if notification of the non-discharge of the CPD carnet has not been given to the guaranteeing association within a year of the date of expiry of the validity of the carnet. Furthermore, the Customs authorities shall provide the guaranteeing association with details of the calculation of import duties and taxes due within one year from the notification of the non-discharge. The guaranteeing association's liability for these sums shall cease if such information is not furnished within this one-year period.

CHAPTER V

Regularization of temporary admission papers

Article 9

1. ATA carnet :

a) The guaranteeing association shall have a period of six months from the date of the claim made by the Customs authorities for the sums referred to in Article 8, paragraph 1 of this Annex in which to furnish proof of re-exportation under the conditions laid down in this Annex or of any other proper discharge of the ATA carnet.

b) Is such proof is not furnished within the time allowed the guaranteeing association shall forthwith deposit, or pay provisionally, such sums. This deposit or payment shall become final after a period of three months from the date of the deposit of payment. During the latter period, the guaranteeing association may still furnish the proof referred to in subparagraph (a) of this paragraph with a view to recovery of the sums deposited or paid.

c) For Contracting Parties whose laws and regulations do not provide for the deposit or provisional payment of import duties and taxes, payments made in conformity with the provisions of subparagraph (b) of this paragraph shall be regarded as final, but the sums paid shall be refunded if the proof referred to in subparagraph (a) of this paragraph is furnished within three months of the date of the payment.

2. CPD carnet :

(a) The guaranteeing association shall have a period of one year from the date of notification of the non-discharge of CPD carnets in which to furnish proof or re-exportation under the conditions laid down in this Annex or of any other proper discharge of the CPD carnet. Nevertheless, this period can come into force only as of the date of expiry of the CPD carnet. If the Customs authorities contest the validity of the proof provided they must so inform the guaranteeing association within a period not exceeding one year.

(b) If such proof is not furnished within the time allowed the guaranteeing association shall deposit, or pay provisionally, within a maximum period of three months the import duties and taxes payable. This deposit or payment shall become final after a period of one year from the date of the deposit or payment. During the latter period, the guaranteeing association may still furnish the proof referred to in subparagraph (a) of this paragraph with a view to recovery of the sums deposited or paid.

(c) For Contracting Parties whose laws and regulations do not provide for the deposit of provisional payment of import duties and taxes, payments made in conformity with the provisions of subparagraph (b) of this paragraph shall be regarded as final, but the sums paid shall be refunded if the proof referred to in subparagraph (a) of this paragraph is furnished within a year of the date of the payment .

Article 10

1. Evidence of re-exportation of goods (including means of transport) imported under cover of temporary admission papers shall be provided by the re-exportation counterfoil completed and stamped by the Customs authorities of the territory of temporary admission.

2. If the re-exportation has not been certified in accordance with paragraph 1 of this Article, the Customs authorities of the territory of temporary admission may, even if the period of validity of the papers has already expired, accept as evidence of re-exportation :

a) the particulars entered by the Customs authorities of another Contracting Party in the temporary admission papers on importation or reimportation or a certificate issued by those authorities based on the particulars entered on a voucher which has been detached from the papers on importation or on reimportation which can be proved to have taken place after the re-exportation which it is intended to establish;

b) any other documentary proof that the goods (including means of transport) are outside that territory.

3. In any case in which the Customs authorities of a Contracting Party waive the requirement of re-exportation of certain goods (including means of transport) admitted into their territory under cover of temporary admission papers, the guaranteeing association shall be discharged from its obligations only when those authorities have certified in the papers that the position regarding those goods (including means of transport) has been regularized.

Article 11

In the cases referred to in Article 10, paragraph 2 of this Annex, the Customs authorities shall have the right to charge a regularization fee .

CHAPTER VI

Miscellaneous provisions

Article 12

Customs endorsements on temporary admission papers used under the conditions laid down in this Annex shall not be subject to the payment of charges for Customs attendance at Customs offices during the normal hours of business.

Article 13

In the case of the destruction, loss or theft of temporary admission papers while the goods (including means of transport) to which they refer are in the territory of one of the Contracting Parties, the Customs authorities of that Contracting Party shall, at the request of the issuing association and subject to such conditions as those authorities may prescribe, accept replacement papers, the validity of which expires on the same date as that of the papers which they replace.

Article 14

1. Where it is expected that the temporary admission operation will exceed the period of validity of the temporary admission papers because of the inability of the holder to re-export the goods (including means of transport) within that period, the association which issued the papers may issue replacement papers. Such papers shall be submitted to the Customs authorities of the Contracting Parties concerned for control. When accepting the replacement papers, the Customs authorities concerned shall discharge the papers replaced.

2. The validity of CPD carnets can only be extended once for not more than one year. After this period, a new carnet must be issued I replacement of the former carnet and accepted by the Customs authorities.

Article 15

Where Article 7, paragraph 3, of this Convention applies, the Customs authorities shall, as far as possible, notify the guaranteeing association of seizures made by them or on their behalf of goods (including means of transport) admitted under cover of temporary admission papers guaranteed by that association and shall advise it of the measures they intend to take.

Article 16

In the event of fraud, contravention or abuse, the Contracting Parties shall, notwithstanding the provisions of this Annex, be free to take proceedings against persons using temporary admission papers, for the recovery of the import duties and taxes and other sums payable and also for the imposition of any penalties to which such persons have rendered themselves liable. In such cases the associations shall lend their assistance to the Customs authorities.

Article 17

Temporary admission papers or parts thereof which have been issued or are intended to be issued in the territory into which they are imported and which are sent to an issuing association by a guaranteeing association, by an international organization or by the Customs authorities of a Contracting Party, shall be admitted free of import duties and taxes and free of any import prohibitions or restrictions. Corresponding facilities shall be granted at exportation .

Article 18

Each Contracting Party shall have the right to enter a reservation, in accordance with Article 29 of this Convention, in respect of the acceptance of ATA carnets for postal traffic .

Article 19

1. Upon its entry into force this Annex shall, in accordance with Article 27 of this Convention, terminate and replace the Customs Convention on the AT carnet for the temporary admission of goods, Brussels, 6 December 1961 (ATA Convention), in relations between the Contracting Parties which have accepted this Annex and are Contracting Parties to that Convention .

NOTE

The CPD carnets issued by the AIT and FIA cover solely road motor vehicles and trailers (including registered motor sport vehicles transported by trailer).

APPENDIX I

ATA carnet

Issuing Association
Association émettrice

INTERNATIONAL GUARANTEE CHAIN
CHAINE DE GARANTIE INTERNATIONALE

A.T.A. CARNET/CARNET A.T.A.
FOR TEMPORARY ADMISSION OF GOODS
POUR L'ADMISSION TEMPORAIRE DES MARCHANDISES
CUSTOMS CONVENTION ON THE A.T.A. CARNET FOR THE TEMPORARY ADMISSION OF GOODS
CONVENTION DOUANIERE SUR LE CARNET A.T.A. POUR L'ADMISSION TEMPORAIRE DES MARCHANDISES
CONVENTION ON TEMPORARY ADMISSION *CONVENTION RELATIVE A L'ADMISSION TEMPORAIRE*
(Before completing the Carnet, please read Notes on cover page 3/*Avant de remplir le carnet, lire la notice en page 3 de la couverture)*

ATA CARNET / CARNET ATA

A. HOLDER AND ADDRESS */Titulaire et adresse*

G. FOR ISSUING ASSOCIATION USE */Réservé a l'association émettrice*
FRONT COVER/ *Couverture*

a) CARNET No.
Carnet N°.

Number of continuation sheets:
Nombre de feuilles supplémentaires .....

B. REPRESENTED BY*/*Représenté par**

b) ISSUED BY/*Delivré par*

C. INTENDED USE OF GOODS/ *Utilisation prévue des marchandises*

c) VALID UNTIL/Valable jusqu'au
...../...../.....
year *année* **month** *mois* **day (inclusive)** *jour (inclus)*

P. This carnet may be used in the following countries/Customs territories under the guarantee of the associations listed on page four of the cover:/ *Ce carnet est valable dans les pays/territoires douaniers ci-après, sous la garantie des associations reprises en page quatre de couverture:*

The holder of this Carnet and his representative will be held responsible for compliance with the laws and regulations of the country/Customs territory of departure and the countries/Customs territories of importation./ *A charge pour le titulaire et son représentant de se conformer aux lois et règlements du pays/territoire douanier de départ et des pays/territoires douaniers d'importation.*

H. CERTIFICATE BY CUSTOMS AT DEPARTURE /
Attestation de la douane, au départ

a) **Identification marks have been affixed as indicated in column 7 against the following item No(s) of the General List**
Apposé les marques d'identification mentionnées dans la colonne 7 en regard du (des) numéro(s) d'ordre suivant(s) de la liste générale.....

.....

b) **GOODS EXAMINED***/*Vérifié les marchandises**
Yes/Oui ☐ **No**/ Non ☐

c) **Registered under Reference No.*** .....
*Enregistré sous le numéro.**

d) ...../...../.....
Customs Office *Bureau de douane* **Place** **Date (year/month/day)** *Date (année/mois/jour)* **Signature and Stamp** *Signature et timbre*

I. Signature of authorised official and Issuing Association stamp/ *Signature du délégué et timbre de l'association émettrice*

...../...../.....
Place and Date of Issue (year/month/day)
Lieu et date d'émission (année/mois/jour)

J.

X X
Signature of Holder/*Signature du titulaire*

TO BE RETURNED TO THE ISSUING CHAMBER IMMEDIATELY AFTER USE/ *A RETOURNER A LA CHAMBRE EMETTRICE IMMEDIATEMENT APRES UTILISATION*

***If applicable**/ **S'il y a lieu*

A.T.A. CARNET **GENERAL LIST**/*LISTE GENERALE* *CARNET A.T.A.*

Item No./ *N° d'ordre*	Trade description of goods and marks and numbers, If any/ *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	Number of Pieces/ *Nombre de Pièces*	Weight or Volume/ *Poids ou Volume*	Value*/ Valeur*	**Country of origin/ **pays d'origine	For Customs Use/ Réservé à la douane *Identification marks/ Marques d'identification*
1	2	3	4	5	6	7
TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

Stamp/
Timbre

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./**Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*
Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./*Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

A.T.A. CARNET / *CARNET A.T.A.* **CARNET No.**/ *Carnet N°*

FOR USE BY CUSTOMS OF COUNTRY/ CUSTOMS TERRITORY OF TEMPORARY EXPORTATION
RESERVE A LA DOUANE DU PAYS/TERRITOIRE DOUANIER D'EXPORTATION TEMPORAIRE

EXPORTATION / *EXPORTATION*

1. **The goods described in the General List under Item No.(s)** ..... *Les marchandises énumérées à la liste générale sous le(s) N°(s)* ..... **have been exported** / *ont été exportées*

2. **Final date for duty-free re-importation**/*Date limite pour la réimportation en franchise* — year / *année* / month / *mois* / day / *jour*

3. **Other remarks***/*Autres mentions** .....

7. .....

Counterfoil / *Souche* **No.**/*N°*

4. ..... **Customs Office** / *Bureau de douane*

5. ..... **Place** / *Lieu*

6. ...../...../..... **Date (year/month/day)** / *Date (année/mois/jour*

..... **Signature and Stamp** / *Signature et Timbre*

REIMPORTATION / *REIMPORTATION*

1. **The goods described in the General List under Item No.(s)** ..... *Les marchandises énumérées à la liste générale sous le(s) N°(s)*

which were temporarily exported under cover of exportation voucher(s) No.(s) ..... **of this Carnet have been re-imported*** / *exportées temporairement sous couvert du (des) volet(s) d'exportation N° (s)* / *du présent carnet ont été réimportées**

2. **Other remarks***/*Autres mentions** .....

6. .....

Counterfoil / *Souche* **No.**/*N°*

3. ..... **Customs Office** / *Bureau de douane*

4. ..... **Place** / *Lieu*

5. ...../...../..... **Date (year/month/day)** / *Date (année/mois/jour*

..... **Signature and Stamp** / *Signature et Timbre*

EXPORTATION / *EXPORTATION*

1. **The goods described in the General List under Item No.(s)** ..... *Les marchandises énumérées à la liste générale sous le(s) N°(s)* ..... **have been exported** / *ont été exportées*

2. **Final date for duty-free re-importation**/*Date limite pour la réimportation en franchise* — year / *année* / month / *mois* / day / *jour*

3. **Other remarks***/*Autres mentions** .....

7. .....

Counterfoil / *Souche* **No.**/*N°*

4. ..... **Customs Office** / *Bureau de douane*

5. ..... **Place** / *Lieu*

6. ...../...../..... **Date (year/month/day)** / *Date (année/mois/jour*

..... **Signature and Stamp** / *Signature et Timbre*

REIMPORTATION / *REIMPORTATION*

1. **The goods described in the General List under Item No.(s)** ..... *Les marchandises énumérées à la liste générale sous le(s) N°(s)*

which were temporarily exported under cover of exportation voucher(s) No.(s) ..... **of this Carnet have been re-imported*** / *exportées temporairement sous couvert du (des) volet(s) d'exportation N° (s)* / *du présent carnet ont été réimportées**

2. **Other remarks***/*Autres mentions** .....

6. .....

Counterfoil / *Souche* **No.**/*N°*

3. ..... **Customs Office** / *Bureau de douane*

4. ..... **Place** / *Lieu*

5. ...../...../..... **Date (year/month/day)** / *Date (année/mois/jour*

..... **Signature and Stamp** / *Signature et Timbre*

* **If applicable**/ **S'il y a lieu*

DO NOT REMOVE FROM THE CARNET / *NE PAS DETACHER DU CARNET*

A.T.A. CARNET / *CARNET A.T.A.* **CARNET No.**/ *Carnet N°*

FOR USE BY CUSTOMS OF COUNTRY/ CUSTOMS TERRITORY OF TEMPORARY IMPORTATION
RESERVE A LA DOUANE DU PAYS/TERRITOIRE DOUANIER D'IMPORTATION TEMPORAIRE

IMPORTATION / IMPORTATION

1. **The goods described in the General List under Item No.(s)** ..... *Les marchandises énumérées à la liste générale sous le(s) N°(s)* ..... **have been temporarily imported** *ont été importées temporairement*

2. **Final date for re-exportation/production to the Customs of goods*/** *Date limite pour la réexportation/la représentation à la douane, des marchandises** — year / *année* / month / *mois* / day / *jour*

3. **Registered under reference No.*/** *Enregistré sous le N°** ..... 8.

4. **Other remarks*/** *Autres mentions** .....

Counterfoil / *Souche* No./*N°*	5. Customs Office / *Bureau de douane*	6. Place / *Lieu*	7. Date (year/month/day) / *Date (année/mois/jour*	Signature and Stamp / *Signature et Timbre*
	.....	.....	...../...../.....	.....

REEXPORTATION / REEXPORTATION

1. **The goods described in the General List under Item No.(s)** ..... *Les marchandises énumérées à la liste générale sous le(s) N°(s)* ..... **which were temporarily imported under cover of importation voucher(s) No.(s)** ..... *Importées temporairement sous couvert du (des) volet(s) d'importation N° (s)* **of this Carnet have been re-exported*/** *du présent carnet, ont été réexportées**

2. **Action taken in respect of goods produced but not re-exported*** *Mesures prises à l'égard des marchandises représentées mais non réexportées** .....

3. **Action taken in respect of goods not produced and not intended for later re-exportation*** *Mesures prises à l'égard des marchandises non représentées et non destinées à une réexportation ultérieure** ..... 8.

4. **Registered under reference No.**/ *Enregistré sous le N°* .....

Counterfoil / *Souche* No./*N°*	5. Customs Office / *Bureau de douane*	6. Place / *Lieu*	7. Date (year/month/day) / *Date (année/mois/jour*	Signature and Stamp / *Signature et Timbre*
	.....	.....	...../...../.....	.....

IMPORTATION / IMPORTATION

1. **The goods described in the General List under Item No.(s)** ..... *Les marchandises énumérées à la liste générale sous le(s) N°(s)* ..... **have been temporarily imported** *ont été importées temporairement*

2. **Final date for re-exportation/production to the Customs of goods*/** *Date limite pour la réexportation/la représentation à la douane, des marchandises** — year / *année* / month / *mois* / day / *jour*

3. **Registered under reference No.*/** *Enregistré sous le N°** ..... 8.

4. **Other remarks*/** *Autres mentions** .....

Counterfoil / *Souche* No./*N°*	5. Customs Office / *Bureau de douane*	6. Place / *Lieu*	7. Date (year/month/day) / *Date (année/mois/jour*	Signature and Stamp / *Signature et Timbre*
	.....	.....	...../...../.....	.....

REEXPORTATION / REEXPORTATION

1. **The goods described in the General List under Item No.(s)** ..... *Les marchandises énumérées à la liste générale sous le(s) N°(s)* ..... **which were temporarily imported under cover of importation voucher(s) No.(s)** ..... *Importées temporairement sous couvert du (des) volet(s) d'importation N° (s)* **of this Carnet have been re-exported*/** *du présent carnet, ont été réexportées**

2. **Action taken in respect of goods produced but not re-exported*** *Mesures prises à l'égard des marchandises représentées mais non réexportées** .....

3. **Action taken in respect of goods not produced and not intended for later re-exportation*** *Mesures prises à l'égard des marchandises non représentées et non destinées à une réexportation ultérieure** ..... 8.

4. **Registered under reference No.**/ *Enregistré sous le N°* .....

Counterfoil / *Souche* No./*N°*	5. Customs Office / *Bureau de douane*	6. Place / *Lieu*	7. Date (year/month/day) / *Date (année/mois/jour*	Signature and Stamp / *Signature et Timbre*
	.....	.....	...../...../.....	.....

* **If applicable**/ **S'il y a lieu*

DO NOT REMOVE FROM THE CARNET / *NE PAS DETACHER DU CARNET*

A.T.A. CARNET / *CARNET A.T.A* **CARNET No.**/*Carnet N°*

FOR USE BY CUSTOMS OF COUNTRY/CUSTOMS TERRITORY OF TRANSIT
RESERVE A LA DOUANE DU PAYS/TERRITOIRE DOUANER DE TRANSIT

T T
R A
A N
N S
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I T
T

Clearance for transit /*Dédouanement pour le transit*
1. **The goods described in the General List under item No.**/*(s)*
Les marchandises énumérées à la liste générale sous le(s) N° (s)
have been despatched in transit to the Customs Office at
ont été expédiées en transit sur le bureau de douane de
2. **Final date for re-exportation/production to the Customs of goods***
*Date limite pour la réexportation/la représentation à la douane des marchandises**
3. **Registered under reference No.***/*Enregistré sous le N°**

year / month / day
année / mois / jour

4. Customs Office / Bureau de douane
5. Place / Lieu
6. Date (year/month/day) / Date (année/mois/jour)
7. Signature and Stamp / Signature et Timbre

Certificate of discharge by the Customs Office of destination/*Certificat de décharge du bureau de destination*
1. **The goods specified in paragraph 1 above have been re-exported/produced***
*Les marchandises visées au paragraphe 1 ci-dessus ont été réexportées/représentées**
2. **Other remarks***/*Autres mentions**

Counterfoil / *Souche* **No.**/*N°*

3. Customs Office / Bureau de douane
4. Place / Lieu
5. Date (year/month/day) / Date (année/mois/jour)
6. Signature and Stamp / Signature et Timbre

T T R A A N N S S I / T T

Clearance for transit /*Dédouanement pour le transit*
1. **The goods described in the General List under item No.**/*(s)*
Les marchandises énumérées à la liste générale sous le(s) N° (s)
have been despatched in transit to the Customs Office at
ont été expédiées en transit sur le bureau de douane de
2. **Final date for re-exportation/production to the Customs of goods***
*Date limite pour la réexportation/la représentation à la douane des marchandises**
3. **Registered under reference No.***/*Enregistré sous le N°**

year / month / day
année / mois / jour

4. Customs Office / Bureau de douane
5. Place / Lieu
6. Date (year/month/day) / Date (année/mois/jour)
7. Signature and Stamp / Signature et Timbre

Certificate of discharge by the Customs Office of destination/*Certificat de décharge du bureau de destination*
1. **The goods specified in paragraph 1 above have been re-exported/produced***
*Les marchandises visées au paragraphe 1 ci-dessus ont été réexportées/représentées**
2. **Other remarks***/*Autres mentions**

Counterfoil / *Souche* **No.**/*N°*

3. Customs Office / Bureau de douane
4. Place / Lieu
5. Date (year/month/day) / Date (année/mois/jour)
6. Signature and Stamp / Signature et Timbre

T T R A A N N S S I / T T

Clearance for transit /*Dédouanement pour le transit*
1. **The goods described in the General List under item No.**/*(s)*
Les marchandises énumérées à la liste générale sous le(s) N° (s)
have been despatched in transit to the Customs Office at
ont été expédiées en transit sur le bureau de douane de
2. **Final date for re-exportation/production to the Customs of goods***
*Date limite pour la réexportation/la représentation à la douane des marchandises**
3. **Registered under reference No.***/*Enregistré sous le N°**

year / month / day
année / mois / jour

4. Customs Office / Bureau de douane
5. Place / Lieu
6. Date (year/month/day) / Date (année/mois/jour)
7. Signature and Stamp / Signature et Timbre

Certificate of discharge by the Customs Office of destination/*Certificat de décharge du bureau de destination*
1. **The goods specified in paragraph 1 above have been re-exported/produced***
*Les marchandises visées au paragraphe 1 ci-dessus ont été réexportées/représentées**
2. **Other remarks***/*Autres mentions**

Counterfoil / *Souche* **No.**/*N°*

3. Customs Office / Bureau de douane
4. Place / Lieu
5. Date (year/month/day) / Date (année/mois/jour)
6. Signature and Stamp / Signature et Timbre

T T R A A N N S S I / T T

Clearance for transit /*Dédouanement pour le transit*
1. **The goods described in the General List under item No.**/*(s)*
Les marchandises énumérées à la liste générale sous le(s) N° (s)
have been despatched in transit to the Customs Office at
ont été expédiées en transit sur le bureau de douane de
2. **Final date for re-exportation/production to the Customs of goods***
*Date limite pour la réexportation/la représentation à la douane des marchandises**
3. **Registered under reference No.***/*Enregistré sous le N°**

year / month / day
année / mois / jour

4. Customs Office / Bureau de douane
5. Place / Lieu
6. Date (year/month/day) / Date (année/mois/jour)
7. Signature and Stamp / Signature et Timbre

Certificate of discharge by the Customs Office of destination/*Certificat de décharge du bureau de destination*
1. **The goods specified in paragraph 1 above have been re-exported/produced***
*Les marchandises visées au paragraphe 1 ci-dessus ont été réexportées/représentées**
2. **Other remarks***/*Autres mentions**

Counterfoil / *Souche* **No.**/*N°*

3. Customs Office / Bureau de douane
4. Place / Lieu
5. Date (year/month/day) / Date (année/mois/jour)
6. Signature and Stamp / Signature et Timbre

***If applicable**/**S'il y a lieu*

DO NOT REMOVE FROM THE CARNET / *NE PAS DETACHER DU CARNET*

EXPORTATION / EXPORTATION

A. HOLDER AND ADDRESS */Titulaire et adresse*

B. REPRESENTED BY* */Représenté par**

C. INTENDED USE OF GOODS/ *Utilisation prévue des marchandises*

D. MEANS OF TRANSPORT* */ Moyens de transport**

E. PACKAGING DETAILS (Number, Kind, Marks, etc.)* */ Détail d'emballage (nombre, nature, marques, etc.)**

F. TEMPORARY EXPORTATION DECLARATION/ Déclaration *d'exportation temporaire*

I, duly authorised :/ *Je soussigné, dûment autorisé :*

a) **declare that I am temporarily exporting the goods enumerated in the list overleaf and described in the General List under item No.(s)**/ *déclare exporter temporairement les marchandises énumérées à la liste figurant au verso et reprises à la liste générale des marchandises sous le(s) N° (s).*

.....

.....

b) **undertake to re-import the goods within the period stipulated by the Customs Office or regularize their status in accordance with the laws and regulations of the country/Customs territory of importation**/ *m'engage à réimporter ces marchandises dans le délai fixé par le bureau de douane ou à régulariser leur situation selon les lois et règlements du pays/territoire douanier d'importation.*

c) **confirm that the information given is true and complete**/ *certifie sincères et complètes les indications portées sur le présent volet.*

G. FOR ISSUING ASSOCIATION USE */Réservé a l'association émettrice*
EXPORTATION VOUCHER No.
Volet d'exportation N° .....

a) CARNET No.
Carnet N°

b) ISSUED BY/*Delivré par*

c) VALID UNTIL/Valable jusqu'au
...../...../.....
year *année* | **month** *mois* | **day (inclusive)** *jour (inclus)*

FOR CUSTOMS USE ONLY/ *Réservé a la douane*

H. CLEARANCE ON EXPORTATION/ *Dédouanement à l'exportation*

a) **The goods referred to in the above declaration have been exported**/ *Les marchandises faisant l'objet de la déclaration ci-contre ont été exportées.*

b) **Final date for duty-free re-importation**:/ *Date limite pour la réimportation en franchise:*
...../...../.....
year *année* | ***month*** *mois* | ***day*** *jour*

c) **This voucher must be forwarded to the Cusoms Office at:*** / *Le présent volet devra être transmis au bureau de douane de:**
.....

d) **Other remarks:*** / *Autres mentions:**

At / *A* .....
Customs office / *Bureau de douane*

...../...../..... .....
Date (year/month/day) *Date (année/mois/jour)* | **Signature and Stamp** *Signature et Timbre*

Place ..... **Date (year/month/day)** ...../...../.....
Lieu *Date (année/mois/jour*

Name.....
Nom

Signature X ..... **X**
Signature

***If applicable**/ **S'il y a lieu*

A.T.A. CARNET **GENERAL LIST**/*LISTE GENERALE* *CARNET A.T.A.*

Item No./ *N° d'ordre*	**Trade description of goods and marks and numbers, If any/** *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	**Number of Pieces/** *Nombre de Pièces*	**Weight or Volume/** *Poids ou Volume*	Value*/ Valeur*	**Country of origin/** *Pays d'origine* **	**For Customs Use/ Réservé à la douane** *Identification marks/ Marques d'identification*
1	**2**	**3**	**4**	**5**	**6**	**7**
TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./*Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*

Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

IMPORTATION / IMPORTATION

A. HOLDER AND ADDRESS /*Titulaire et adresse*

B. REPRESENTED BY* /*Représenté par**

C. INTENDED USE OF GOODS/ *Utilisation prévue des marchandises*

D. MEANS OF TRANSPORT* / *Moyens de transport**

E. PACKAGING DETAILS (Number, Kind, Marks, etc.)* / *Détail d'emballage (nombre, nature, marques, etc.)**

F. TEMPORARY IMPORTATION DECLARATION/
Déclaration d'importation temporaire

I, duly authorised :/ *Je soussigné, dûment autorisé :*

a) **declare that I am temporarily importing in compliance with the conditions laid down in the laws and regulations of the country/Customs territory of importation, the goods enumerated in the list overleaf and described in the General List under item No.(s)**/ *déclare importer temporairement, dans les conditions prévues par les lois et règlements du pays/territoire douanier d'importation, les marchandises énumérées à la liste figurant au verso et reprises à la liste générale sous le(s) N° (s)*

.....

.....

b) **declare that the said goods are intended for use at**/*déclare que les marchandises sont destinées à être utilisées à*

.....

.....

c) **undertake to comply with these laws and regulations and to re-export the said goods within the period stipulated by the Customs Office or regularize their status in accordance with the laws and regulations of the country/Customs territory of importation.**/ *m'engage à observer ces lois et règlements et à réexporter ces marchandises dans les délais fixés par le bureau de douane ou à régulariser leur situation selon les lois et règlements du pays/territoire douanier d'importation.*

d) **Confirm that the information given is true and complete.**/ *certifie sincères et complètes les indications portées sur le présent volet.*

G. FOR ISSUING ASSOCIATION USE /*Réservé a l'association émettrice*
IMPORTATION VOUCHER No.
Volet d'importation N° .....

a) CARNET No.
Carnet N°

b) ISSUED BY/*Delivré par*

c) VALID UNTIL/Valable jusqu'au

...../...../.....
year *année* | **month** *mois* | **day (inclusive)** *jour (inclus)*

FOR CUSTOMS USE ONLY/ *Réservé a la douane*

H. CLEARANCE ON IMPORTATION/ *Dédouanement à l'importation*

a) **The goods referred to in the above declaration have been temporarily imported**/ *Les marchandises faisant l'objet de la déclaration ci-contre ont été importées temporairement.*

b) **Final date for re-exportation/production to Customs***/*Date limite pour la réexportation/la représentation à la douane:*

...../...../.....
year *année* | ***month*** *mois* | ***day*** *jour*

c) **Registered under reference No.***/ *Enregistré sous le N°**

.....

d) **Other remarks:*** / *Autres mentions:**

At / *A* .....
Customs office / *Bureau de douane*

...../...../.....
Date (year/month/day)
Date (année/mois/jour)

.....
Signature and Stamp
Signature et Timbre

Place ..... **Date (year/month/day)** ...../...../.....
Lieu *Date (année/mois/jour*

Name.....
Nom

Signature X ..... **X**
Signature

***If applicable**/ **S'il y a lieu*

A.T.A. CARNET **GENERAL LIST/*LISTE GENERALE*** *CARNET A.T.A.*

Item No./ *N° d'ordre*	Trade description of goods and marks and numbers, If any/ *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	Number of Pieces/ *Nombre de Pièces*	Weight or Volume/ *Poids ou Volume*	Value*/ Valeur*	**Country of origin/ *Pays d'origine*	For Customs Use/ Réservé à la douane *Identification marks/ Marques d'identification*
1	2	3	4	5	6	7
TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./**Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*

Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./*Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

REEXPORTATION / REEXPORTATION

A. HOLDER AND ADDRESS /*Titulaire et adresse*

B. REPRESENTED BY* /*Représenté par**

C. INTENDED USE OF GOODS/ *Utilisation prévue des marchandises*

D. MEANS OF TRANSPORT* / *Moyens de transport**

E. PACKAGING DETAILS ***(*Number, Kind, Marks, etc.)****/ *Détail d'emballage (nombre, nature, marques, etc.)**

F. RE-EXPORTATION DECLARATION/ *Déclaration de réexportation*

I, duly authorised :/ *Je soussigné, dûment autorisé:*

***a) declare that I am re-exporting the goods enumerated in the list overleaf and described in the General List under item No.(s)**/ *déclare réexporter les marchandises énumérées à la liste figurant au verso et reprises à la liste générale des marchandises sous le(s) N° (s).*

.....

.....

which were temporarily imported under cover of importation voucher(s) No.(s)/ *qui ont été importées temporairement sous le couvert du (des) volet(s) d'importation N° (s)*

.....

of this carnet / **du présent carnet**

***b) declare that goods produced against the following item No.(s) are not intended for re-exporation:**/ *déclare que les marchandises représentées et reprises sous le(s) N° (s) suivant(s) ne sont pas destinées à la réexportation:*

.....

.....

***c) declare that goods of the following item No.(s) not produced, are not intended for later re-exportation** :/ *déclare que les marchandises non représentées et reprises sous le(s) N° (s) suivant(s) ne seront pas réexportées ultérieurement:*

.....

.....

***d) in support of this declaration, present the following documents** :/ *présente à l'appui de mes déclarations, les documents suivants :*

.....

e) confirm that the information given is true and complete/ *certifie sincères et complètes les indications portées sur le présent volet*

G. FOR ISSUING ASSOCIATION USE /*Réservé a l'association émettrice*
REEXPORTATION VOUCHER No.
Volet de réexportation N° .....

a) CARNET No.
Carnet N°

b) ISSUED BY/*Delivré par*

c) VALID UNTIL/Valable jusqu'au

...../...../.....

year *année*	**month** *mois*	**day (inclusive)** *jour (inclus)*

FOR CUSTOMS USE ONLY/ *Réservé a la douane*

H. CLEARANCE ON RE-EXPORTATION/ *Dédouanement à la réexportation*

a) The goods referred to in paragraph F. a) of the holder's declaration have been re-exported.*/ *Les marchandises visées au paragraphe F.a) de la déclaration ci-contre ont été réexportées.**

b) Action taken in respect of goods produced but not re-exported.*/ *Mesures prises à l'égard des marchandises représentées mais non réexportées.**

.....

c) Action taken in respect of goods NOT produced and NOT intended for later re-exporation.*/ *Mesures prises à l'égard des marchandises non représentées et non destinées à une réexportation ultérieure.**

.....

d) Registered under reference No. :/ **Enregistré sous le N° **

.....

e) This voucher must be forwarded to the Cusoms Office at:* /
*Le présent volet devra être transmis au bureau de douane de:**

.....

f) Other remarks:* / *Autres mentions:**

At / *A* .....

Customs office / *Bureau de douane*

...../...../..... .....

Date (year/month/day) *Date (année/mois/jour)* **Signature and Stamp** *Signature et Timbre*

Place ..... **Date (year/month/day)** ...../...../.....
Lieu *Date (année/mois/jour*

Name.....
Nom

Signature X ..... **X**
Signature

***If applicable**/ **S'il y a lieu*

A.T.A. CARNET **GENERAL LIST**/*LISTE GENERALE* *CARNET A.T.A.*

Item No./ *N° d'ordre*	**Trade description of goods and marks and numbers, If any/** *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	**Number of Pieces/** *Nombre de Pièces*	**Weight or Volume/** *Poids ou Volume*	Value*/ Valeur*	**Country of origin/** *pays d'origine* **	**For Customs Use/ Réservé à la douane** *Identification marks/ Marques d'identification*
1	**2**	**3**	**4**	**5**	**6**	**7**
TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./**Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*

Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./*Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

REIMPORTATION / *REIMPORTATION*

A. HOLDER AND ADDRESS */Titulaire et adresse*

B. REPRESENTED BY* */Représenté par**

C. INTENDED USE OF GOODS/ *Utilisation prévue des marchandises*

D. MEANS OF TRANSPORT* */ Moyens de transport**

E. PACKAGING DETAILS (Number, Kind, Marks, etc.)* */ Détail d'emballage (nombre, nature, marques, etc.)**

F. RE-IMPORTATION DECLARATION/ *Déclaration de réimportation temporaire*

I, duly authorised: */ Je soussigné, dûment autorisé :*

a) **declare that the goods enumerated in the list overleaf and described in the General List under item No.(s)**/ *déclare que les marchandises énumérées à la liste figurant au verso et reprises à la liste générale sous le(s) N° (s)*

.....

.....

were temporarily exported under cover of exportation voucher(s) No.(s)/ *ont été exportées temporairement sous le couvert du(des) volet(s) d'exportation N° (s)*

.....

.....

request duty-free re-importation of the said goods/ *demande la réimportation en franchise de ces marchandises.*

b) **declare that the said goods have NOT undergone any process abroad, except for those described under No.(s):*** */ déclare que lesdites marchandises n'ont subi aucune ouvraison à l'étranger, sauf celles énumérées sous le(s) N° (s)**:

.....

.....

c) **declare that goods of the following item No.(s) have not been re-imported***: */ déclare ne pas réimporter les marchandises reprises sous le(s) N° (s) suivant(s)**

.....

.....

d) **confirm that the information given is true and complete** */ certifie sincères et complètes les indications portées sur le présent volet.*

G. FOR ISSUING ASSOCIATION USE */Réservé a l'association émettrice*
REIMPORTATION VOUCHER No.
Volet de réimportation N° .....

a) CARNET No.
Carnet N°

b) ISSUED BY/*Delivré par*

c) VALID UNTIL/Valable jusqu'au

...../...../.....
year *année* | **month** *mois* | **day (inclusive)** *jour (inclus)*

FOR CUSTOMS USE ONLY/ *Réservé a la douane*

H. CLEARANCE ON RE-IMPORTATION/ *Dédouanement à la réimportation*

a) **The goods referred to in paragraph F. a) and b) of the holder's declaration have been re-imported**./ *Les marchandises visées au paragraphe F.a) et b) de la déclaration ci-contre ont été réimportées.*

b) **This voucher must be forwarded to the Customs Office at***/ *Le présent volet devra être transmis au bureau de douane de**

.....

c) **Other remarks:*** */ Autres mentions:**

At / *A* .....
Customs office / *Bureau de douane*

...../...../.....
Date (year/month/day)
Date (année/mois/jour)

.....
Signature and Stamp
Signature et Timbre

Place ..... **Date (year/month/day)** ...../...../.....
Lieu *Date (année/mois/jour*

Name.....
Nom

Signature X ..... **X**
Signature

***If applicable**/ **S'il y a lieu*

A.T.A. CARNET **GENERAL LIST***LISTE GENERALE* *CARNET A.T.A.*

Item No./ *N° d'ordre*	**Trade description of goods and marks and numbers, if any**/ *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	**Number of Pieces**/ *Nombre de Pièces*	**Weight or Volume**/ *Poids ou Volume*	Value*/ Valeur*	**Country of origin**/ **Pays d'origine	**For Customs Use**/ **Réservé à la douane** *Identification marks/ Marques d'identification*
1	**2**	**3**	**4**	**5**	**6**	**7**
TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./*Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*

Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

TRANSIT / TRANSIT

A. HOLDER AND ADDRESS /*Titulaire et adresse*

B. REPRESENTED BY* /*Représenté par**

C. INTENDED USE OF GOODS/ *Utilisation prévue des marchandises*

D. MEANS OF TRANSPORT* / *Moyens de transport**

E. PACKAGING DETAILS (number, kind, marks, etc.)* / *Détail d'emballage (nombre, nature, marques, etc.)**

F. DECLARATION OF DESPATCH IN TRANSIT/ *Déclaration d'expédition en transit*

I, duly authorised :/ *Je soussigné, dûment autorisé :*

a) **declare that I am despatching to:**/ *déclare expédier à:*

.....

.....

In compliance with the conditions laid down in the laws and regulations of the country/ Customs territory of transit, the goods enumerated in the list overleaf and described in the General List under item No.(s)/ *dans les conditions prévues par les lois et règlements du pays/territoire douanier de transit, les marchandises énumérées à la liste figurant au verso et reprises à la liste général sous le(s) N° (s)*

.....

.....

b) **undertake to omply with the laws and regualtions of the country/Customs territory of transit and to produce these goods with seals (if any) intact, and this Carnet to the Cutoms Office of destination within the period stipulated by the Customs**/ *m'engage à observer les lois et réglements du pays/territoire douanier de transit et à représenter ces marchandises , le cas échéant sous scellements intacts, en même temps que le présent carnet au bureau de douane de destination dans le délai fixé par la douane.*

c) **confirm that the information given is true and complete** / *certifie sincères et complètes les indications portées sur le présent volet.*

G. FOR ISSUING ASSOCIATION USE /*Réservé a l'association émettrice*
TRANSIT VOUCHER No.
Volet de transit N° .....

a) CARNET No.
Carnet N°

b) ISSUED BY/*Delivré par*

c) VALID UNTIL/Valable jusqu'au

...../...../.....

year / année	month / mois	day (inclusive) / jour (inclus)

FOR CUSTOMS USE ONLY/ *Réservé a la douane*

H. CLEARANCE FOR TRANSIT/ *Dédouanement pour le transit*

a) **The goods referred to in the above declaration have been cleared for transit to the Customs Office at :**/ *Les marchandises faisant l'objet de la déclaration ci-contre ont été dédouanées pour le transit sur le bureau de douane de :*

.....

b) **Final date for re-exportation/production to Customs***/*Date limite pour la réexportation/la représentation à la douane des marchandises**:

year / année	month / mois	day (inclusive) / jour (inclus)
		...../...../.....

c) **Registered under reference No.***/ *Enregistré sous le N°**

.....

d) **Customs seals applied***/*Scellements douaniers apposés**

.....

e) **This voucher must be forwarded to the Customs Office at :***/ *Le présent volet devra être transmis au bureau de douane de :**

.....

At / *A* .....
Customs office / *Bureau de douane*

...../...../.....
Date (year/month/day)
Date (année/mois/jour)

.....
Signature and Stamp
Signature et Timbre

Certificate of discharge by the Customs Office at destination
Certificat de décharge du bureau de destination

f) **The goods referred to in the above declaration have been re-exported/produced***/ *Les marchandises faisant l'objet de la déclaration ci-contre ont été réexportées/représentées**

g) **Other remarks***:/ *Autres mentions**:

At/ *A* .....
Customs Office/ *Bureau de douane*

...../...../.....
Date (year/month/day)
Date (année/mois/jour)

.....
Signature and Stamp
Signature et Timbre

Place ..... **Date (year/month/day)** ...../...../.....
Lieu *Date (année/mois/jour)*

Name.....
Nom

Signature X ..... **X**
Signature

***If applicable**/ **S'il y a lieu*

A.T.A. CARNET **GENERAL LIST**/*LISTE GENERALE* *CARNET A.T.A.*

Item No./ *N° d'ordre*	**Trade description of goods and marks and numbers, If any/** *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	**Number of Pieces/** *Nombre de Pièces*	**Weight or Volume/** *Poids ou Volume*	Value*/ Valeur*	**Country of origin/** **Pays d'origine	**For Customs Use/ Réservé à la douane** *Identification marks/ Marques d'identification*
1	2	3	4	5	6	7
TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./*Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*

Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

CONTINUATION SHEET GENERAL LIST No. ..... *FEUILLE SUPPLEMENTAIRE LISTE GENERALE N°*

CARNET No./ *Carnet N°*

ATA CARNET ATA CARNET	Item No./ *N° d'ordre*	Trade description of goods and marks and numbers, If any/ *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	Number of Pieces/ *Nombre de Pièces*	Weight or Volume/ *Poids ou Volume*	Value*/ Valeur*	**Country of origin/ **Pays d'origine*	For Customs Use/ Réservé à la douane *Identification marks/ Marques d'identification*
	1	2	3	4	5	6	7
	TOTAL CARRIED OVER/*REPORT*						
	TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

Signature of authorised official and Issuing Association stamp/
Signature du délégué et timbre de l'association émettrice

Signature of Holder/
Signature du titulaire

.....

.....

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./*Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*

Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

A.T.A. CARNET **GENERAL LIST**/*LISTE GENERALE* *CARNET A.T.A.*

Item No./ *N° d'ordre*	**Trade description of goods and marks and numbers, if any**/ *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	**Number of Pieces**/ *Nombre de Pièces*	**Weight or Volume**/ *Poids ou Volume*	Value*/ Valeur*	**Country of origin**/ **Pays d'origine	**For Customs Use/ Réservé à la douane** *Identification marks/ Marques d'identification*
1	2	3	4	5	6	7
TOTAL CARRIED OVER / *REPORT*						
TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./*Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*

Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

VOUCHER No. **CONTINUATION SHEET GENERAL LIST No.** ……**CARNET No./**
VOLET DE……N° ……*FEUILLE SUPPLEMENTAIRE LISTE GENERALE N°* ……*CARNET N°*

Item No./ *N° d'ordre*	**Trade description of goods and marks and numbers, If any/** *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	**Number of Pieces/** *Nombre de Pièces*	**Weight or Volume/** *Poids ou Volume*	Value*/ Valeur*	**Country of origin/** ** *Pays d'origine*	**For Customs Use/ Réservé à la douane** *Identification marks/ Marques d'identification*
1	2	3	4	5	6	7
TOTAL CARRIED OVER / *REPORT*						
TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./**Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*
Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./*Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

A.T.A. CARNET **GENERAL LIST**/*LISTE GENERALE* *CARNET A.T.A.*

Item No./ *N° d'ordre*	Trade description of goods and marks and numbers, If any/ *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	Number of Pieces/ *Nombre de Pièces*	Weight or Volume/ *Poids ou Volume*	Value*/ Valeur*	**Country of origin/ **pays d'origine*	For Customs Use/ Réservé à la douane *Identification marks/ Marques d'identification*
1	2	3	4	5	6	7
TOTAL CARRIED OVER / *REPORT*						
TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./**Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*

Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./*Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

VOUCHER No. **CONTINUATION SHEET GENERAL LIST No.** ……**CARNET No./**
VOLET DE……N° ……*FEUILLE SUPPLEMENTAIRE LISTE GENERALE N°* ……*CARNET N°*

Item No./ *N° d'ordre*	**Trade description of goods and marks and numbers, if any/** *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	**Number of Pieces/** *Nombre de Pièces*	**Weight or Volume/** *Poids ou Volume*	Value*/ Valeur*	**Country of origin/** **Pays d'origine	**For Customs Use/ Réservé à la douane** *Identification marks/ Marques d'identification*
1	2	3	4	5	6	7
TOTAL CARRIED OVER / *REPORT*						
TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./**Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*
Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./*Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

A.T.A. CARNET **GENERAL LIST**/*LISTE GENERALE* *CARNET A.T.A.*

Item No./ *N° d'ordre*	Trade description of goods and marks and numbers, If any/ *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	Number of Pieces/ *Nombre de Pièces*	Weight or Volume/ *Poids ou Volume*	Value*/ Valeur*	**Country of origin/ **Pays d'origine	For Customs Use/ Réservé à la douane *Identification marks/ Marques d'identification*
1	2	3	4	5	6	7
TOTAL CARRIED OVER / *REPORT*						
TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./*Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*

Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

VOUCHER No. **CONTINUATION SHEET GENERAL LIST No.** ……**CARNET No./**
VOLET DE……N° ……*FEUILLE SUPPLEMENTAIRE LISTE GENERALE N°* ……*CARNET N°*

Item No./ *N° d'ordre*	**Trade description of goods and marks and numbers, if any/** *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	**Number of Pieces/** *Nombre de Pièces*	**Weight or Volume/** *Poids ou Volume*	Value*/ Valeur*	**Country of origin/** *Pays d'origine*	**For Customs Use/ Réservé à la douane** *Identification marks/ Marques d'identification*
1	2	3	4	5	6	7
TOTAL CARRIED OVER / *REPORT*						
TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./*Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*
Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

A.T.A. CARNET **GENERAL LIST**/*LISTE GENERALE* *CARNET A.T.A.*

Item No./ *N° d'ordre*	**Trade description of goods and marks and numbers, if any/** *Désignation commerciale des marchandises et, le cas échéant, marques et numéros*	**Number of Pieces/** *Nombre de Pièces*	**Weight or Volume/** *Poids ou Volume*	Value*/ Valeur*	**Country of origin/** *Pays d'origine* **	**For Customs Use/ Réservé à la douane** *Identification marks/ Marques d'identification*
1	2	3	4	5	6	7
TOTAL CARRIED OVER / *REPORT*						
TOTAL or CARRIED OVER / *TOTAL ou A REPORTER*						

*Commercial value in country/customs territory of issue and in its currency, unless stated differently./*Valeur commerciale dans le pays/territoire douanier d'émission et dans sa monnaie, sauf indication contraire*

Show country of origin if different from country/customs territory of issue of the Carnet, using ISO country codes./Indiquer le pays d'origine s'il est différent du pays/territoire douanier d'émission du carnet, en utilisant le code international des pays ISO*

NOTES ON THE USE OF A.T.A. CARNET

1. All goods covered by the Carnet shall be entered in columns 1 to 6 of the General List. If the space provided for the General List on the reverse of the front cover is insufficient, continuation sheets shall be used.

2. In order to close the General List, the totals of columns 3 and 5 shall be entered at the end of the list in figures and in writing. If the General List (continuation sheets) consists of several pages, the number of continuation sheets used shall be stated in figures and in writing in Box G of the front cover.

3. Each item shall be given an item number which shall be entered in column 1. Goods comprising several separate parts (including spare parts and accessories) may be given a single item number. If so, the nature, the value and, if necessary, the weight of each separate part shall be entered in column 2 and only the total weight and value should appear in columns 4 and 5.

4. When making out the lists on the vouchers, the same item numbers shall be used as on the General List.

5. To facilitate Customs control, it is recommended that the goods (including separate parts thereof) be clearly marked with the corresponding item number.

6. Items answering to the same description may be grouped, provided that each item so grouped is given a separate item number. If the items grouped are not of the same value, or weight, their respective values, and, if necessary, weights shall be specified in column 2.

7. If the goods are for exhibition, the importer is advised in his own interest to enter in Box C of the importation voucher the name and address of the exhibition and of its organiser.

8. The Carnet shall be completed legible and using permanent ink.

9. All goods covered by the Carnet should be examined and registered in the country/Customs territory of departure and, for this purpose should be presented together with the Carnet to the Customs there, except in cases where the Customs regulations of that country/Customs territory do not provide for such examination.

10. If the Carnet has been completed in a language other than that of the country/Customs territory of importation, the Customs may require a translation.

11. Expired Carnet and Carnets which the holder does not intend to use again shall be returned by him to the issuing association.

12. Arabic numerals shall be used throughout.

13. In accordance with ISO Standard 8601, dates must be entered in the following order : year/month/day.

14. When blue transit sheets are used, the holder is required to present the Carnet to the Customs office placing the goods in transit and subsequently, within the time limit prescribed for transit, to the specified Customs "office of destination". Customs must stamp and sign the transit vouchers and counterfoils appropriately at each stage.

NOTICE CONCERNANT L'UTILISATION DU CARNET A.T.A.

1. *Toutes les marchandises placées sous le couvert du carnet doivent figurer dans les colonnes 1 à 6 de la liste générale. Lorsque l'espace réservé à celle-ci, au verso de la couverture, n'est pas suffisant, il y a lieu d'utiliser des feuilles supplémentaires.*

2. *A l'effet d'arrêter la liste générale, on doit mentionner à la fin, en chiffres et en toutes lettres, les totaux des colonnes 3 et 5. Si la liste générale (feuilles supplémentaires) comporte plusieurs pages, le nombre de feuilles supplémentaires doit être indiqué en chiffres et en toutes lettres dans la case G de la couverture.*

3. *Chacune des marchandises doit être affectée d'un numéro d'ordre qui doit être indiqué dans la colonne 1. Les marchandises comportant des parties séparées (y compris les pièces de rechange et les accessoires) peuvent être affectées d'un seul numéro d'ordre. Dans ce cas, il y a lieu de préciser, dans la colonne 2, la nature, la valeur et, en tant que de besoin, le poids de chaque partie, seuls le poids total et la valeur totale devant figurer dans les colonnes 4 et 5.*

4. *Lors de l'établissement des listes des volets, on doit utiliser les mêmes numéros d'ordre que ceux de la liste générale.*

5. *Pour faciliter le contrôle douanier, il est recommandé d'indiquer lisiblement sur chaque marchandise (y compris les parties séparées) le numéro d'ordre correspondant.*

6. *Les marchandises de même nature peuvent être groupées, à condition qu'un numéro d'ordre soit affecté à chacune d'entre elles. Si les marchandises groupées ne sont pas de même valeur ou poids, on doit indiquer leur valeur et, s'il y a lieu, leur poids respectif dans la colonne 2.*

7. *Dans le cas des marchandises destinées à une exposition, il est conseillé à l'importateur, dans son propre intérêt, d'indiquer dans la case C du volet d'importation, le nom de l'exposition et le lieu où elle se tient ainsi que le nom et l'adresse de son organisateur.*

8. *Le carnet doit être rempli de manière lisible et indélébile.*

9. *Toutes les marchandises couvertes par le carnet doivent être vérifiées et prises en charge dans le pays/territoire douanier de départ et y être présentées à cette fin, en même temps que le carnet, à la douane, sauf dans les cas où cet examen n'est pas prescrit par la réglementation douanière de ce pays/territoire douanier.*

10. *Lorsque le carnet est rempli dans une autre langue que celle du pays/ territoire douanier d'importation, la douane peut exiger une traduction.*

11. *Le titulaire restitue à l'association émettrice les carnets périmés ou dont il n'a plus l'usage.*

12. *Toute indication chiffrée doit être exprimée en chiffres arabes.*

13. *Conformément à la Norme ISO 8601, les dates doivent être indiquées dans l'ordre suivant : année/mois/jour.*

14. *Lorsqu'il est fait utilisation des feuillets bleus pour une opération de transit, le titulaire est tenu de présenter son carnet au bureau de mise en transit et ultérieurement, dans les délais fixés pour cette opération, au bureau désigné comme "bureau de destination" de l'opération de transit. Les services douaniers ont l'obligation de donner aux souches et aux volets de ces feuillets la suite qu'il convient.*

Guaranteeing Associations members of IBCC/A.T.A. International Guarantee Chain.
Associations Garantes membres de la Chaîne de Garantie Internationale A.T.A./BICC

Box reserved for use by the issuing Chamber of Commerce
Cadre réservé à la Chambre de Commerce émettrice

As a user of this A.T.A Carnet, you are entitled to the assistance of your A.T.A. contact person at the Chamber of Commerce and Industry of :
Utilisateur de ce Carnet A.T.A., vous bénéficiez de l'assistance de votre correspondant A.T.A. à la Chambre de Commerce et d'Industrie de :

Mr/Mrs :
M./Mme :

Address :
Adresse :

Tel :
Fax :
E-mail :

TO WHOM YOU MUST RETURN THIS CARNET AFTER USE
A QUI VOUS DEVEZ IMPERATIVEMENT RETOURNER CE CARNET APRES UTILISATION

APPENDIX II

CPD carnet



Holder and address / Titulaire et adresse

CPD no. A 000000

Valid for not more than one year, that is until /
Validité n'excédant pas un an, soit jusqu'au

..... **inclusive** / inclus

Issued by / Délivré par

(Name of issuing association/
Nom de l'association émettrice)

The validity of this carnet is subject to compliance by the holder during this period with the customs laws and regulations of the country/ customs territory visited /
Ce carnet reste valable sous réserve que le titulaire ne cesse de remplir, pendant cette période, les conditions prévues par les lois et règlements douaniers du pays/territoire douanier visité.

Validity extended until / Validité prolongée jusqu'au*

CARNET DE PASSAGES EN DOUANE

FOR MOTOR VEHICLES AND TRAILERS / POUR VÉHICULES À MOTEUR ET REMORQUES

This carnet is issued for the vehicle registered in /
Ce carnet est délivré pour le véhicule immatriculé en.....

Under no. /
Sous le n°.....

This carnet, which has been drawn up in accordance with the provisions of the Customs Conventions on the Temporary Importation of Private Road Vehicles (1954) and Commercial Road Vehicles (1956), both amended in 1992, may be used in the countries/customs territories listed on the back cover of this document, under guarantee of the authorized associations indicated.

It is issued on condition that the holder re-exports the vehicle within the specified period of validity and complies with the customs laws and regulations relating to the temporary admission of motor vehicles in the countries/customs territories visited under the guarantee, in each country where the document is valid, of the authorized association affiliated to the undersigned international organization.
ON EXPIRY, THE CARNET MUST BE RETURNED TO THE ASSOCIATION WHICH DELIVERED IT TO THE HOLDER. /

Ce carnet, qui a été élaboré selon les dispositions des Conventions douanières relatives à l'importation temporaire des véhicules routiers privés (1954) et des véhicules routiers commerciaux (1956), révisées en 1992, peut être utilisé dans les pays/territoires douaniers qui figurent au dos de la couverture de ce document, sous la garantie des associations autorisées indiquées.

A charge pour le titulaire de réexporter le véhicule dans le délai de validité imparti et de se conformer aux lois et règlements douaniers sur l'importation temporaire des véhicules à moteur dans les pays/territoires douaniers visités, sous la garantie, dans chaque pays où le document est valable, de l'Association agréée, affiliée à l'organisation internationale soussignée,
À L'EXPIRATION, LE CARNET DOIT ÊTRE RETOURNÉ À L'ASSOCIATION QUI L'A DÉLIVRÉ.

Issued at / Délivré à..... **Date** .....

Signature of International Organizations / Signature des Organisations internationales	**Signature of Issuing Association** / Signature de l'Association émettrice	**Holder's signature** / Signature du titulaire
Responsible, by order, for the administration, AIT Director General Responsable de la gestion, par délégation, Le Directeur Général de l'AIT		

(*) ***See reverse side*** / *Voir verso*

SPECIMEN

4 **DESCRIPTION OF VEHICLE** / SIGNALEMENT DU VEHICULE

5 **Registered in** / Immatriculé en ..... **under no.** / sous le N° .....

6 **Year of manufacture** / Année de construction .....

7 **Net weight of vehicle (kg)** / Poids net du véhicule (kg) .....

8 **Value of vehicle** / Valeur du véhicule .....

9 **Chassis no.** .....

10 **Make** / Marque .....

11 **Engine no.** / Moteur N° .....

12 **Make** / Marque .....

13 **No. of cylinders** / Nombre de cylindres .....

14 **Horsepower** / Nb. de chevaux .....

15 **Coachwork** / Carrosserie

16 **Type (car, lorry...** / voiture, camion...) .....

17 **Colour** / Couleur .....

18 **Upholatery** / Garnitures intérieures .....

19 **No. seats or carrying capacity** / Nombre de places ou C.U. .....

20 **Equipment** / Equipement

Radio (make) / Appareil radio (marque) .....

21 **Spare tyres** / Pneus de rechange .....

22 **Other particulars** / Divers .....

23 .....

For official use only / Pour utilisation officielle seulement

Extension of validity / Prolongation de la validité

SPECIMEN

CARNET DE PASSAGES EN DOUANE
COUNTERFOIL
SOUCHE

1

Importation into / L'entrée en .....

2 **of the vehicle described in this carnet** / du véhicule décrit dans ce carnet

3

4 **took place on** / a eu lieu le .....

5 **at the customs office of** / par le bureau de douane de .....

6

Stamp
Timbre

7 **Customs officer's signature** /
Signature de l'agent de la douane .....

CPD no. A 000000

Valid until / Valable jusqu'au

Exportation from / La sortie de .....

took place on / a eu lieu le .....

at the customs office of / par le bureau de douane de .....

Stamp
Timbre

Customs officer's signature /
Signature de l'agent de la douane .....

CARNET DE PASSAGES EN DOUANE
EXPORTATION VOUCHER
VOLET DE SORTIE

1 **Holder (name, address)** / Titulaire (nom, adresse)

2

3

CPD no. A 000000

Valid until / Valable jusqu'au

Inclusive / inclus

Issued by /
Délivré par

4 **DESCRIPTION OF VEHICLE** / SIGNALEMENT DU VÉHICULE

5 **Registered in** / Immatriculé en .....

6 **Year of manufacture** / Année de construction .....

7 **Net weight of vehicle (kg)** / Poids net du véhicule (kg) .....

8 **Value of vehicle** / Valeur du véhicule .....

9 **Chassis no.** .....

10 **Make** / Marque .....

11 **Engine no.** / Moteur N° .....

12 **Make** / Marque .....

13 **No. of cylinders** / Nombre de cylindres .....

14 **Horsepower** / Nb. de chevaux .....

15 **Coachwork** / Carrosserie

16 **Type (car, lorry...** / voiture, camion...) .....

17 **Colour** / Couleur .....

18 **Upholstery** / Garnitures intérieures .....

19 **No. seats or carrying capacity** / Nombre de places ou C.U. .....

20 **Equipment** / Equipement

Radio (make) / Appareil radio (marque) .....

21 **Spare tyres** / Pneus de rechange .....

22 **Other particulars** / Divers .....

23 .....

under no. / sous le N° .....

Date of exportation /
Date de sortie

Customs office of exportation /
Bureau de douane de sortie

Voucher registered under no. /
Volet pris en charge sous le N° .....

Stamp
Timbre

Customs officer's signature /
Signature de l'agent de la douane .....

To be returned to the customs office of importation at /
A retourner au bureau de douane d'entrée de .....

where the carnet was registered under no. /
où le carnet a été pris en charge sous le N° .....

CARNET DE PASSAGES EN DOUANE
IMPORTATION VOUCHER
VOLET D'ENTRÉE

1 **Holder (name, address)** / Titulaire (nom, adresse)

2

3

CPD no. A 000000

Valid until / Valable jusqu'au

Inclusive / inclus

Issued by /
Délivré par

4 **DESCRIPTION OF VEHICLE** / SIGNALEMENT DU VÉHICULE

5 **Registered in** / Immatriculé en .....

6 **Year of manufacture** / Année de construction .....

7 **Net weight of vehicle (kg)** / Poids net du véhicule (kg) .....

8 **Value of vehicle** / Valeur du véhicule .....

9 **Chassis no.** .....

10 **Make** / Marque .....

11 **Engine no.** / Moteur N° .....

12 **Make** / Marque .....

13 **No. of cylinders** / Nombre de cylindres .....

14 **Horsepower** / Nb. de chevaux .....

15 **Coachwork** / Carrosserie

16 **Type (car, lorry...** / voiture, camion...) .....

17 **Colour** / Couleur .....

18 **Upholstery** / Garnitures intérieures .....

19 **No. seats or carrying capacity** / Nombre de places ou C.U. .....

20 **Equipment** / Equipement

Radio (make) / Appareil radio (marque) .....

21 **Spare tyres** / Pneus de rechange .....

22 **Other particulars** / Divers .....

23 .....

under no. / sous le N° .....

Date of importation /
Date d'entrée

Customs office of importation /
Bureau de douane d'entrée

Voucher registered under no. /
Volet pris en charge sous le N° .....

Stamp
Timbre

Customs officer's signature /
Signature de l'agent de la douane .....

N.B. The customs officer must fill in the lines indicated on the above exportation voucher /
La douane d'entrée doit remplir le volet de sortie ci-dessus aux lignes indiquées

SPECIMEN

CERTIFICATE OF LOCATION
CERTIFICAT DE PRÉSENCE

Name of country / Nom du pays .....

The undersigned authority / l'autorité soussignée .....

certifies that this day / certifie que ce jour ..... (**date to be given in full** / préciser la date)

a vehicle was produced at / un véhicule a été présenté à ..... (**place and country** / lieu et pays)

by / par ..... (**name, address** / nom, adresse)

The vehicle was found on examination to be of the description mentioned hereunder: /
Il a été constaté que ce véhicule répondait aux caractéristiques mentionnées ci-dessous:

DESCRIPTION OF VEHICLE / SIGNALEMENT DU VÉHICULE

Registered in / Immatriculé en .....

under no. / sous le N° .....

Year of manufacture / Année de construction .....

Net weight of vehicle (kg) / Poids net du véhicule (kg) .....

Value of vehicle / Valeur du véhicule .....

Chassis no. .....

Make / Marque .....

Engine no. / Moteur N° .....

Make / Marque .....

No. of cylinders / Nombre de cylindres .....

Horsepower / Nb. de chevaux .....

Coachwork / Carrosserie

Type (car, lorry... / voiture, camion...) .....

Colour / Couleur .....

Upholstery / Garnitures intérieures .....

No. seats or carrying capacity / Nombre de places ou C.U. .....

Equipment / Equipement

Radio (make) / Appareil radio (marque) .....

Spare tyres / Pneus de rechange .....

Other particulars / Divers .....

.....

A.* **This examination has been made on presentation of the carnet de passages issued for the vehicle described here.** /
Cet examen a été effectué sur présentation du carnet de passages délivré pour le véhicule décrit ci-contre.

CPD no. A 000000

Issued by /
Délivré par .....

B.* **No temporary importation papers were produced** /
Il n'a été présenté aucun titre d'importation temporaire

Stamp
Timbre

Date and place of signature / Date et lieu de signature

Official position / Qualité du (des) signataire(s)

Signature(s)

(*) ***Choose formula A or B as applicable*** /
Formule A ou B à adopter suivant le cas

SPECIMEN

IMPORTANT

The carnet de passages en douane guarantees payment of import duties and taxes if a temporarily imported vehicle is not duly re-exported.

For the carnet to be regularly discharged, the exportation voucher corresponding to the importation voucher which was stamped by the customs on entry must be stamped by the customs when the vehicle leaves the country.

However, it may occur that a carnet is not regularly discharged. In such case, the customs authorities will require proof of re-exportation, failing which import duties and taxes will have to be paid.

In order to avoid difficulties in establishing proof of re-exportation, please have this certificate of location stamped at the frontier customs office of the country of issue of this carnet when you return. The certificate should then be returned with the carnet to the issuing club so that it may discharge you from your liabilities.

This certificate must be completed either by a consular authority of the country in which the papers should have been discharged, or by an official authority (customs, police, mayor, judicial officer, etc.) of the country in which the vehicle is examined.

AVIS IMPORTANT

Le carnet de passages en douane garantit le paiement des droits et taxes d'importation au cas où un véhicule importé temporairement dans le territoire n'est pas dûment réexporté.

Pour qu'un carnet soit régulièrement déchargé, le volet de sortie correspondant au volet d'entrée sur lequel la douane a apposé un timbre à l'entrée doit être tamponné par la douane quand le véhicule quitte le pays.

Toutefois, il peut arriver qu'un carnet ne soit pas régulièrement déchargé. Dans un tel cas, les autorités douanières exigent la preuve de réexportation du véhicule, faute de quoi elles exigeront le paiement des droits et taxes d'importation.

Afin d'éviter d'éventuelles difficultés pour fournir la preuve de la réexportation, nous vous prions de faire timbrer ce certificat de présence par la douane du pays d'émission du carnet lors de votre retour dans ce pays. Ce certificat doit alors être retourné, avec le carnet, au club émetteur, afin de lui permettre de vous dégager de votre responsabilité.

Ce certificat doit être rempli soit par une autorité consulaire du pays où le titre d'importation temporaire aurait dû être déchargé, soit par une autorité officielle (douane, police, maire, huissier, etc.) du pays où le véhicule a été présenté.

DIRECTIONS FOR USE

1. Each page of the carnet provides for the temporary importation of the vehicle into one of the countries mentioned and not deleted, from the back cover. The period of temporary importation is fixed by the laws or regulations of the country visited.

2. On entry, the customs detach and retain the importation voucher, indicate on the exportation voucher the name of the customs office of importation and the number under which the carnet was registered; they must also stamp the counterfoil (importation) with the official stamp of the office indicating the name of the customs office of importation, the date of entry and the signature of the customs official. **The holder of the carnet must ensure on the spot that all entries are properly recorded in the document and, if necessary, have it completed or corrected.**

3. On exit, the customs detach and retain the exportation voucher; they must stamp the counterfoil (exportation) with the official stamp of the office, indicating the name of the customs office of exportation, the date of exit and the signature of the customs official. **The holder of the carnet must ensure that all exits are properly recorded in the document and, if necessary, have it completed or corrected.**

4. The certificate of location on the last page of the carnet must be used in accordance with the instructions given on it, or the specific instructions given by the issuing association.

5. The period of validity of the carnet lasts for a maximum of one year.If necessary, a request for the carnet to be extended must be sent to the association in the country visited; or if such an association does not exist, directly to the issuing association. In all circumstances, the holder must ensure that he complies with the conditions of temporary importation.

6. The carnet is the property of the issuing association, and must in all cases be returned to it, duly regularised, at the latest, on the date of expiry. It is recommended that the holder should not part with his vehicle (sale, destruction, etc.) before being released from the contractual liabilities which he has incurred with the issuing association.

7. Any change to be made in the carnet, either with regard to the holder (name, address, etc.) or the vehicle (change of engine, colour, etc.) must be previously authorised by the issuing association, or through the association in the country visited. These changes must be approved by the customs in the country visited.

8. The carnet must not be used for any country where the holder is normally resident. The vehicle temporarily imported under cover of a carnet must not be loaned, abandoned, hired, sold or otherwise disposed of without the prior agreement of the customs administration of the country visited and of the issuing association.

9. Should a carnet be lost, destroyed or otherwise mislaid while the vehicle is abroad, or in the case of theft or abandonment of the vehicle, the holder should immediately advise the issuing association, either directly or through the association in the country visited, and follow the instructions that he will be given.

MODE D'EMPLOI

1. Chaque feuillet du carnet correspond à un séjour temporaire du véhicule dans un des pays cités, et non rayés, sur la liste des pays figurant au dos de la couverture du carnet. La période d'importation temporaire est fixée selon les législations et réglementations du pays visité.

2. A l'entrée, la douane détache et retient le volet d'entrée, indique sur le volet de sortie le nom du bureau de douane d'entrée et le numéro de prise en charge du carnet: elle doit apposer le timbre officiel du bureau sur la souche (importation) indiquant le nom du bureau de douane d'importation, la date d'entrée et la signature de l'agent de la douane. **Le titulaire du carnet doit vérifier sur-le-champ que toute entrée est enregistrée en bonne et due forme et, le cas échéant, la faire compléter ou rectifier.**

3. A la sortie, la douane détache et conserve le volet de sortie; elle doit apposer son timbre officiel sur la souche (exportation) en indiquant le nom du bureau de douane d'exportation, la date de sortie et la signature de l'agent de la douane. **Le titulaire du carnet doit vérifier sur-le-champ que toute sortie est enregistrée en bonne et due forme et, le cas échéant, la faire compléter ou rectifier.**

4. Le certificat de présence figurant à la dernière page du carnet doit être utilisé conformément aux instructions fournies sur ce certificat ou à celles données, en complément, par l'association émettrice.

5. La période de validité du carnet est de 1 an au maximum. En cas de nécessité de prolonger la validité du carnet, une demande de prolongation doit être formulée auprès de l'association du pays visité ou, en l'absence d'une telle association, directement auprès de l'association émettrice. Dans tous les cas, le titulaire doit s'assurer qu'il continue de remplir les conditions d'importation temporaire.

6. Le carnet, propriété de l'association émettrice, doit dans tous les cas lui être retourné, dûment régularisé, au plus tard à la date de son expiration. Il est vivement recommandé aux titulaires de ne pas se séparer de leur véhicule (vente, destruction, etc.), avant d'être libérés des obligations contractuelles qu'ils ont souscrites auprès de l'association émettrice.

7. Toute modification apportée au carnet concernant le titulaire (nom, adresse, etc.) ou le véhicule (changement de moteur, de couleur, etc.) doit faire l'objet d'une autorisation préalable délivrée par l'association émettrice, ou par l'intermédiaire de l'association du pays visité. Ces modifications doivent être approuvées par l'administration douanière du pays visité.

8. Le carnet ne doit pas être utilisé dans un pays où le titulaire a sa résidence habituelle. Le véhicule importé temporairement sous couvert d'un carnet ne doit être ni prêté, ni loué, ni vendu, ni abandonné d'aucune autre manière sans l'accord préalable de l'administration douanière du pays visité et du club émetteur.

9. Lorsqu'un carnet est perdu, détruit ou égaré alors que le véhicule se trouve à l'étranger, ou en cas de vol ou d'abandon du véhicule, le titulaire doit immédiatement en informer l'association émettrice soit directement, soit par l'intermédiaire de l'association du pays visité, et suivre les instructions qui lui seront données.

SPECIMEN

This carnet, which has been drawn up in accordance with the provisions of the Customs Conventions on the Temporary Importation of Private Road Vehicles (1954) and Commercial Road Vehicles (1956), both amended in 1992, may be used in the following countries under guarantee of the authorized associations indicated: /

Ce carnet, qui a été élaboré selon les dispositions des Conventions douanières relatives à l'importation temporaire des véhicules routiers privés (1954) et des véhicules routiers commerciaux (1956), révisées en 1992, peut être utilisé dans les pays suivants, sous la garantie des associations autorisées ci-après.

SPECIMEN

AFRICA

Benin: Automobile Club de France
Bophuthatswana: Automobile Association of South Africa
Botswana: Automobile Association of South Africa
Burkina Faso: Automobile Club de France
Cameroun: Automobile Club de France
Central African Republic: Automobile Club de France
Chad: Automobile Club de France
Ciskei: Automobile Association of South Africa
Comoros: Automobile Club de France
Congo: Automobile Club de France
Egypt: Automobile & Touring Club d'Egypte
Gabon: Automobile Club de France
Guinea-Bissau: Automobile Club de France
Ivory Coast: Automobile Club de France
Kenya: Automobile Association of Kenya
Lesotho: Automobile Association of South Africa
Libya: Automobile & Touring Club de Libye
Madagascar: Automobile Club de France
Malawi: Automobile Association of Zimbabwe
Mali: Automobile Club de France
Mauritania: Automobile Club de France
Namibia: Automobile Association of South Africa
Niger: Automobile Club de France
Senegal: Touring Club du Sénégal
South Africa (Republic of):
Automobile Association of South Africa
Swaziland: Automobile Association of South Africa
Togo: Automobile Club de France
Zimbabwe: Automobile Association of Zimbabwe

AMERICA

Argentina: Automovil Club Argentino
Canada: Canadian Automobile Association
Chile: Automovil Club de Chile
Colombia: Touring y Automovil Club de Colombia
Costa Rica: Automovil - Touring Club de Costa Rica
Dutch Antilles: Koninklijke Nederlandse Toeristenbond ANWB
Ecuador: Automovil Club del Ecuador (ANETA)
Mexico: Automovil Club de Mexico
Paraguay: Touring y Automovil Club Paraguayo
Peru: Touring y Automovil Club del Peru
Surinam: Koninklijke Nederlandse Toeristenbond ANWB
Trinidad & Tobago: Trinidad & Tobago Automobile Association
Uruguay: Automovil Club del Uruguay
Venezuela: Touring y Automovil Club de Venezuela

ASIA & THE MIDDLE EAST

Bahrain: Qatar Automobile and Touring Club
Bangladesh: Automobile Association of Bangladesh
India: Federation of Indian Automobile Associations
Indonesia: Ikatan Motor Indonesia
Iran: Touring and Automobile Club Islamic Republic of Iran
Iraq: Iraq Automobile and Touring Association
Japan: Japan Automobile Federation (JAF)
Jordan: Royal Automobile Club of Jordan
Kuwait: Kuwait Automobile and Touring Club
Lebanon: Automobile et Touring Club du Liban
Malaysia: Automobile Association of Malaysia
Oman: Oman Automobile Association
Pakistan: Automobile Association of Pakistan
Qatar: Qatar Automobile and Touring Club
Singapore: Automobile Association of Singapore
Sri Lanka: Automobile Association of Ceylon
Syria: Automobile-Club de Syrie
United Arab Emirates:
Automobile & Touring Club for United Arab Emirates

EUROPE

Belgium*: Royal Automobile Club de Belgique
Denmark*: Forenede Danske Motorejere
Finland*: Automobile and Touring Club of Finland (Autoliitto)
Greece*: Automobile and Touring Club of Greece (ELPA)
Italy*: Automobile Club d'Italia
Monaco*: Automobile Club de France
Netherlands: Koninklijke Nederlandse Toeristenbond ANWB
Turkey*: Türkiye Turing ve Otomobil Kurumu (TTOK)

OCEANIA

Australia: Australian Automobile Association
New Zealand: New Zealand Automobile Association
Vanuatu: Automobile Club de France





* In these countries, the carnet is required only for certain categories of vehicles.
Dans ces pays, le carnet est exigé uniquement pour certaines catégories de véhicules.

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ANNEX B.1

ANNEX CONCERNING GOODS FOR DISPLAY OR USE AT EXHIBITIONS, FAIRS, MEETINGS OR SIMILAR EVENTS

CHAPTER I

Definitions

Article 1

For the purposes of this Annex, the term "event" means :

1. a trade, industrial, agricultural or crafts exhibition, fair, or similar show or display;
2. an exhibition or meeting which is primarily organized for a charitable purpose ;
3. an exhibition or meeting which is primarily organized to promote any branch of learning, art, craft, sport or scientific, educational or cultural activity, to promote religious knowledge or worship, to promote tourism or to promote friendship between peoples ;
4. a meeting of representatives of any international organization or international group of organizations ; or
5. a representative meeting of an official or commemorative character;

except exhibitions organized for private purposes in shops or business premises with a view to the sale of foreign goods.

CHAPTER II

Scope

Article 2

1. The following goods shall be granted temporary admission in accordance with Article 2 of this Convention :

   (a) goods intended for display or demonstration at en event, including the materials referred to in the Annexes to the Agreement on the importation of educational, scientific and cultural materials, UNESCO, New York, 22 November 1950, and to the Protocol thereto, Nairobi, 26 November 1976;

   (b) goods intended for use in connection with the display of foreign products at an event, including :

(i) goods necessary for the purpose of demonstrating foreign machinery or apparatus to be displayed,

(ii) construction and decoration material, including electrical fittings, for the temporary stands of foreign exhibitors,

(iii) advertising and demonstration material which is demonstration publicity material for the foreign goods displayed, for example, sound and image recordings, films and lantern slides, as well as apparatus for use therewith;

(c) equipment including interpretation equipment, sound and image recording apparatus and films of an educational, scientific or cultural character intended for use at international meetings, conferences or congresses .

2. For the facilities referred to in this Annex to apply :

(a) the number or quantity of each article must be reasonable having regard to the purpose of importation ;
(b) the Customs authorities of the territory of temporary admission must be satisfied that the conditions of this Convention shall be fulfilled.

CHAPTER III

Miscellaneous provisions

Article 3

Unless the national legislation of the territory of temporary admission so permits, goods granted temporary admission shall not, whilst they are the subject of the facilities granted under this Convention :

(a) be loaned, or used in any way for hire or reward; or

(b) be removed from the place of the event.

Article 4

1. The period for the re-exportation fo goods imported for display or use at exhibitions, fairs, meetings or similar events shall be at lest six months from the date of temporary admission .

2. Notwithstanding the provisions of paragraph 1 of this Article the Customs authorities shall allow such goods which are to be displayed or used at a subsequent event to remain within the territory of temporary admission, subject to compliance with such conditions as may be required by the laws and regulations of that territory and provided that the goods are re-exported within one year of the date of temporary admission .

Article 5

1. Under the terms of Article 13 of this Convention, clearance for home use shall be granted free of import duties and taxes and without application of import prohibitions or restrictions in respect of the following goods :

a) small samples which are representative of foreign goods displayed at an event, including such samples of foods and beverages, either imported in the form of such samples or produced from imported bulk materials at that event, provided that :

(i) they are supplied free of charge from abroad and are used solely for distribution free of charge to the visiting public at the event, for individual use or consumption by the persons to whom they are distributed,

(ii) they are identifiable as advertising samples and are individually of little value,

(iii) they are unsuitable for commercial purposes and are, where appropriate, packed in quantities appreciably smaller than the smallest retail package,

(iv) samples of foods and beverage which are not distributed in packs as provided for in (iii) above are consumed at the event, and

(v) the aggregate value and quantity of the sample are, in the opinion of the Customs authorities of the territory of temporary admission, reasonable having regard to the nature of the event, the number of visitors to it and the extent of the exhibitor's participation therein ;

b) Goods imported solely for demonstration or for the purpose of demonstrating the operation of a foreign machine or apparatus displayed at an event and consumed or destroyed on the course of such demonstration, provided that the aggregate value and quantity of such goods are, in the opinion of the Customs authorities of the territory of temporary admission, reasonable having regards to the nature of the event, the number of visitors to it and the extent of the exhibitor's participation therein

c) products of low value used up in constructing, furnishing, or decorating the temporary stands of foreign exhibitors at an event, such as paint, varnish and wallpaper;

d) printed matter, catalogues, trade notices, price lists, advertising posters, calendars, whether or not illustrated, and unframed photographs which are demonstrably publicity material for the foreign goods displayed at an event, provided that :

(i) they are supplied free of charge from abroad and are used solely for distribution free of charge to the visiting public at the event, and

(ii) the aggregate value and quantity of such goods are, in the opinion of the Customs authorities of the territory of temporary admission, reasonable having regard to the nature of the event, the number of visitors to it and the extent of the exhibitor's participation therein;

e) files, records, forms and other documents which are imported for use as such at, or in connection with, international meetings, conferences or congresses.

2. The provisions of paragraph 1 of this Article shall not be applicable to alcoholic beverages, tobacco goods and fuels .

Article 6

1. Customs examination and clearance on the importation and re-exportation of goods which are to be, or have been, displayed or used at an event shall, whenever possible and appropriate, be effected at that event.

2. Each Contracting Party shall endeavour, wherever it deems it appropriate in view of the importance and size of the event, to establish a Customs office for a reasonable period on the premises of an event held within its territory.

Article 7

Products obtained incidentally during the event from temporarily imported goods, as a result of the demonstration of displayed machinery or apparatus, shall be subject to the provisions of this Convention .

Article 8

Each Contracting Party shall have the right to enter a reservation, in accordance with Article 29 of this Convention, in respect of the provisions of Article 5, paragraph 1 (a) of this Annex .

Article 9

Upon its entry into force, this Annex shall, in accordance with Article 27 of this Convention, terminate and replace the Customs Convention concerning facilities for the importation of goods for display or use at exhibitions, fairs, meetings or similar events, Brussels, 8 June 1961, in relations between the Contracting Parties which have accepted this Annex and are Contracting Parties to that Convention .

ANNEX B.2

ANNEX CONCERNING PROFESSIONAL EQUIPMENT

CHAPTER I

Definition

Article 1

For the purposes of this Annex, the term "professional equipment" means :

1. equipment for the press of for sound or television broadcasting which is necessary for representatives of the press or of broadcasting or television organizations visiting the territory of another country for purposes of reporting or in order to transmit or record material for specified programmes . An illustrative list of such equipment is set out at Appendix I to this Annex ;

2. cinematographic equipment necessary for a person visiting the territory of another country in order to make a specified film or films. An illustrative list of such equipment is set out at Appendix II to this Annex ;

3. any other equipment necessary for the exercise of the calling, trade or profession of a person visiting the territory of another country to perform a specified task. It does not include equipment which is to be used for the industrial manufacture or packaging of goods or (except in the case of hand tools) for the exploitation of natural resources, for the construction, repair or maintenance of buildings or for earth moving and like projects. An illustrative list of such equipment is set out at Appendix III to this Annex ;

4. ancillary apparatus for the equipment mentioned in Items 1, 2 and 3 of this Article, and accessories therefore .

CHAPTER II

Scope

Article 2

The following goods shall be granted temporary admission in accordance with Article 2 of this Convention :

(a) professional equipment;

(b) component parts imported for repair of professional equipment temporarily admitted under paragraph (a) above .

CHAPTER III

Miscellaneous provisions

Article 3

1. For the facilities granted by this Annex to apply, the professional equipment shall be :

(a) owned by a person established or resident outside the territory of temporary admission ;

(b) imported by a person established or resident outside the territory of temporary admission ;

(c) used solely by or under the personal supervision of the person visiting the territory of temporary admission .

2. Paragraph 1 (c) of this Article shall not apply in the case of equipment imported for the production of a film, television programme or audiovisual works, under a co-production contract to which a person established in the territory of temporary admission is a party and which is approved by the competent authorities of that territory under an inter-governmental agreement concerning co-production.

3. The cinematographic equipment and equipment for the press of for sound or television broadcasting shall not be the subject of a hire contract or similar arrangement to which a person established in the territory of temporary admission is a party, provided that this condition shall not apply in the case of joint sound or television broadcasting programmes .

Article 4

1. Temporary admission of radio and television production and broadcasting equipment and specially adapted radio or television vans and their equipment, imported by public or private bodies approved for that purpose by the Customs authorities of the territory of temporary admission, shall be granted without a Customs document or security being required.

2. The Customs authorities may require the production of a list or detailed inventory of the equipment referred to in paragraph 1 of this Article together with a written undertaking to re-export.

Article 5

The period for the re-exportation of professional equipment shall be at least twelve months from the date of temporary admission . The period for the re-exportation of vehicles may, however, be determined with due regard to the purpose and the intended length of the stay in the territory of temporary admission .

Article 6

Each Contracting Party shall have the right to refuse or withdraw temporary admission in respect of vehicles referred to in Appendices I to III to this Annex, which, even on an occasional basis, embark persons for remuneration or load goods on its territory for disembarkation or unloading at a place within the same territory .

Article 7

The Appendices to this Annex shall be construed to be an integral part thereof .

Article 8

Upon its entry into force this Annex shall, in accordance with Article 27 of this Convention, terminate and replace the Customs Convention on the temporary importation of professional equipment, Brussels, 8 June 1961, in relations

between the Contracting Parties which have accepted this Annex and are Contracting Parties to that Convention .

APPENDIX I

Equipment for the press or for sound or television broadcasting

Illustrative list

A. Equipment for the press, such as :

- personal computers;

- telefax equipment;

- typewriters;

- cameras of all kinds (film and electronic cameras) ;

- sound or image transmitting, recording or reproducing apparatus (tape and video recorders and video reproducers, microphones, mixing consoles, loudspeakers);

- sound or image recording media, blank or recorded ;

- testing and measuring instruments and apparatus (oscillographs, tape and video recorder test systems, multimeters, tool boxes and bags, vectorscopes, video generators, etc.);

- lighting equipment (spotlights, converters, tripods);

- operational accessories (cassettes, exposure meters, lenses, tripods, accumulators, battery belts, battery chargers, monitors).

B. Sound broadcasting equipment, such as :

- telecommunication equipment such as broadcast transmitter-receivers or transmitters; terminals connectable to network or cable, satellite links;

- audio frequency production equipment (sound pick-up, recording or reproducing apparatus);

- testing and measuring instruments and apparatus (oscillographs, tape and video recorder test systems, multimeters, tool boxes and bags, vectorscopes, video generators, etc.);

- operational accessories (clocks, stop-watches, compasses, microphones, mixing consoles, sound tapes, generating sets, transformers, batteries and accumulators, battery chargers, heating, air)conditioning and ventilating apparatus, etc;);

- sound recording media, blank or recorded.

C. Television broadcasting equipment, such as :

- television cameras ;

- telecinema;

- testing and measuring instruments and apparatus;

- transmission and retransmission apparatus;

- communication apparatus;

- sound or image recording or reproducing apparatus (tape and video recorders and video reproducers, microphones, mixing consoles, loudspeakers);

- lighting equipment (spotlights, converters, tripods);

- editing equipment;

- operational accessories (clocks, stop-watches, compasses, lenses, exposure meters, tripods, battery chargers, cassettes, generating sets, transformers, batteries and accumulators, heating, air)conditioning and ventilating apparatus, etc);

- sound or image recording media, blank or recorded (credit titles, station call signs, music inserts, etc);

- "film rushes" ;

- musical instruments, costumes, scenery and other stage properties, pedestals, make-up material, hairdryers .

D. Vehicles designed or specially adapted for the purposes specified above, such as :

- television transmitting vehicles;

- vehicles for television accessories;

- video tape recording vehicles;

- sound recording and reproducing vehicles;

- slow motion vehicles;

- light vehicles .

APPENDIX II

Cinematrographic equipment

Illustrative list

A. Equipment, such as /

- cameras of all kinds (film and electronic cameras) ;

- testing and measuring instruments and apparatus (oscillographs, tape and video recorder test systems, multimeters, tool boxes and bags, vectorscopes, video generators, etc.);

- camera "dollies" and booms;

- lighting equipment (spotlights, converters, tripods);

- editing equipment;

- sound or image recording or reproducing apparatus (tape and video recorders and video reproducers, microphones, mixing consoles, loudspeakers);

- sound or image recording media, blank or recorded (credit titles, station call signs, music inserts, etc.) ;

- "film rushes" ;

- operational accessories (clocks, stop-watches, compasses, microphones, mixing consoles, sound tapes, generating sets, transformers, batteries and accumulators, battery chargers, heating, air-conditioning and ventilating apparatus, etc.);

- musical instruments, costumes, scenery and other stage properties, pedestals, make-up material, hairdryers .

B. Vehicles designed or specially adapted for the purposes specified above .

APPENDIX III

Other equipment

Illustrative list

A. Equipment for erection, testing, commissioning, checking, control, maintenance or repair of machinery, plant, means of transport, etc., such as :

- tools;

- measuring, checking or testing equipment and instruments (temperature, pressure, distance, height, surface,

speed, etc.), including electrical instruments (voltmeters, ammeters, measuring cables, comparators, transformers, recording instruments, etc.) and jigs;

- apparatus and equipment for taking photographs of machines and plant during or after erection;

- apparatus for survey of ships.

B. Equipment necessary for businessmen, business efficiency consultants, productivity experts, accountants and members of similar professions, such as :

- personal computers;

- typewriters;

- sound or image transmitting, recording or reproducing apparatus;

- calculating instruments and apparatus.

C. Equipment necessary for experts undertaking topographical surveys or geophysical prospecting work, such as :

- measuring instruments and apparatus;

- drilling equipment;

- transmission and communication equipment.

D. Equipment necessary for experts combating pollution.

E. Instruments and apparatus necessary for doctors, surgeons, veterinary surgeons, midwives and members of similar professions.

F. Equipment necessary for archeologists, paleontologists, geographers, zoologists and other scientists.

G. Equipment necessary for entertainers, theatre companies and orchestras, including all articles used for public or private performances (musical instruments, costumes, scenery, etc.).

H. Equipment necessary for lecturers to illustrate their lectures.

I. Equipment necessary for photography trips (cameras of all kinds, cassettes, exposure meters, lenses, tripods, accumulators, battery belts, battery chargers, monitors, lighting equipment, fashion goods and accessories for models, etc.).

J. Vehicles designed or specially adapted for the purposes specified above, such as mobile inspection units, traveling workshops and traveling laboratories.

ANNEX B.3

ANNEX CONCERNING CONTAINERS, PALLETS, PACKINGS, SAMPLES AND OTHER GOODS IMPORTED IN CONNECTION WITH A COMMERCIAL OPERATION

CHAPTER I

Definitions

Article 1

For the purposes of this Annex, the term :

a) "goods imported in connection with a commercial operation" means :

containers, pallets, packings, samples, advertising film and any other goods imported in connection with a commercial operation but whose importation does not in itself constitute a commercial operation ;

b) "packing" means :

all articles and material used, or to be used, in the state in which they are imported, to pack, protect, stow or separate goods, excluding packing materials such as straw, paper, glasswool, shavings, etc., when imported in bulk. Containers and pallets, as defined in Items (c) and (d) of this Article respectively, are also excluded ;

c) "containers" means :

an article of transport equipment (lift-van, movable tank or other similar structure) :
(i) fully or partially enclosed to constitute a compartment intended for containing goods;

(ii) of a permanent character and accordingly strong enough to be suitable for repeated use,

(iii) specially designed to facilitate the carriage of goods, by one or more modes of transport, without intermediate reloading,

(iv) designed for ready handling, particularly when being transferred from one mode of transport to another,

(v) designed to be easy to fill and to empty, and

(vi) having an internal volume of one cubic meter or more.

"container" shall include the accessories and equipment of the container, appropriate for the type concerned, provided that such accessories and equipment are carried with the container. The term "container" shall not include vehicles, accessories or spare parts of vehicles, or packaging or pallets. "Demountable bodies" shall be regarded as containers;

d) "pallet" means :

a device on the deck of which a quantity of goods can be assembled to form a unit load for the purpose of transporting it, or of handling or stacking it with the assistance of mechanical appliances. This device is made up of two decks separated by bearers, or of a single deck supported by feet; its overall height is reduced to the minimum compatible with handling by fork lift trucks or pallet trucks; it may or may not have a superstructure;

e) "samples" means :

articles which are representative of a particular category of goods already produced or are examples of goods the production of which is contemplated, but does not include identical articles brought in by the same individual, or sent to a single consignee, in such quantity that, taken as a whole, they no longer constitute samples under ordinary commercial usage ;

f) "advertising films" means :

recorded visual media, with or without sound track, consisting essentially of images showing the nature or operation of products or equipment put up for sale or hire by a person established or resident outside the territory of temporary admission, provided that the films are of a kind suitable for exhibition to prospective customers but not for general exhibition to the public; and are imported in a packet which contains not more than one copy of each film and which does not form part of a larger consignment of films ;

g) "internal traffic" means :

the carriage of goods loaded in the Customs territory of a Contracting Party for unloading at a place within the Customs territory of the same Contracting Party.

CHAPTER II

Scope

Article 2

The following goods imported in connection with a commercial operation shall be granted temporary admission in accordance with Article 2 of this Convention :

a) packings which are imported filled for re-exportation empty or filled, or are imported empty for re-exportation filled ;

b) containers, whether or not filled with goods, and accessories and equipment for temporarily admitted containers, which are either imported with a container to be re-exported separately or with another container, or are imported separately to be re-exported with a container;

c) component parts intended for the repair of containers granted temporary admission under Item (b) of this Article;

d) pallets;

e) Samples;

f) advertising films;

g) any other goods imported for any of the purposes listed at Appendix I to this Annex in connection with a commercial operation but whose importation does not in itself constitute a commercial operation.

CHAPTER III

Miscellaneous provisions

Article 3

The provisions of this Annex do not affect the Customs legislation of Contracting Parties in respect of the importation of goods carried in containers or packings, or on pallets .

Article 4

1. For the facilities granted by this Annex to apply :

(a) packings can be re-exported only by the person to whom the temporary admission facilities were granted. They shall not, even occasionally, be used in internal traffic ;

(b) containers must be marked in the manner prescribed in Appendix II to this Annex. They must be used for the carriage of goods in internal traffic, in which case each Contracting Party shall be entitled to impose the following conditions :

- the journey shall bring the container by a reasonably direct route to, or nearer to, the place where export cargo is to be loaded or from where the container is to be exported empty;

- the container will be used only once in internal traffic before being re-exported ;

(c) pallets or an equal number of pallets of the same type and substantially the same value must have been previously exported or will be subsequently exported or re-exported ;

(d) samples and advertising films must be owned by a person established or resident outside the territory of temporary admission and must be imported solely for the purpose of being shown or demonstrated in the territory of temporary admission, for the soliciting of orders for goods to be imported into that territory. They may not be sold or put to normal use except for the purposes of demonstration, of used in any way for hire or reward while in the territory of temporary admission ;

(e) the goods referred to in Items 1 and 2 of Appendix I to this Annex shall not be used for gainful activity .

2. Each Contracting Party shall have the right to refuse temporary admission to containers, pallets or packings which have been the subject of purchase, hire-purchase, lease or a contract of a similar nature, concluded by a person established or resident in its territory .

Article 5

1. Temporary admission of containers, pallets and packings shall be granted without a Customs document or security being required .

2. In lieu of a Customs document and security for containers, the person to whom the temporary admission facilities are granted may re required to undertake in writing :

(i) to supply to the Customs authorities, at their request, detailed information concerning the movements of each container granted temporary admission including the dates and places of entry into and exit from the territory of temporary admission; or a list of containers with an undertaking to re-export,

(ii) to pay such import duties and taxes as may be required in cases where the conditions of temporary admission have not been fulfilled .

3. In lieu of a Customs document and security for pallets and packings, the person to whom the temporary admission facilities are granted may be required to produce to the Customs authorities a written undertaking to re-export .

4. Persons who regularly use the temporary admission procedure shall be authorized to provide a general undertaking.

Article 6

This period for the re-exportation of goods imported in connection with a commercial operation shall be at least six months from the date of temporary admission .

Article 7

Each Contracting Party shall have the right to enter a reservation, in accordance with Article 29 of this Convention, in respect of :

(a) no more than three groups of goods listed in Article 2;

(b) Article 5, paragraph 1; of this Annex .

Article 8

The Appendice to this Annex shall be construed to be an integral part thereof.

Article 9

Upon its entry into force this Annex shall, in accordance with Article 27 of this Convention, terminate and replace the following Conventions and provisions :

- European Convention on Customs treatment of pallets used in international transport, Geneva, 9 December 1960

- Customs Convention on the temporary importation of packings, Brussels, 6 October 1960

- Articles 2-11 and Annexes 1 (paragraphs 1 and 2) -3 to the Customs Convention on Containers, Geneva, 2 December 1972

- Articles 3, 5 and 6 (1.b and 2) to the International Convention to facilitate the importation of commercial samples and advertising material, Geneva, 7 November 1952

in relations between the Contracting Parties which have accepted this Annex and are Contracting Parties to those Conventions .

APPENDIX I

List of goods under Article 2 (g)

1. Goods imported for testing, checking, experiments of demonstrations.

2. Goods for use in testing, checking, experiments or demonstrations.

3. Printed and developed cinematographic film, positives and other recorded image-bearing medial intended for viewing prior to their commercial use .

4. Films, magnetic tapes, magnetized films and other sound- or image-bearing media intended for sound tracking, dubbing or reproduction.

5. Data-carrying media, sent free of charge, for use in automatic data processing.

6. Articles (including vehicles) which, by their nature, are unsuitable for any purpose other than advertising of specific articles or publicity for a specific purpose.

APPENDIX II

Provisions concerning the marking of containers

1. The following information shall be durably marked in an appropriate and clearly visible place on containers :

   (a) the identification of the owner or principal operator;

   (b) the identification marks and numbers of the container, given by the owner or operator; and

   (c) the tare weight of the container, including all its permanently fixed equipment.

2. The country to which the container belongs may be shown either in full, or by means of the ISO Alpha-2 country code provided for in International Standard ISO 3166, or by the distinguishing sign used to indicate the country of registration of motor vehicles in international road traffic. Each country may subject the use of its name or distinguishing sign on the container to its national legislation. The identity of the owner or operator may be shown either by his full name or by an established identification, symbols such as emblems or flags being excluded.

3. For identification marks and numbers on containers to be considered durably marked when plastic film is used, compliance with the following specifications is required :

   (a) a high-quality adhesive shall be used. The film, once applied, shall have a tensile strength lower than its final adhesion so that removal of the film without destroying it is impossible. Film produced by the cast method of production meets these requirements. Film produced by the calendar method of production shall not be used;

   (b) when identification marks and numbers have to be changed, the film to be replaced shall be removed completely prior to the affixing of the new film; placing of new film over an existing film shall not be permitted.

4. The specifications for the use of plastic film for marking containers set out in paragraph 3 of this Appendix do not exclude the possibility of using other durable marking methods.

ANNEX B.4

ANNEX CONCERNING GOODS IMPORTED IN CONNECTION WITH A MANUFACTURING OPERATION

CHAPTER I

Definitions

Article 1

For the purposes of this Annex, the term "goods imported in connection with a manufacturing operation" means :

1) (a) matrices, blocks, plates, moulds, drawings, plans, models and other similar articles,

(b) measuring, controlling and checking instruments and other similar articles,

(c) special tools and instruments,

imported for use during a manufacturing process; and

2) "replacement means of production" :

instruments, apparatus and machines made available to a customer by a supplier of repairer, pending the delivery or repair of similar goods.

CHAPTER II

Scope

Article 2

Goods imported in connection with a manufacturing operation shall be granted temporary admission in accordance with Article 2 of this Convention.

CHAPTER III

Miscellaneous provisions

Article 3

For the facilities granted by this Annex to apply :

a) goods imported in connection with a manufacturing operation must be owned by a person established outside the territory of temporary admission and intended for a person established in that territory;

b) all or part, as national legislation may require, of the production resulting from the use of the goods imported in connection with a manufacturing operation, as referred to in Article 1, paragraph 1, of this Annex, must be exported from the territory of temporary admission ;

c) replacement means of production must be made available, temporarily and free of charge, to the person established in the territory of temporary admission by or through the supplier of the means of production the delivery of which is delayed or which must be repaired .

Article 4

1. The period for the re-exportation of the goods included in Article 1, paragraph 1, of this Annex shall be at least twelve months from the date of temporary admission.

2. The period for the re-exportation of replacement means of production shall be at least six months from the date of temporary admission.

ANNEX B.5

ANNEX CONCERNING GOODS IMPORTED FOR EDUCATIONAL, SCIENTIFIC OR CULTURAL PURPOSES

CHAPTER I

Definitions

Article 1

For the purposes of this Annex :

a) the term "goods imported for educational, scientific or cultural purposes" means :

scientific equipment, pedagogic material, welfare material for seafarers, and any other goods imported in connection with educational, scientific or cultural activities ;

b) in paragraph (a) above :

(i) the terms "scientific equipment and pedagogic material" means :

any models, instruments, apparatus, machines or accessories therefore used for purposes of scientific research

or educational or vocational training ;

(ii) the term "welfare material for seafarers" means :

material for the pursuit of cultural, educational, recreational, religious or sporting activities by persons charged with duties in connection with the working or service at sea of a foreign ship engaged in international maritime traffic

Illustrative lists of "pedagogic material", "welfare material for seafarers" and "any other goods imported in connection with educational, scientific or cultural activities" are reproduced at Appendices I, II and III, respectively, to this Annex .

CHAPTER II

Scope

Article 2

The following goods shall be granted temporary admission in accordance with Article 2 of this Convention :

a) goods imported exclusively for educational, scientific or cultural purposes ;

b) spare parts for scientific equipment and pedagogic material which has been granted temporary admission under paragraph (a) above, and tools specially designed for the maintenance, checking, gauging or repair of such equipment.

CHAPTER III

Miscellaneous provisions

Article 3

For the facilities granted by this Annex to apply :

a) goods imported for educational, scientific or cultural purposes must be owned by a person established outside the territory of temporary admission and must be imported by approved institutions in reasonable quantities having regard to the purpose of the importation. They must not be used for commercial purposes ;

b) welfare material for seafarers must be used on board foreign ships engaged in international maritime traffic, or must be unloaded from the ship to be temporarily used ashore by the crew, or must be imported for use in hostels, clubs or recreation centres for seafarers, managed either by official organizations or by religious or other non-profit making organizations, and places of worship where services for seafarers are regularly held .

Article 4

Temporary admission of scientific equipment, pedagogic material and welfare material for seafarers used on board ships shall be granted without a Customs document or security being required. Where necessary, an inventory together with a written undertaking to re-export, may be required for scientific equipment and pedagogic material.

Article 5

The period for the re-exportation of goods imported for educational, scientific or cultural purposes shall be at least twelve months from the date of temporary admission .

Article 6

Each Contracting Party shall have the right to enter a reservation, in accordance with Article 29 of this Convention, in respect of the provisions of Article 4 of this Annex, insofar as they relate to scientific equipment and pedagogic material .

Article 7

The Appendices to this Annex shall be construed to be an integral part thereof .

Article 8

Upon its entry into force this Annex shall, in accordance with Article 27 of this Convention, terminate and replace the Customs Convention on welfare material for seafarers, Brussels, 1 December 1964, the Customs Convention on the temporary importation of scientific equipment, Brussels, 11 June 1968, and the Customs Convention on the temporary

importation of pedagogic material, Brussels, 8 June 1970, in relations between the Contracting Parties which have accepted this Annex and are Contracting Parties to those Conventions .

APPENDIX I

Pedagogic material

Illustrative list

a) Sound or image recorders of reproducers, such as :

Slide and filmstrip projectors;
Cinematographic projectors;
Back-projectors and episcopes;
Magnetophones, magnetoscopes and video equipment;
Closed-circuit television equipment.

b) Sound and image media, such as :

Slides, filmstrips and microfilms;
Cinematographic films;
Sound recordings (magnetic tapes, discs);
Videotapes.

c) Specialized material, such as :

Bibliographic equipment and audio-visual material for libraries:
Mobile libraries;
Language laboratories;
Simultaneous interpretation equipment;
Programmed teaching machines, mechanical or electronic;
Material specially designed for the educational or vocational training of handicapped persons.

d) Other material, such as :

Wall charts, models, graphs, maps, plans, photographs and drawings;
Instruments, apparatus and models designed for demonstrational purposes;
Collections of items with visual or audio pedagogic information, prepared for the teaching of a subject (study kits);
Instruments, apparatus, tools and machine-tools for learning a trade or craft;
Equipment, including specially adapted or designed vehicles for use in relief operations, which is imported for the training of persons involved in relief operations.

APPENDIX II

Welfare material for seafares

Illustrative list

a) Reading material, such as :

Books;
Correspondence courses;
Newspapers, journals and periodicals;
Pamphlets on welfare facilities in ports.

b) Audio-visual material, such as :

Sound and image reproducing instruments;
Tape-recorders;
Radio sets, television sets;
Cinematographic and other projectors;
Recordings on tapes or discs (language courses, radio programmes, greetings, music and entertainment);
Films, exposed and developed;
Film slides,
Videotapes.

c) Sports gear, such as :

Sports wear;
Balls;
Rackets and nets;
Deck games;
Athletic equipment;
Gymnastic equipment.

d) Hobby material, such as :

Indoor games;
Musical instruments; Material for amateur dramatics;
Materials for painting, sculpture, woodwork and metalwork, carpet making, etc.

e) Equipment for religious activities

f) Parts and accessories for welfare material.

APPENDIX III

Any other goods imported in connection with educational, scientific of cultural activities

Illustrative list

Goods, such as /

1. Costumes and scenery items sent on loan free of charge to dramatic societies or theatres;

2. Music scores sent on loan free of charge to music theatres or orchestras.

ANNEX B.6

ANNEX CONCERNING TRAVELLERS' PERSONAL EFFECTS AND GOODS IMPORTED FOR SPORTS PURPOSES

CHAPTER I

Definitions

Article 1

For the purposes of this Annex, the term :

a) "traveller" means :

any person who temporarily enters the territory of a Contracting Party in which be or she does not normally reside, for the purposes of tourism, sports, business, professional meetings, health, study, etc. ;

b. "personal effects" means :

all articles, new or used, which a traveller may reasonably require for his or her personal use during the journey, taking into account all the circumstances of the journey, but excluding any goods imported for commercial purposes. An illustrative list or personal effects is reproduced at Appendix I to this Annex ;

c) "goods imported for sports purposes" means :

sports requisites and other articles for use by travelers in sports contests or demonstrations or for training in the territory of temporary admission. An illustrative list of such goods is reproduced at Appendix II to this Annex .

CHAPTER II

Scope

Article 2

Personal effects and goods imported for sports purposes shall be granted temporary admission in accordance with Article 2 of this Convention .

CHAPTER III

Miscellaneous provisions

Article 3

For the facilities granted by this Annex to apply :

a) personal effects must be imported on the person or in the baggage (whether or not accompanied) of the traveller;

b) goods imported for sports purposes must be owned by a person established or resident outside the territory of temporary admission, and must be imported in reasonable quantities in the light of their intended use .

Article 4

1. Temporary admission of personal effects shall be granted without a Customs document or security being required. However, in the case of articles which involve a high amount of import duties and taxes, a Customs document and security may be required .

2. Whenever possible, an inventory of the goods together with a written undertaking to re-export, may be accepted for goods imported for sports purposes, in lieu of a Customs document and security .

Article 5

1. Personal effects shall be re-exported at the latest when the person who imported them leaves the territory of temporary admission.

2. The period for the re-exportation of goods imported for sports purposes shall be at l east twelve months from the date of temporary admission .

Article 6

The Appendices to this Annex shall be construed to be an integral part thereof .

Article 7

Upon its entry into force this Annex shall, in accordance with Article 27 of this Convention, terminate and replace the application of Article 2 and 5 of the Convention concerning Customs facilities for touring, New York, 4 June 1954, in relations between the Contracting Parties which have accepted this Annex and are Contracting Parties to that Convention .

APPENDIX I

Personal effects

Illustrative list

1. Clothing.
2. Toilet articles.
3. Personal jewellery.
4. Still and motion picture cameras together with a reasonable quantity of film and accessories therefore.
5. Portable slide or film projectors and accessories therefor together with a reasonable quantity of slides or films
6. Video cameras and portable video recorders, with a reasonable quantity of tapes.
7. Portable musical instruments.
8. Portable gramophones with records.
9. Portable sound recorders and reproducers (including dictating machines), with tapes.
10. Portable television sets.

11. Portable television sets.

12. Portable typewriters.

13. Portable calculators.

14. Portable personal computers.

15. Binoculars.

16. Perambulators.

17. Wheel-chairs for invalids.

18. Sports equipment such as tents and other camping equipment, fishing equipment, climbing equipment, diving equipment, sporting firearms with ammunition , non-motorized bicycles, canoes or kayaks less than 5.5 metres long, skis, tennis rackets, surfboards, windsurfers, hang-gliders and delta wings, golfing equipment.

19. Portable dialysis and similar medical apparatus, and the disposable items imported for use therewith.

20. Other articles clearly of a personal nature.

APPENDIX II

Goods imported for sports purposes

Illustrative list

A. Track and field equipment, such as :

- hurdies;
- javelins, discuses, poles, shots, jammers.

B. Ball game equipment, such as :

- balls of any kind;
- rackets, mallets, clubs, sticks and the like;
- nets of any kind;
- goalposts.

C. Winter sports equipment, such as :

- skis and sticks;
- skates;
- bobsleighs;
- curling equipment.

D. Sports wear, shoes, gloves, headgear, etc., of any kind.

E. Water sports equipment, such as :

- canoes and kayaks;
- sail and row boats, sails, oars and paddles;
- surf boards and sails.

F. Motor vehicles and craft, such as :

- cars;
- motor bicycles;
- motor boats.

G. Equipment for miscellaneous events, such as :

- sports arms and ammunition;
- non-motorized bicycles;
- archer's bows and arrows;
- fencing equipment;
- gymnastics equipment;
- compasses;
- wrestling mats and tatamis;
- weight-lifting equipment;
- riding equipment, sulkies;
- hand-gliders, delta wing, windsurfers;
- climbing equipment;
- music cassettes to accompany the performance.

H. Auxiliary equipment, such as :

- measuring and score display equipment;
- blood and urine test apparatus.

ANNEX B.7

ANNEX CONCERNING TOURIST PUBLICITY MATERIAL

CHAPTER I

Definition

Article 1

For the purposes of this Annex the term "tourist publicity material" means :

Goods imported for the purpose of encouraging the public to visit another foreign country, in particular in order to attend cultural, religious, touristic, sporting or professional meetings or demonstrations held there. An illustrative list of such material is reproduced at the Appendix to this Annex .

CHAPTER II

Scope

Article 2

Except for the material referred to in Article 5 of this Annex for which outright importation free of import duties and taxes shall be granted, tourist publicity material shall be granted temporary admission in accordance with Article 2 of this Convention.

CHAPTER III

Miscellaneous provision

Article 3

For the facilities granted by this Annex to apply, tourist publicity material must be owned by a person established outside the territory of temporary admission, and must be imported in reasonable quantities in the light of its intended use .

Article 4

The period for the re-exportation of tourist publicity material shall be at least twelve months from the date of temporary admission.

Article 5

Outright importation free of import duties and taxes shall be granted for the following publicity material :

a) Documents (folders, pamphlets, books, magazines, guides, posters framed or unframed, unframed photographs and photographic enlargements, maps whether illustrated or not, printed window transparencies for free distribution, provided these documents do not contain more than 25% private commercial advertising and are obviously designed for general publicity purposes;

b) Lists and year-books of foreign hotels published or sponsored by official tourist agencies and time-tables of transport services operating abroad, when such documents are for free distribution and do not contain more than 25% private commercial advertising ;

c) Technical material sent to the accredited representatives or correspondents appointed by national official tourist agencies, not intended for distribution, i.e., year-books, telephone directories, lists of hotels, catalogues of fairs, samples of negligible value of handicraft, documentation about museums, universities, spas and similar institutions.

Article 6

The Appendix to this Annex shall be construed to be an integral part thereof .

Article 7

Upon its entry into force this Annex shall, in accordance with Article 27 of this Convention, terminate and replace the Additional Protocol to the Convention concerning Customs facilities for touring, relating to the importation of tourist publicity documents and material, New York, 4 June 1954, in relations between the Contracting Parties which have accepted this Annex and are Contracting Parties to that Protocol .

APPENDIX

Tourist publicity material

Illustrative list

1. Material intended for display in the offices of the accredited representatives or correspondents appointed by the official national tourist agencies or in other places approved by the Customs authorities of the territory of temporary admission : pictures and drawings, framed photographs and photographic enlargements, art books, paintings,

engravings or lithographs, sculptures and tapestries and other similar works of art;

2. Display material (show-cases, stands and similar articles), including electrical and mechanical equipment required for operating such display;

3. Documentary films, records, tape recordings and other sound recordings intended for use in performances at which no charge is made, but excluding those whose subjects lend themselves to commercial advertising and those which are on general sale in the territory of temporary admission;

4. A reasonable number of flags;

5. Dioramas, scale models, lantern-slides, printing blocks, photographic negatives;

6. Specimens, in reasonable numbers, of articles of national handicrafts, local costumes and similar articles of folklore.

ANNEX B.8

ANNEX CONCERNING GOODS IMPORTED AS FRONTIER TRAFFIC

CHAPTER I

Definitions

Article 1

For the purposes of this Annex :

a) the term "goods imported as frontier traffic" means :

- those carried by frontier zone inhabitants in the performance of their profession or trade (doctors, craftsmen, etc.);

- personal or household effects of frontier zone inhabitants imported by them for repair, manufacture or

processing;

- equipment intended for working on land located within the frontier zone of the territory of temporary admission;

- equipment owned by an official body, imported in connection with a relief operation (fire, floods, etc.);

b) the term "frontier zone" means :

an area of the Customs territory adjacent to the land frontier, the extent of which is determined in national legislation and whose limits serve to distinguish frontier traffic from other traffic;

c) the term "frontier zone inhabitants" means :

persons established or resident in a frontier zone ;

d) the term "frontier traffic" means :

importations carried out by frontier zone inhabitants between two adjacent frontier zones.

CHAPTER II

Scope

Article 2

Goods imported as frontier traffic shall be granted temporary admission in accordance with Article 2 of this Convention .

CHAPTER III

Miscellaneous provisions

Article 3

For the facilities granted by this Annex to apply :

a) goods imported as frontier traffic must be owned by a frontier zone inhabitant of the frontier zone adjacent to that of temporary admission ;

b) equipment for working on land must be used by frontier zone inhabitants of the frontier zone adjacent to that of temporary admission who work on land located in the latter frontier zone. This equipment must be used for the performance of agricultural work or forestry work such as the unloading or transport of timber, or for pisciculture ;

c) frontier traffic for repair, manufacture or processing must be of a strictly non-commercial nature .

Article 4

1. Temporary admission of goods imported as frontier traffic shall be granted without a Customs document of security being required.

2. Each Contracting Party may make the granting of temporary admission of goods imported as frontier traffic subject to the production of an inventory of the goods, together with a written undertaking to re-export.

3. Temporary admission may also be granted on the basis of a simple entry in a register held by the Customs office .

Article 5

1. The period for the re-exportation of goods imported as frontier traffic shall be at least twelve months from the date of temporary admission .

2. Equipment intended for working on land shall, however, be re-exported once the work has been carried out .

ANNEX B.9

ANNEX CONCERNING GOODS IMPORTED FOR HUMANITARIAN PURPOSES

CHAPTER I

Definition

Article 1

For the purposes of this Annex :

a) the term "goods imported for humanitarian purposes" means :

medical, surgical and laboratory equipment and relief consignments;

b) the term "relief consignments" means :

all goods, such as vehicles and other means of transport, blankets, tents, prefabricated houses or other goods of prime necessity, forwarded as aid to those affected by natural disaster and similar catastrophes.

CHAPTER II

Scope

Article 2

Goods imported for humanitarian purposes shall be granted temporary admission in accordance with Article 2 of this Convention .

CHAPTER III

Miscellaneous provisions

Article 3

For the facilities granted by this Annex to apply :

a) goods imported for humanitarian purposes must be owned by a person established outside the territory of temporary admission and must be loaned free of charge;

b) medical, surgical and laboratory equipment must be intended for use by hospitals and other medical institutions which, finding themselves in exceptional circumstances, have urgent need of it, provided this equipment is not available in sufficient quantity in the territory of temporary admission ;

c) relief consignments must be dispatched to persons approved by the competent authorities in the territory of temporary admission .

Article 4

1. Whenever possible, an inventory of the goods together with a written undertaking to re-export, may be accepted for medical, surgical and laboratory equipment, in lieu of a Customs document and security .

2. Temporary admission of relief consignments shall be granted without a Customs document or security being required. However, the Customs authorities may require an inventory of the goods, together with a written undertaking to re-export .

Article 5

1. The period for the re-exportation of medical, surgical and laboratory equipment shall be determined in accordance with the needs .

2. The period for the re-exportation of relief consignments shall be at least twelve months from the date of temporary admission .

ANNEX C

ANNEX CONCERNING MEANS OF TRANSPORT

CHAPTER I

Definitions

Article 1

For the purposes of this Annex :

a) the term "means of transport" means :

any vessel (including lighters and barges, whether or not shipborne, and hydrofoils), hovercraft, aircraft, motor road vehicles (including cycles with engines, trailers, semi-trailers and combinations of vehicles) and railway rolling stock; together with their normal spare parts, accessories and equipment carried on board means of transport (including special equipment for the loading, unloading, handling and protection of cargo) ;

b) the term "commercial use" means :

the transport of persons for remuneration or the industrial or commercial transport of goods, whether or not for remuneration ;

c) the term "private use" means :

the transport exclusively for personal use by the person concerned excluding commercial use ;

d) the term "internal traffic" means :

the carriage of persons or goods picked up or loaded in the territory of temporary admission for setting down or unloading at a place within the same territory ;
the term "normal tanks", means :

e) the tanks designed by the manufacturer for all means of transport of the same type as the means of transport in question and whose permanent fitting enables a fuel to be used directly, both for the purpose of propulsion and, where appropriate, for the operation, during transport, of refrigeration systems and other systems. Tanks fitted to means of transport designed for direct use of other types of fuel and tanks fitted to the other systems with which the means of transport may be equipped shall also be considered to be normal tanks .

CHAPTER II

Scope

Article 2

The following shall be granted temporary admission in accordance with Article 2 of this Convention :

a) means of transport for commercial use or for private use;

b) spare parts and equipment imported for the repair of a means of transport already temporarily admitted. Replaced parts and equipment which are not re-exported shall be liable to import duties and taxes except where they are disposed of as provided for in Article 14 of this Convention .

Article 3

Routine maintenance operations and repairs to the means of transport which have become necessary during the journey to or within the territory of temporary admission and which are carried out during the period of temporary admission, shall not be deemed to involve a change within the meaning of Article 1, paragraph (a) of this Convention .

Article 4

1. The fuel contained in the normal tanks of the means of transport temporarily admitted as well as lubrication oils for the normal use of such means of transport shall be admitted without payment of import duties and taxes and without application of import prohibitions or restrictions .

2. In the case of motor road vehicles for commercial use, each Contracting Party shall have the right, however, to fix maximum quantities for the fuel which can be admitted into its territory free of import duties and taxes and without application of import prohibitions or restrictions in the normal tanks of such temporarily admitted motor road vehicles .

CHAPTER III

Miscellaneous provisions

Article 5

For the facilities granted by this Annex to apply :

a) means of transport for commercial use must be registered in a territory other than that of temporary admission, in the name of a person established or resident in a territory other than that of temporary admission, and be imported and used by persons operating from such a territory;

b) means of transport for private use must be registered in a territory other than that of temporary admission, in the name of a person established or resident in a territory other than that of temporary admission, and be imported and used by persons resident in such a territory .

Article 6

Temporary admission of means of transport shall be granted without a Customs document or security being required .

Article 7

Notwithstanding the provisions of Article 5 of this Annex,

a) means of transport for commercial use may be used by third persons, even if established or resident in the territory of temporary admission, who are duly authorized by the persons granted temporary admission and who operate on their behalf;

b) means of transport for private use may be used by third persons who are duly authorized by the persons granted temporary admission. Each Contracting Party may permit the use by a person resident in its territory, in particular, where the means of transport is used on behalf and on the instructions of the person granted temporary admission .

Article 8

Each Contracting Party shall have the right to deny the benefit of temporary admission to, or to withdraw that benefit from :

a) means of transport for commercial use which are used in internal traffic;

b) means of transport for private use which are used for commercial use in internal traffic ;

c) means of transport which are hired after importation or, if imported on hire, are re-hired or sublet for a purpose other than immediate re-exportation .

Article 9

1. Means of transport for commercial use shall be re-exported once the transport operations for which they were imported have been completed .

2. Means of transport for private use may remain in the territory of temporary admission for a period, continuous or not, of six months in every period of twelve months .

Article 10

Each Contracting Party shall have the right to enter a reservation, in accordance with Article 29 of this Convention in respect of :

a) Article 2, subparagraph (a), insofar as it relates to temporary admission of motor road vehicles and railway rolling stock ;

b) Article 6, insofar as it relates to motor road vehicles for commercial use and to means of transport for private use ;

c) Article 9, paragraph 2;
of this Annex .

Article 11

Upon its entry into force this Annex shall, in accordance with Article 27 of this Convention, terminate and replace the Customs Convention on the temporary importation of private road vehicles, New York, 4 June 1954, the Customs Convention on the temporary importation of commercial road vehicles, Geneva, 18 May 1956, and the Customs Convention of the temporary importation for private use of aircraft and pleasure boats, Geneva, 18 May 1956, in relation between the Contracting Parties which have accepted this Annex and are Contracting Parties to those Conventions .

ANNEX D

ANNEX CONCERNING ANIMALS

CHAPTER I

Definitions

Article 1

For the purposes of this Annex :

a) the term "animals" means :

live animals of any species;

b) the term "frontier zone" means :

an area of the Customs territory adjacent to the land frontier, the extent of which is determined in national legislation and whose limits serve to distinguish frontier from other traffic ;

c) the term "frontier zone inhabitants" means :

persons established or resident in a frontier zone ;

d) the term "frontier traffic" means :

importations carried out by frontier zone inhabitants between two adjacent frontier zones.

CHAPTER II

Scope

Article 2

Animals imported for the purposes specified in the Appendix to this Annex shall be granted temporary admission in accordance with Article 2 of this Convention .

CHAPTER III

Miscellaneous provisions

Article 3

For the facilities granted by this Annex to apply :

a) animals must be owned by a person established or resident outside the territory of temporary admission ;

b) draught animals which are to be used for working on land situated in the frontier zone of the territory of temporary admission, must be imported by frontier zone inhabitants of the frontier zone adjacent to that of temporary admission .

Article 4

1. Temporary admission of the draught animals referred to in Article 3 (b) of this Annex and of animals imported for transhumance or grazing on land situated in the frontier zone shall be granted without a Customs document or security being required.

2. Each Contracting Party may make the granting of temporary admission of the animals referred to in paragraph 1 of this Article subject to the production of an inventory, together with a written undertaking to re-export .

Article 5

1. Each Contracting Party shall have the right to enter a reservation, in accordance with Article 29 of this Convention, in respect of Article 4, paragraph 1 of this Annex .

2. Each Contracting Party shall also have the right to enter a reservation, in accordance with Article 29 of this Convention, in respect of Items 12 and 13 in the Appendix to this Annex .

Article 6

The period for the re-exportation of animals shall be at least twelve months from the date of temporary admission .

Article 7

The Appendix to this Annex shall be construed to be an integral part thereof.

APPENDIX

List as per Article 2

1. Dressage
2. Training
3. Breeding
4. Shoeing or weighing
5. Veterinary treatment
6. Testing (for example, with a view to purchase)
7. Participation in shows, exhibitions, contests, competitions or demonstrations
8. Entertainment (circus animals, etc.)
9. Touring (including pet animals of travelers)
10. Exercise of function (police dogs or horses; detector dogs, dogs for the blind, etc).
11. Rescue operations
12. Transhumance or grazing

13. Performance of work or transport

14. Medical purposes (delivery of snake poison, etc).

ANNEX E

ANNEX CONCERNING GOODS IMPORTED WITH PARTIAL RELIEF FROM IMPORT DUTIES AND TAXES

CHAPTER I

Definitions

Article 1

For the purposes of this Annex :

a) the term "goods imported with partial relief" means :

goods which are mentioned in the other Annexes to this Convention but which do not fulfil all the conditions stipulated therein for the granting of temporary admission with total relief from import duties and taxes, and goods which are not mentioned in such other Annexes and which are imported to be temporarily used for, for example, production or work projects ;

b) the term "partial relief" means :

relief from payment of a part of the total amount of import duties and taxes which would otherwise be payable had the goods been cleared for home use on the date on which they were placed under the temporary admission procedure.

CHAPTER II

Scope

Article 2

The goods referred to in Article 1, paragraph (a) of this Annex shall be granted temporary admission with partial relief in accordance with Article 2 of this Convention .

CHAPTER III

Miscellaneous provisions

Article 3

For the facilities granted by this Annex to apply, goods imported with partial relief must be owned by a person established or resident outside the territory of temporary admission .

Article 4

Each Contracting Party may draw up a list of goods which are entitled to or excluded from the benefit of temporary admission with partial relief. The depositary of this Convention shall be notified of the content of this list .

Article 5

The amount of import duties and taxes chargeable under this procedure may not exceed 5%, for every month or fraction of a month during which the goods have been placed under the temporary admission procedure .

Article 6

The amount of import duties and taxes to be charged shall in no case exceed that which would have been charged if the goods concerned had been cleared for home use on the date on which they were placed under the temporary admission procedure .

Article 7

1. The amount of import duties and taxes due under this Annex shall be levied by the competent authorities when the procedure is discharged .

2. Where, in accordance with Article 13 of this Convention, the temporary admission procedure is terminated by clearance for home use, the amount of any import duties and taxes already charged on partial relief shall be deducted from the amount of import duties and taxes to be paid as a result of clearance for home use .

Article 8

The period for the re-exportation of goods imported with partial relief shall be determined taking into account the provisions of Articles 5 and 6 of this Annex .

Article 9

Each Contracting Party shall have the right to enter a reservation, in accordance with Article 29 of this Convention, in respect of Article 2 of this Annex, insofar as it relates to partial relief from import taxes .

KONVENCIJA O PRIVREMENOM UVOZU

PREAMBULA

UGOVORNE STRANE koje su prihvatile Konvenciju, sačinjenu pod pokroviteljstvom Savjeta za carinsku saradnju;

SVJESNE da je sadašnja raznolikost i nepotpunost, koja vlada u međunarodnim carinskim konvencijama o privremenom uvozu, nezadovoljavajuća,

SMATRAJUĆI da postoji opasnost daljeg pogoršanja sadašnje situacije zbog potrebe da se novi oblici privremenog uvoza urede na međunarodnom planu,

IMAJUĆI na umu želje predstavnika trgovine i drugih zainteresiranih strana da se pojednostavi postupak sprovođenja privremenog uvoza,

SMATRAJUĆI da bi pojednostavljenje i usklađivanje carinskih postupaka, a posebno usvajanje jedinstvenog međunarodnog dokumenta koji bi uključio sve postojeće konvencije o privremenom uvozu, olakšalo primjenu međunarodnih propisa, kojima je uređen privremeni uvoz, kako bi se efikasno doprinijelo razvoju međunarodne trgovine i drugih oblika međunarodne razmjene,

UVJERENE da međunarodni dokument koji ujednačava propise u aktivnostima privremenog uvoza može bitno poboljšati međunarodnu razmjenu i pojednostaviti i ujednačiti carinske postupke, što je jedan od bitnih ciljeva Savjeta za carinsku saradnju,

ODLUČNE da olakšaju privremeni uvoz uvođenjem jednostavnijih i ujednačenijih postupaka kako bi se postigli ekonomski, humanitarni, kulturni, društveni ili turistički ciljevi,

SMATRAJUĆI da prihvatanje standardizovanog primjerka isprave o privremenom uvozu kao međunarodne carinske isprave, koja služi i kao jamstvo u međunarodnom prometu, pridonosi pojednostavljenju postupka privremenog uvoza u slučaju kada je potrebno pribaviti carinsku ispravu i jamstvo,

postigle su sljedeći dogovor:

Glava I.

Opšte odredbe

Definicije

Član 1.

Značenje izraza upotrijebljenih u ovoj Konvenciji:

(a) »privremeni uvoz« znači:

carinski postupak prema kojem se neki proizvodi (uključujući i prevozna sredstva) mogu unijeti na carinsku teritoriju uz uslovno oslobađanje od plaćanja uvoznih carina i poreza, a bez primjene zabrana ili ograničenja uvoza privrednog karaktera; takvu robu (uključujući i prevozna sredstva) treba uvesti sa tačno određenom svrhom i ona mora biti namijenjena ponovnom izvozu u određenom roku u kojem ta roba mora ostati u istom stanju i bez promjena osim uobičajene amortizacije usled trošenja kod upotrebe;

(b) »uvozne carine i porezi« znače:

carinske dažbine i sve ostale dažbine, porez, provizije ili druga davanja koja se naplaćuju na uvoz ili u vezi s uvozom proizvoda (uključujući i prevozna sredstva), ali koji ne uključuju provizije i troškove koji su oganičeni na iznos približne cijene koštanja pružene usluge;

(c) »obezbjeđenje« znači:

ono što za carinu zadovoljavajuće osigurava da će obaveza prema carini biti podmirena. Obezbjeđenje je »opšte« kad osigurava da će obaveze do kojih je došlo tokom više različitih poslovnih operacija biti podmirene;

(d) »isprava o privremenom uvozu« znači:

međunarodna carinska isprava koja je prihvaćena kao carinska deklaracija pomoću koje je moguće identifikovati robu (uključujući prevozna sredstva) i koja je istovremeno međunarodno priznata garancija za pokriće uvoznih carina i poreza;

(e) »carinska ili ekonomska unija« znači:

unija koju su ustanovili i koju čine zemlje-članice, kao što je navedeno u članu 24. paragraf 1. ove Konvencije, a koja ima pravo prihvatati vlastite zakone koji će obavezati članove u pitanjima regulisanim ovom Konvencijom, i ima pravo odlučivanja u skladu sa internim pravilima i postupcima, o potpisivanju, ratifikaciji ili pristupanju Konvenciji;

(f) »lice« znači:

i fizičko i pravno lice, osim ako iz konteksta proizilazi drugačije;

(g) »Vijeće« znači:

organizaciju koja je uspostavljena prema konvenciji o uspostavljanju Vijeća za carinsku saradnju u Briselu, 15. decembra 1950. godine;

(h) »ratifikacija« znači:

ratifikacija, prihvatanje ili odobrenje .

Glava II.

Primjena Konvencije

Član 2.

1. Svaka ugovorna strana se obavezuje da dopusti privremeni uvoz, u skladu s odredbama Konvencije, za robu (uključujući prevozna sredstva) navedenu u aneksima Konvencije .

2. Ne utičući na odredbe Aneksa E, privremeni uvoz će se odobriti uz potpuno uslovno oslobađanje od carine i poreza i bez primjene uvoznih ograničenja ili zabrana privrednog karaktera .

Sadržaj aneksa

Član 3.

Svaki se aneks u ovoj Konvenciji u principu sastoji od :

(a) definicija glavnih carinskih termina korišćenih u aneksu;

(b) posebnih odredbi koje se primjenjuju na proizvode (uključujući prevozna sredstva) o kojima se u aneksu govori.

Glava III.

Posebne odredbe

Isprava i obezbjeđenje

Član 4.

1. Ako aneksom nije drugačije određeno, svaka ugovorna strana ima pravo uslovljavati privremeni uvoz proizvoda (uključujući i prevozna sredstva) podnošenjem carinske isprave i obezbjeđenja .

2. Ako se (prema stavu 1.) traži obezbjeđenje, lica koja redovno koriste postupak privremenog uvoza, mogu biti ovlašćena da pružaju opšte obezbjeđenje.

3. Ako aneksom nije drugačije određeno, iznos garancije ne smije prelaziti iznos uvoznih carina i poreza od kojih su proizvodi (uključujući i prevozna sredstva) uslovno oslobođeni .

4. Moguće je tražiti dodatnu garanciju za proizvode (uključujući i prevozna sredstva) koji, prema nacionalnom zakonodavstvu, podliježu uvoznim zabranama ili ograničenjima, ako je tako određeno propisima nacionalnog zakonodavstva .

Dokumenti privremenog uvoza

Član 5.

Ne utičući na postupke privremenog uvoza prema odredbama Aneksa E, svaka ugovorna strana prihvata, umjesto svojih nacionalnih carinskih dokumenata i kao obezbjeđenje za iznose spomenute u članu 8. Aneksa A, dokumente privremenog

uvoza koji važe za njenu teritoriju, a izdati su i korišćeni u skladu sa uslovima utvrđenim tim aneksom za proizvode (uključujući i prevozna sredstva), koji se privremeno uvoze u skladu sa drugim aneksima ove Konvencije koje je ta ugovorna strana prihvatila .

Identifikacija

Član 6.

Svaka ugovorna strana može uslovljavati privremeni uvoz proizvoda (uključujući i prevozna sredstva) zahtjevom da se proizvodi mogu identifikovati po završetku privremenog uvoza .

Rok za ponovni izvoz

Član 7.

1. Svi proizvodi se (uključujući i prevozna sredstva) za koje je odobren privremeni uvoz, moraju ponovo izvesti u određenom roku, koji se smatra primjerenim za postizanje svrhe privremenog uvoza. Taj je rok posebno određen u svakom aneksu .

2. Carinske vlasti mogu odobriti rok duži od onog odobrenog pojedinim aneksom, ili mogu prvobitno odobren rok produžiti .

3. Ako proizvodi (uključujući i prevozna sredstva) kojima je odobren privremeni uvoz, ne mogu biti ponovo izvezeni zbog zaplene, izuzev kada se radi o zapleni u sudskoj parnici privatnog lica, zahtjev za ponovnim izvozom neće biti sproveden dok je zaplena na snazi .

Prenos prava i obaveza iz postupka privremenog uvoza

Član 8.

Svaka ugovorna strana može, na zahtjev, odobriti prenos povlastice korišćenja postupka privremenog uvoza na bilo koje drugo lice, pod uslovom da to drugo lice:

(a) zadovoljava uslove određene Konvencijom; i

(b) prihvata obaveze prvog korisnika postupka privremenog uvoza .

Okončanje postupka privremenog uvoza

Član 9.

Privremeni uvoz se obično smatra završenim kada se proizvodi (uključujući i prevozna sredstva), za koje je odobren privremeni uvoz, ponovo izvezu.

Član 10.

Privremeno uvezeni proizvodi (uključujući i prevozna sredstva) mogu se ponovo izvesti u jednoj ili više pošiljki .

Član 11.

Privremeno uvezeni proizvodi (uključujući i prevozna sredstva) ne moraju se ponovo izvesti preko iste carinske ispostave preko koje su uvezeni .

Druge mogućnosti prestanka privremenog uvoza

Član 12.

Privremeni uvoz može prestati uz saglasnost nadležnih vlasti smještanjem proizvoda (uključujući i prevozna sredstva) u slobodnu luku ili slobodnu zonu, u carinsko skladište ili otvaranjem postupka carinskog tranzita u cilju njihovog daljeg izvoza ili drugog dopuštenog raspolaganja .

Član 13.

Privremeni uvoz može prestati carinjenjem za domaću upotrebu proizvoda, kada to dopuštaju prilike i nacionalni propisi, a u skladu sa uslovima i postupkom koji u tom slučaju treba primijeniti.

Član 14.

1. Privremeni uvoz može prestati kada su proizvodi (uključujući i prevozna sredstva) zbog nezgode ili više sile u velikoj mjeri oštećeni te, po odluci carinskih vlasti:

(a) podliježu plaćanju uvozne carine i poreza koje se odnose na te proizvode u oštećenom stanju u trenutku carinskog postupka radi prestanka privremenog uvoza;

(b) prepuštaju se, bez naknade, nadležnim vlastima na teritoriji privremenog uvoza, a u tom se slučaju korisnik privremenog uvoza oslobađa plaćanja uvoznih carina i poreza; ili

(c) uništavaju se, pod službenim nadzorom, a na teret strana u postupku, s tim da na spašene djelove ili materijale, koji su namijenjeni domaćoj upotrebi, treba platiti carinu kojoj podliježu u trenutku i u stanju u kojem dolaze na carinjenje nakon nezgode ili više sile.

2. Privremeni uvoz također može prestati kada se po odluci carinskih vlasti, a na zahtjev lica u postupku, sa robom (uključujući i prevozna sredstva) postupi na jedan od načina predviđenih tačkama 1. (b) i (c) gornjeg stava.

3. Privremeni uvoz također može prestati kada, na zahtjev lica u postupku, to lice podnese carinskim vlastima dokaze o uništenju ili potpunom gubitku proizvoda (uključujući i prevozna sredstva) zbog nezgode ili više sile. U tom slučaju će korisnik privremenog uvoza biti oslobođen plaćanja uvozne carine i poreza .

Glava IV.

Ostale primjedbe

Pojednostavljenje postupka

Član 15.

Svaka ugovorna strana će u najvećoj mogućoj mjeri pojednostaviti carinske postupke u vezi sa korišćenjem olakšica propisanih ovom Konvencijom. Svi će propisi u vezi s postupcima biti obavljeni što je moguće prije .

Prethodna odobrenja

Član 16.

1. U slučaju da je za privremeni uvoz potrebno prethodno odobrenje, to će odobrenje izdati nadležna carinarnica i to u najkraćem mogućem roku.

2. Ako je u posebnim slučajevima potrebno pribaviti ne-carinsko odobrenje, to će odobrenje biti izdato u najkraćem mogućem roku.

Najmanje olakšice

Član 17.

U odredbama Konvencije navedene su najmanje olakšice koje treba odobriti. Te odredbe ne isključuju mogućnost da ugovorne strane odobre u budućnosti i veće olakšice bilo unilateralnim odredbama bilo bilateralnim ili multilateralnim sporazumima.

Carinske ili ekonomske unije

Član 18.

1. Za potrebe ove Konvencije teritorije ugovornih strana, koje pripadaju carinskoj ili ekonomskoj uniji, mogu se smatrati jedinstvenom teritorijom.

2. Nijedna odredba ove Konvencije neće spriječiti ugovorne strane, koje pripadaju carinskoj ili ekonomskoj uniji, da donesu posebne odredbe, koje se odnose na poslove privremenog uvoza na teritoriji te iste unije, pod uslovom da te odredbe ne umanjuju olakšice osigurane Konvencijom.

Zabrane i ograničenja

Član 19.

Odredbe ove Konvencije ne mogu spriječiti primjenu zabrana ili ograničenja koje nameću nacionalni zakoni vođeni neekonomskim razlozima kao što su razlozi javnog morala i reda, javne sigurnosti i javne higijene i zdravlja, veterinarski ili fitosanitarni razlozi, razlozi zaštite ugroženih vrsta divlje flore i faune, ili razlozi autorskih prava i industrijskog vlasništva .

Prekršaji

Član 20.

1. U slučaju kršenja odredbi Konvencije na teritoriji jedne ugovorne strane, prekršilac podliježe kaznama propisanim zakonodavstvom ugovorne strane na čijoj je teritoriji došlo do prekršaja.

2. Kada nije moguće utvrditi na čijoj je teritoriji došlo do nepoštovanja propisa, smatraće se da je prekršaj nastao na teritoriji one ugovorne strane gdje je otkriven .

Razmjena podataka

Član 21.

Ugovorne strane će međusobno, na osnovu zahtjeva, dostavljati podatke, u obimu koji dopušta nacionalno zakonodavstvo, a koji su potrebni radi primjene odredbi ove Konvencije .

Glava V.

Završne odredbe

Administrativni odbor

Član 22.

1. Biće ustanovljen administrativni odbor sa zadatkom da razmatra primjenu Konvencije, mjere kojima se osigurava ujednačeno tumačenje i primjena Konvencije, kao i prijedloge amandmana na istu. Administrativni odbor će odlučivati o priključenju novih aneksa Konvenciji .

2. Ugovorne strane su članovi administrativnog odbora. Odbor može odlučiti da sjednicama odbora u svojstvu posmatrača prisustvuju predstavnici nadležne administracije bilo koje zemlje članice, države ili carinske teritorije, kako je to navedeno u članu 24. ove Konvencije, a koje nijesu ugovorne strane, kao i predstavnici međunarodnih organizacija.

3. Vijeće osigurava odboru sekretarske usluge .

4. Odbor za svaku sjednicu imenuje predsjedavajućeg i ko-predsjedavajućeg.

5. Nadležne administracije ugovornih strana odboru dostavljaju prijedloge amandmana na ovu Konvenciju kao i razloge za njih, zajedno sa zahtjevima za uključenje pojedinih tačaka na dnevni red sjednica odbora. Dužnost Vijeća je da ih predoči nadležnim administrativnim tijelima ugovornih strana, kao i tijelima članica, država i carinskih teritorija, koji su spomenuti u članu 24. ove Konvencije, a koje nijesu ugovorne strane.

6. Vijeće saziva odbor u vrijeme koje odbor odredi, te na zahtjev nadležne administracije najmanje dvije ugovorne strane.

Vijeće šalje nacrt dnevnog reda nadležnim administrativnim tijelima ugovornih strana, kao i onim članicama, državama ili carinskim teritorijama, prema članu 24. ove Konvencije, koje nijesu ugovorne strane i to najmanje šest nedjelja prije sastanka odbora.

7. Nakon što odbor prema odredbama stava 2. ovog člana donese odluku, Vijeće poziva nadležna administrativna tijela članova, država ili carinskih teritorija navedenih u članu 24. ove Konvencije, a koja nijesu ugovorne strane, kao i međunarodne organizacije, kojih se predmet rasprave tiče, da pošalju predstavnike odbora kao posmatrače na sjednice odbora.

8. Prijedlozi se stavljaju na glasanje. Svaka ugovorna strana zastupljena na sastanku ima jedan glas. Prijedlozi, osim onih koji se odnose na amandmane ovoj Konvenciji, usvajaju se na sjednici odbora većinom glasova prisutnih s pravom glasa. Prijedlozi o amandmanima na Konvenciju usvajaju se dvotrećinskom većinom glasova prisutnih s pravom glasa.

9. U slučaju kad se primjenjuje Član 24., stav 7. ove Konvencije, ugovorne strane, koje su carinske ili ekonomske unije, raspolažu, u slučaju glasanja, samo sa onim brojem glasova koji je jednak broju glasova dodijeljenih njihovim članovima koji su ugovorne strane ove Konvencije .

10. Prije zatvaranja sjednice, Odbor treba da usvoji izvještaj.

11. U nedostatku relevantnih propisa u ovom članu, primjenjivaće se Pravila o postupcima Vijeća, ukoliko odbor ne odluči drugačije.

Rješavanje sporova

Član 23.

1. Svaki spor između dvije ili više ugovornih strana, a u vezi s tumačenjem i primjenom Konvencije će se nastojati riješiti pregovorima između strana, koliko god to bude moguće .

2. Ako se spor ne riješi pregovorima, ugovorne strane u sporu se obraćaju administrativnom odboru koji razmatra spor i preporučuje način njegovog rješavanja .

3. Ugovorne strane u sporu se mogu unaprijed dogovoriti da se obavezuju prihvatiti preporuke administrativnog odbora.

Potpis, ratifikacija i pristupanje

Član 24.

1. Svaki član Vijeća i svaki član Ujedinjenih Nacija i njihovih specijalizovanih agencija, može postati ugovorna strana ove

Konvencije:

(a) ako je potpiše bez rezervi u pogledu ratifikacije;

(b) ako deponuje ispravu o ratifikaciji nakon potpisa pod uslovom ratifikacije;

(c) pristupanjem Konvenciji.

2. Članovi nabrojeni u prvom stavu ovog člana, mogu potpisati Konvenciju na sjednici Vijeća na kojoj se ista prihvata ili nakon toga, u sjedištu Vijeća u Briselu, do 30. juna 1991. godine. Nakon tog datuma članovi mogu pristupiti Konvenciji.

3. Države ili vlade odvojene carinske teritorije, koje predloži ugovorna strana, zadužena za službeno vođenje njihovih diplomatskih odnosa, a koje su nezavisne u vođenju svojih trgovačkih odnosa i nijesu članovi organizacija nabrojenih u stavu 1. ovog člana, kojima je depozitar, na zahtjev upravnog odbora, uputio poziv s tim ciljem, mogu postati ugovorne strane ove Konvencije tako da joj pristupe nakon što Konvencija stupi na snagu .

4. Član, država ili carinska teritorija spomenuta u stavovima 1. i 3. ovog člana treba u trenutku potpisivanja bez rezervi u pogledu ratifikacije, ili u trenutku ratifikacije ili pristupanja konvenciji, odrediti koje anekse prihvata, s tim da je obavezno prihvatanje Aneksa A i barem još jednog aneksa. Naknadno je moguće obavijestiti depozitara o prihvatanju jednog ili više dodatnih aneksa.

5. Ugovorne strane, koje prihvataju bilo koji novi aneks, koji upravni odbor odluči uključiti u konvenciju, obavještavaju depozitara u skladu sa stavom 4. ovog člana.

6. Ugovorne strane javljaju depozitaru uslove primjene ili potrebna obavještenja, prema članu 8. i 24. , stav 7. ove Konvencije; Aneksu A, članu 2. stav 2. i 3; i Aneksu E, članu 4., kao i promjene do kojih je došlo u primjeni istih odredbi .

7. Svaka carinska ili ekonomska unija može postati ugovorna strana Konvencije u skladu sa stavovima 1., 2. i 4. ovog člana. Ta je carinska ili ekonomska unija dužna obavijestiti depozitara o svojim ovlašćenjima u pogledu pitanja uređenih Konvencijom. Carinska ili ekonomska unija koja je ugovorna strana Konvencije može, unutar djelokruga svojih ovlašćenja i u svoje ime, koristiti prava i ispunjavati obaveze koje su ovom konvencijom prenešene na članove koji su ugovorne strane Konvencije. U tom slučaju ti članovi nijesu ovlašćeni pojedinačno koristiti ta prava, uključujući i pravo glasa.

Depozitar

Član 25.

1. Ova Konvencija se zajedno sa potpisima, bilo sa rezervama ili bez rezervi u pogledu ratifikacije, kao i sa ispravama ratifikacije ili pristupanja, deponuje kod glavnog sekretara Vijeća .

2. Dužnost depozitara je da:

(a) primi i čuva originalne tekstove ove Konvencije;

(b) pripremi ovjerene kopije originalnih tekstova ove Konvencije i dostavi ih članovima i carinskim i ekonomskim unijama spomenutim u članu 24. stav 1. i 7. ove Konvencije;

(c) primi svaki potpis bilo da je sa ili bez rezervi u pogledu ratifikacije, kao i ratifikaciju i pristupanje Konvenciji, te da primi i čuva svaku ispravu, službeno obavještenje ili drugo obavještenje o istom;

(d) ispita da li je potpis ili druga isprava, službeno obavještenje ili drugo obavještenje o istom u potrebnom obliku, i da,

ako je potrebno, isto stavi na znanje dotičnoj ugovornoj strani;

(e) službeno obavještenje ugovorne strane Konvencije, ostale potpisnike, one članove vijeća koji nijesu ugovorne strane ove Konvencije, te glavnog sekretara Ujedinjenih Nacija o:

- potpisima, ratifikacijama, pristupanjima i prihvatanjima aneksa prema članu 24. ove Konvencije,

- novim aneksima koje upravni odbor odluči uključiti u ovu Konvenciju,

- datum stupanja na snagu ove Konvencije i svakog aneksa u skladu sa članom 26. ove Konvencije.

- službenim obavještenjima primljenim u skladu sa članovima 24., 29., 30. i 32. ove Konvencije,

- otkazivanju prema članu 31. ove Konvencije,

- bilo kojem amandmanu za koji se smatra da je prihvaćen u skladu sa članom 32. ove Konvencije, kao i o datumu njegovog stupanja na snagu.

3. U slučaju razmimoilaženja između ugovorne strane i depozitara oko načina obavljanja depozitarevih dužnosti, depozitar ili ugovorna strana iznose problem pred ostale ugovorne strane i pred potpisnike ili, kada je to potrebno, pred Vijeće.

Stupanje na snagu

Član 26.

1. Ova Konvencija će stupiti na snagu tri mjeseca nakon što pet članova, carinskih ili ekonomskih unija, prema članu 24. stav 1. i 7. ove Konvencije, potpiše ovu Konvenciju bez rezervi u pogledu ratifikacije, deponuje svoje isprave o ratifikaciji ili pristupanju.

2. U slučaju kada ugovorna strana potpiše bez rezervi u pogledu ratifikacije, ili kada ratifikuje ili pristupi ovoj Konvenciji nakon što ju je pet članova, carinskih ili ekonomskih unija, potpisalo bez rezervi u pogledu ratifikacije ili nakon što su deponovali svoje isprave o ratifikaciji ili pristupanju, ova Konvencija stupa na snagu tri mjeseca nakon što je pomenuta ugovorna strana potpisala bez rezervi u pogledu ratifikacije odnosno nakon što je deponovala svoju ispravu o ratifikaciji ili pristupanju.

3. Aneks Konvencije stupa na snagu tri mjeseca nakon što pet članova, carinskih ili ekonomskih unija, prihvati aneks.

4. Kada ugovorna strana prihvati aneks nakon što ga je prihvatilo pet članova, carinskih ili ekonomskih unija, taj aneks stupa na snagu tri mjeseca nakon što je pomenuta ugovorna strana službeno obavijestila o njegovom prihvatanju. Nijedan aneks ne može početi važiti za ugovornu stranu prije nego ova Konvencija stupi na snagu za istu ugovornu stranu.

Odredba o opozivu

Član 27.

Stupanjem na snagu aneksa ovoj Konvenciji koji sadrži odredbe o opozivu, isti aneks stavlja van snage i zamjenjuje konvencije ili odredbe konvencija kojima se bavi odredba o opozivu, i to u odnosima između ugovornih strana koje su prihvatile taj aneks i ugovorne strane su tih konvencija.

Konvencija i aneksi

Član 28.

1. Zbog potreba ove Konvencije, svi aneksi koji obavezuju ugovornu stranu tumače se kao integralni dio ove Konvencije, te kada se u vezi s ovom Konvencijom spominje ta ista ugovorna strana, smatraće se da su uključeni i aneksi.

2. Zbog potreba glasanja u administrativnom odboru, svaki aneks će se smatrati zasebnom konvencijom.

Rezerve

Član 29.

1. Smatraće se da strana koja prihvata aneks, prihvata i sve u njemu sadržane odredbe, osim ako u trenutku prihvatanja aneksa ili bilo kada nakon toga službeno ne obavještavajući depozitara o odredbama u vezi s kojima ima rezerve, ukoliko je ta mogućnost predviđena samim aneksom, i navede postojeće razlike između nacionalnih odredbi i odredbi o kojima se radi u aneksu.

2. Svaka ugovorna strana treba barem svakih pet godina ponovo pregledati odredbe u vezi sa kojima je imala rezerve, uporediti ih sa odredbama svog nacionalnog zakonodavstva i obavijestiti depozitara o rezultatima pregleda.

3. Svaka ugovorna strana koja ima rezerve, može ih povući u cjelini ili djelimično, u bilo koje vrijeme, tako da obavijesti depozitara i navede datum kada povlačenje stupa na snagu.

Teritorija primjene

Član 30.

1. Svaka ugovorna strana ima pravo u trenutku potpisivanja Konvencije bez rezerve u pogledu ratifikacije ili kada deponuje ispravu ratifikacije ili pristupanja, kao i nakon toga, obznaniti putem službenog obavještenja depozitaru, da se ova Konvencija primjenjuje na čitavoj teritoriji ili na dijelu teritorije za čije je međunarodne odnose ta strana odgovorna. Ta odluka će stupiti na snagu tri mjeseca nakon što je uručena depozitaru. Ova se Konvencija neće, međutim, primjenjivati na teritorijama navedenim u obavještenju, prije nego što konvencija počne važiti za spomenute ugovorne strane.

2. Svaka ugovorna strana, koja je u skladu sa stavom 1. ovog člana dala službeno obavještenje kojom proširuje važenje

ove Konvencije na teritoriji za čije je međunarodne odnose ona odgovorna, može obavijestiti depozitara, u skladu s procedurom opisanom u članu 31. ove Konvencije, da se na rečenoj teritoriji, prestaje primjenjivati ova Konvencija.

Otkaz

Član 31.

1. Ova Konvencija je neograničenog trajanja, ali je svaka ugovorna strana može otkazati u bilo koje vrijeme nakon datuma njenog stupanja na snagu, a prema članu 26. ove Konvencije .

2. O otkazu se obavještava ispravom u pisanom obliku, koja se deponuje kod depozitara.

3. Otkaz stupa na snagu šest mjeseci nakon što depozitar primi ispravu o otkazu.

4. Odredbe stava 2. i 3. ovog člana se primjenjuju i na anekse ove Konvencije, s tim da svaka ugovorna strana ima pravo u bilo koje vrijeme nakon datuma njihovog stupanja na snagu povući svoje prihvatanje jednog ili više aneksa, prema članu 26. ove Konvencije. Za svaku ugovornu stranu, koja povuče svoje prihvatanje svih aneksa, smatraće se da je otkazala prihvatanje ove Konvencije. Uz to će se smatrati da je ugovorna strana, koja povuče prihvatanje Aneksa A, čak i ako nastavi s prihvatanjem drugih aneksa, otkazala primjenu ove Konvencije.

Postupak prihvatanja amandmana

Član 32.

1. Administrativni odbor, koji se sastaje u skladu sa članom 22. ove Konvencije, može preporučiti amandmane na ovu Konvenciju i njene anekse.

2. Depozitar saopštava tekst svakog tako preporučenog amandmana svim ugovornim stranama Konvencije, ostalim potpisnicima kao i onim članovima vijeća koji nijesu ugovorne strane ove Konvencije.

3. Svaki tako preporučen amandman saopšten na način opisan u prethodnom stavu stupa na snagu za sve ugovorne strane, šest mjeseci po isteku perioda od 12 mjeseci od dana saopštavanja preporučenog amandmana, u slučaju da ni jedna ugovorna strana nije poslala depozitaru obavještenje o prigovoru na preporučeni amandman tokom tog perioda.

4. Ako ugovorna strana obavijesti depozitara o prigovoru prije isteka perioda od 12 mjeseci, kako je određeno u stavu 3. ovog člana, smatraće se da amandman nije prihvaćen i njegovo će važenje biti ništavno.

5. Kada se radi o službenom obavještenju o prigovoru svaki će se aneks smatrati zasebnom konvencijom.

Prihvatanje amandmana

Član 33.

1. Smatraće se da je svaka strana koja ratifikuje ovu Konvenciju ili joj pristupi, prihvatila svaki njen amandman koji je stupio na snagu u trenutku deponovanja isprave o ratifikaciji ili prihvatanju.

2. Za svaku će se ugovornu stranu koja prihvati aneks smatrati da je prihvatila svaki amandman tom aneksu koji je stupio

na snagu onoga dana kada je depozitar obaviješten o prihvatanju aneksa, osim ako su izjavljene rezerve prema članu 29. ove Konvencije .

Registracija i original teksta

Član 34.

U skladu sa članom 102. povelje Ujedinjenih Nacija, ova Konvencija će biti registrovana u sekretarijatu Ujedinjenih Nacija, na zahtjev depozitara.

Dolje potpisani su potpisali ovu Konvenciju kao svjedoci gore navedenog.

Sačinjeno u Istanbulu, 26. juna 1990. godine, u jedinstvenom originalu, na engleskom i francuskom jeziku, tako da se oba teksta smatraju jednako autentičnim. Depozitar je zamoljen da priredi i pošalje valjane prevode teksta ove Konvencije na arapskom, kineskom, ruskom i španskom jeziku.

ANEKS A

ANEKS O DOKUMENTIMA PRIVREMENOG UVOZA (KARNETI ATA I KARNETI CPD)

Glava I.

Definicije

Član 1.

Za potrebe ovog Aneksa:

(a) »dokumenti privremenog uvoza« znače:
međunarodni carinski dokument koji je prihvaćen kao carinska deklaracija i omogućava identifikaciju proizvoda (uključujući i prevozna sredstva) i koja uključuje međunarodno priznatu garanciju za pokrivanje uvoznih carina i poreza ;

(b) »karnet« ATA znači:
dokument o privremenom uvozu koji se koristi za privremeni uvoz robe, a ne uključuje prevozna sredstva ;

(c) »karnet« CPD znači:
dokument privremenog uvoza koji se koristi za privremeni uvoz prevoznih sredstava ;

(d) »garantni lanac« znači:
garantnu šemu kojom upravlja međunarodna organizacija sa kojom su povezana garantna udruženja ;

(e) »međunarodna organizacija« znači:
organizacija sa kojom su povezana nacionalna udruženja ovlašćena da garantuju i izdaju dokumente privremenog uvoza;

(f) »garantno udruženje« znači:
udruženje kojem carinske vlasti ugovorne strane odobravaju da garantuje iznose spomenute u članu 8. ovog Aneksa na

teritoriji te ugovorne strane, s tim da je to udruženje dio garantnog lanca;

(g) »udruženje - izdavaoc« znači:
udruženje kojem carinske vlasti odobravaju izdavanje dokumenata privremenog uvoza i koje je povezano posredno ili neposredno sa garantnim lancem;

(h) »odgovarajuće udruženje - izdavaoc« znači:
udruženje – izdavaoc, koje je osnovano u drugoj ugovornoj strani i povezano sa istim garantnim lancem;

(i) »carinski tranzit« znači:
carinski postupak po kojem se roba prevozi pod carinskim nadzorom od jedne do druge carinarnice.

Glava II.

Predmet

Član 2.

1. Svaka ugovorna strana će, u skladu sa članom 5. ove Konvencije, prihvatiti umjesto svojih nacionalnih carinskih dokumenata, a kao punovažnu garanciju za iznose iz člana 8. ovog Aneksa, dokumente privremenog uvoza koji će važiti na teritoriji strane, a biće izdati i korišćeni pod uslovima iznijetim u ovom Aneksu za proizvode (uključujući i prevozna sredstva) privremeno uvezene prema drugim aneksima ove Konvencije, koje je ta strana prihvatila.

2. Svaka ugovorna strana može takođe prihvatiti dokumente privremenog uvoza koji su izdati i upotrijebljeni pod jednakim uslovima u postupku prilikom privremenog uvoza po vlastitim zakonima i propisima.

3. Svaka ugovorna strana može prihvatiti dokumenta privremenog uvoza koji su izdati i upotrijebljeni za tranzit na osnovu jednakih uslova.

4. Roba (uključujući i prevozna sredstva) namijenjena za preradu ili popravku, neće se uvoziti na osnovu dokumenata privremenog uvoza.

Član 3.

1. Dokumenti privremenog uvoza moraju odgovarati primjerima, koji su navedeni u prilogu ovom Aneksu: Prilog I za karnete ATA, Prilog II za karnete CPD.

2. Prilozi ovom Aneksu se smatraju sastavnim dijelom ovog Aneksa.

Glava III.

Garancija i izdavanje dokumenata privremenog uvoza

Član 4.

1. Svaka ugovorna strana može, u skladu sa uslovima i garancijama koje sama odredi, ovlastiti garantna udruženja da djeluju kao garanti i da izdaju dokumente privremenog uvoza, bilo neposredno ili preko udruženja-izdavaoca.

2. Nijedna ugovorna strana ne smije ovlastiti garantno udruženje osim ako garancija ne pokriva obaveze nastale u toj ugovornoj strani u vezi sa poslovima pokrivenim dokumentima privremenog uvoza koje su izdala odgovarajuća udruženja izdavaoci.

Član 5.

1. Garantna udruženja ne smiju izdavati dokumente privremenog uvoza čiji je rok važenja duži od godinu dana od datuma izdavanja .

2. Podaci, koje u dokumente privremenog uvoza unese udruženje izdavaoc, mogu biti izmijenjeni samo uz odobrenje za izdavanje, koje daje garantno udruženje. Nije moguće unositi promjene nakon što su carinske vlasti na teritoriji privremenog uvoza prihvatile dokumente, osim uz saglasnost tih istih vlasti.

3. Kada je karnet ATA izdat, ne smiju se dodavati stavke listi proizvoda nabrojenih na poleđini naslovne strane karneta, ili bilo kojem listu s nastavkom popisa (opšta lista).

Član 6.

Dokumenti o privremenom uvozu moraju sadržavati sljedeće podatke:

- naziv udruženja izdavaoca,

- naziv međunarodnog garantnog lanca,

- zemlje ili carinske teritorije u kojima važe dokumenti privremenog uvoza,

- nazive garantnih udruženja zemalja ili carinskih teritorija o kojima se radi .

Član 7.

Rok određen za ponovni izvoz proizvoda (uključujući prevozna sredstva) koji su pri uvozu obuhvaćeni dokumentima privremenog uvoza ne smije ni u kom slučaju prelaziti rok važenja tih dokumenata.

Glava IV.

Garancija

Član 8.

1. Svako garantno udruženje se obavezuje carinskim vlastima ugovorne strane, na čijoj je teritoriji osnovana, da plati iznos uvoznih carina, poreza i drugih davanja , osim onih spomenutih u članu 4. stav 4. ove Konvencije, što dospijeva na naplatu u slučaju nepoštovanja uslova privremenog uvoza ili carinskog tranzita, i to na robu (uključujući i prevozna sredstva) koja je na tu teritoriju unesena sa dokumentima privremenog uvoza koje je izdalo odgovarajuće udruženje izdavaoc. Ono će biti odgovorno, po grupnom i pojedinačnom osnovu, prema licima od kojih se gore pomenute sume duguju, za plaćanje takvih suma.

2. Karnet ATA

Obaveza garantnog udruženja ne smije za više od 10% premašiti iznos uvoznih carina i poreza.

Karnet CPD

Garantno udruženje nije obavezno platiti sumu veću od ukupnog iznosa uvoznih carina i poreza, zajedno sa kamatom, ako se ista naplaćuje.

3. Kada carinske vlasti na teritoriji privremenog uvoza obrade i bez uslova razduže dokumente privremenog uvoza vezane za određenu robu (uključujući i prevozna sredstva), ne mogu naknadno tražiti od garantnog udruženja plaćanja iznosa prema stavu 1. ovog člana, a u vezi s istom robom (uključujući i prevozna sredstva). Zahtjev može međutim još uvijek biti podnesen protiv garantnog udruženja ako se naknadno otkrije da je razduženje dokumenata obavljeno nepropisno ili uz prevaru ili da je došlo do kršenja uslova privremenog uvoza ili carinskog tranzita.

4. Karnet ATA

Carinske vlasti neće ni u kom slučaju zahtijevati od garantnog udruženja plaćanje iznosa iz stava 1. ovog člana ako zahtjev nije iznesen protiv garantnog udruženja u roku od godinu dana od isteka roka važenja karneta ATA.

5. Karnet CPD

Carinske vlasti neće ni u kom slučaju zahtijevati od garantnog udruženja plaćanje iznosa iz stava 1. ovog člana, ako garantnom udruženju nije upućeno službeno obavještenje o ne-razduženju karneta CPD u roku od godine dana od datuma isteka roka važenja karneta. Carinske vlasti su takođe dužne garantnom udruženju saopštiti pojedinosti o obračunu uvoznih carina i poreza koje dospijevaju unutar godine dana od obavještenja o ne-razduženju. Obaveza garantnog udruženja u pogledu tih iznosa se gasi ako traženi podaci nijesu dostavljeni unutar iste godine dana.

Glava V.

Propisi u pogledu dokumenata privremenog uvoza

Član 9.

1. Karnet ATA

(a) Garantno udruženje ima rok od šest mjeseci da dostavi dokaze o ponovnom izvozu ili o drugom prihvatljivom načinu razduženja karneta ATA, s tim da rok teče od dana zahtjeva carinskih vlasti u pogledu iznosa navedenih u članu 8. stav 1. ovog Aneksa, a prema uslovima propisanim ovim Aneksom.

(b) U slučaju da takav dokaz ne bude prezentiran u datom vremenskom roku, garantno udruženje je dužno deponovati ili privremeno platiti traženu sumu. Depozit ili plaćanje postaju konačni po isteku tri mjeseca od davanja depozita ili plaćanja. U tom periodu može garantno udruženje još uvijek prezentirati dokaze tražene u tački (a) ovog stava, a u cilju ostvarenja povraćaja deponovanih ili plaćenih sredstava.

(c) U slučaju da zakoni i propisi ugovorne strane ne predviđaju mogućnost depozita ili privremenog plaćanja uvoznih carina i poreza, smatraće se da je plaćanje urađeno u skladu sa odredbama tačke (b) ovog stava konačno, uz mogućnost povraćaja uplaćenih iznosa u slučaju podnošenja dokaza navedenog u tački (a) u roku od tri mjeseca od datuma plaćanja.

2. Karnet CPD

(a) Garantno udruženje će imati rok od godinu dana od dana službenog obavještenja o nerazduženosti karneta CPD u kojem treba dostaviti dokaze o ponovnom izvozu, pod uslovima izloženim u ovom Aneksu ili o drugom načinu redovnog razduženja karneta CPD. Taj rok može, međutim, početi da teče tek od dana isteka važenja karneta CPD. U slučaju da carinske vlasti ne prihvate dostavljeni dokaz kao valjan dužne su o tome obavijestiti garantno udruženje, u roku koji nije duži od godinu dana.

(b) U slučaju da takav dokaz ne bude dostavljen u traženom roku garantno udruženje će deponovati, ili privremeno platiti, i to u roku od najviše tri mjeseca, dugovane uvozne carine i porez. Isti će depozit odnosno plaćanje postati konačno po isteku roka od jedne godine od dana plaćanja depozita ili plaćanja. Garantnom udruženju je dopušteno da do isteka tog roka dostavi dokaz tražen u tački (a) ovog stava s ciljem da ostvari povraćaj deponovanog ili plaćenog iznosa.

(c) U slučaju da zakoni i propisi ugovornih strana ne predviđaju polaganje depozita ili privremeno plaćanje uvoznih carina i poreza, smatraće se da je plaćanje, koje je učinjeno prema tački (b) konačno, ali će plaćene sume biti vraćene ako se u roku od godine dana od dana plaćanja podnese dokaz tražen u tački (a) ovog stava .

Član 10.

1. Talon ponovnog izvoza, ispunjen i potvrđen od carinskih vlasti na teritoriji privremenog uvoza, služi kao dokaz o ponovnom izvozu proizvoda (uključujući i prevozna sredstva), koji su prilikom uvoza bili pokriveni dokumentima privremenog uvoza .

2. U slučaju da ponovni izvoz nije potvrđen u skladu sa stavom 1. ovog člana, carinske vlasti na teritoriji privremenog uvoza mogu, čak i ako je rok valjanosti dokumenata istekao, prihvatiti kao dokaz o ponovnom izvozu:

(a) podatke, koje su u dokumente o privremenom uvozu ili ponovnom uvozu unijele carinske vlasti druge ugovorne strane, ili potvrdu koju su izdale iste vlasti na osnovi podataka unijetih u list koji se otkida od karneta pri uvozu ili ponovnom uvozu, pod uslovom da se podaci odnose na uvoz ili ponovni uvoz za koji se može dokazati da je izvršen nakon ponovnog izvoza, koji ta strana namjerava dokazati;

(b) bilo koji drugi dokumentovani dokaz da je roba (uključujući i prevozna sredstva) izvan te teritorije.

3. U slučaju da carinske vlasti ugovorne strane ne postave zahtjev za ponovni izvoz određenih proizvoda (uključujući i prevozna sredstva), koji su bili propušteni na njihovu teritoriju, sa dokumentima privremenog uvoza, garantno udruženje će biti oslobođeno obaveze tek kada iste vlasti potvrde na dokumentima da je status tih proizvoda (uključujući i prevozna

sredstva) zakonski uređen.

Član 11.

U slučajevima navedenim u članu 10, stav 2 ovog Aneksa, carinske vlasti imaju pravo naplatiti upravnu taksu .

Glava VI.

Ostale odredbe

Član 12.

Upisi koje carina vrši na dokumentima privremenog uvoza, koji se koriste pod uslovima navedenim u ovom Aneksu, ne podliježu plaćanju troškova za rad carinske službe, ako je obavljen u carinskim ispostavama u vrijeme njihovog redovnog poslovanja.

Član 13.

U slučaju uništenja, gubitka ili krađe dokumenata privremenog uvoza za vrijeme dok su proizvodi (uključujući i prevozna sredstva), na koje se dokumenti odnose, na teritoriji jedne od ugovornih strana, carinske vlasti te ugovorne strane će prihvatiti zamjenske dokumente sa rokom važenja koji ističe kada i rok važenja dokumenata koje zamjenjuju, a na zahtjev udruženja izdavaoca i u skladu s uslovima koje te vlasti propišu .

Član 14.

1. U slučaju kada se očekuje da posao privremenog uvoza traje duže nego što važe dokumenti privremenog uvoza, jer vlasnik dokumenata ne može obaviti ponovni izvoz proizvoda (uključujući i prevozna sredstva) unutar datog roka, udruženje koje je izdalo dokumente može izdati zamjenske dokumente. Ti dokumenti će biti podnijeti na provjeru carinskim vlastima rečene ugovorne strane. Carinske vlasti će razdužiti zamijenjene dokumente kada prihvate zamjenske dokumente .

2. Važenje karneta CPD se može produžiti samo jednom i to na rok koji ne prelazi jednu godinu. Po isteku tog roka, mora se izdati novi karnet u zamjenu za raniji karnet, a carinske vlasti su dužne prihvatiti ga.

Član 15.

Carinske vlasti su dužne, kod primjene člana 7. paragraph 3 ove Konvencije i kada je to moguće, službeno obavijestiti garantno udruženje o zadržavanju proizvoda (uključujući i prevozna sredstva), koje je učinjeno s njihove strane ili u njihovo ime, a uvoz je proizvoda pokriven dokumentima privremenog uvoza i pod garancijom tog udruženja. Carinske vlasti su takođe dužne obavijestiti udruženje o mjerama koje namjeravaju preduzeti.

Član 16.

U slučaju prevare, prekršaja ili zloupotrebe i bez obzira na odredbe ovog Aneksa, carinske vlasti su slobodne započeti

postupak protiv osoba koje koriste dokumente privremenog uvoza, a u cilju namirenja uvoznih carina i poreza, ostalih prispjelih potraživanja i izricanja kazni koje su tim osobama primjerene. U tom slučaju udruženja su dužna pružiti pomoć carinskim vlastima.

Član 17.

Dokumenti privremenog uvoza ili njihovi djelovi, bilo da su izdati ili će biti izdati na teritoriju na koju se uvoze, a koji se šalju udruženju izdavaocu putem garantnog udruženja, međunarodne organizacije ili carinske vlasti ugovorne strane, oslobađaju se uvoznih carina i poreza kao i uvoznih zabrana ili ograničenja. Odgovarajuće se olakšice odobravaju pri izvozu.

Član 18.

Svaka ugovorna strana ima pravo izraziti rezerve u vezi s prihvatanjem karneta ATA u poštanskom prometu u skladu sa članom 29. Konvencije.

Član 19.

1. Ovaj Aneks će, po stupanju na snagu, i u skladu sa članom 27. ove Konvencije, staviti van snage i zamijeniti Carinsku konvenciju o karnetu ATA za privremeni uvoz proizvoda, donijetu u Briselu, 6. decembra 1961. godine (Konvencija ATA) i primjenjivaće se u odnosima između ugovornih strana koje su prihvatile ovaj Aneks i ugovorne strane su ove Konvencije .

Napomena: Karneti CPD izdati od strane AIT i FIA pokrivaju isključivo drumska motorna vozila i prikolice (uključujući registrovana motorna sportska vozila koja se prevoze prikolicama)

ANEKS B.1

O PROIZVODIMA NAMIJENJENIM IZLAGANJU ILI UPOTREBI NA IZLOŽBAMA, SAJMOVIMA, SASTANCIMA ILI SLIČNIM PRIREDBAMA

Glava I.

Definicije

Član 1.

U svrhe ovog Aneksa izraz »priredba« znači :

1. trgovačka, industrijska, poljoprivredna ili zanatska izložba, sajam ili slična priredba ili izlaganje ;

2. izložba ili sastanak koji je prvenstveno organizovan u dobrotvorne svrhe ;

3. izložba ili sastanak koji je prvenstveno organizovan da bi se promovisala neka grana studija, umjetnosti, zanatstva, sporta ili naučna, obrazovna ili kulturna djelatnost, da bi se promovisale religijske spoznaje ili praksa, da bi se promovisao turizam ili prijateljstvo među narodima ;

4. susret predstavnika neke međunarodne organizacije ili međunarodne grupe organizacija ; te

5. ceremonije ili priredbe službene ili komemorativne prirode;

osim izložbi organizovanih u privatne svrhe u trgovinama ili poslovnim prostorima radi prodaje strane robe.

Glava II.

Predmet

Član 2.

1. U skladu sa članom 2. ove Konvencije, za sljedeću robu je odobren privremeni uvoz:

(a) roba namijenjena izlaganju ili demonstriranju na nekoj priredbi, uključujući i materijale na koje se odnose aneksi Sporazuma o uvozu obrazovnog, naučnog materijala i materijala koji se koristi u kulturnoj djelatnosti, Unesco, Njujork, 22. novembra 1950. godine, te njegov Protokol, Najrobi, 26. novembra 1976. godine ;

(b) roba namijenjena upotrebi u vezi sa izlaganjem proizvoda iz inostranstva na nekoj priredbi, u što je uključena i:

(i) roba koja je potrebna u svrhu demonstriranja mašina ili aparata iz inostranstva koji se izlažu;

(ii) građevinski i dekorativni materijal, uključujući i elektro opremu namijenjenu za uređenje privremenih izložbenih prostora izlagača iz inostranstva;

(iii) reklamni i demonstracioni materijal koji se koristi za javnu demonstraciju izložene robe iz inostranstva, npr. snimljeni zvučni i vizuelni materijal, filmovi i filmski dijapozitivi, kao i aparati koji se za njih koriste .

(c) oprema koja uključuje opremu za prevođenje, aparate za snimanje zvuka i slike, te filmove koji su obrazovnog, naučnog ili kulturnog karaktera, a namijenjeni su za upotrebu na međunarodnim sastancima, konferencijama ili kongresima .

2. Da bi se primijenile olakšice na koje se odnosi ovaj Aneks:

(a) broj ili količina svakog predmeta mora biti razumna, u skladu sa svrhom uvoza ;

(b) carinskim vlastima na teritoriji privremenog uvoza treba dokazati da se ispunjavaju uslovi iz ove Konvencije.

Glava III.

Ostale odredbe

Član 3.

Osim u slučaju kada to dozvoljava nacionalno zakonodavstvo zemlje privremenog uvoza, roba kojoj je odobren

privremeni uvoz, a dok je predmet olakšica koje odobrava ova Konvencija, neće:

(a) biti posuđena ili na bilo koji način korišćena za iznajmljivanje ili sticanje naknade;

ili

(b) biti premještena sa mjesta na kojem se zbiva određena priredba .

Član 4.

1. Period za ponovni izvoz robe koja je uvezena za izlaganje ili upotrebu na izložbama, sajmovima, sastancima ili sličnim priredbama, iznosiće najmanje šest mjeseci od datuma privremenog uvoza .

2. Bez obzira na odredbe navedene u stavu 1. ovog člana, carinske vlasti će robi koja treba biti izložena ili upotrijebljena sljedećom priredbom, dozvoliti da ostane na teritoriji privremenog uvoza, u skladu sa uslovima koji mogu biti zatraženi zakonima i pravilnicima koji važe na toj teritoriji, te uz uslov da se roba ponovo izveze u roku od jedne godine od datuma privremenog uvoza .

Član 5.

1. Prema uslovima navedenim u članu 13. ove Konvencije, odobriće se carinjenje bez uvoznih carina i poreza, te bez primjene uvoznih zabrana i ograničenja za sljedeću robu:

(a) mali uzorci koji predstavljaju robu iz inostranstva izloženu na nekoj priredbi, uključujući i uzorke hrane ili napitka, bilo da su uvezeni u obliku tih uzoraka ili proizvedeni od uvezenog materijala na mjestu održavanja priredbe, pod uslovom:

(i) da su besplatno nabavljeni iz inostranstva i koriste se jedino za besplatnu distribuciju među posjetiocima priredbe, te za individualnu upotrebu ili potrošnju od strane lica kojima su distribuirani;

(ii) da se mogu identifikovati kao reklamni uzorci i da im je mala individualna vrijednost;

(iii) da nijesu prigodni za komercijalne svrhe i da su, kada je to potrebno, pakovani u količinama koje su znatno manje od najmanjeg maloprodajnog pakovanja;

(iv) da se uzorci hrane i napitaka koji se ne distribuiraju u pakovanju kao što je navedeno pod (iii) konzumiraju na samom mjestu događaja; te

(v) da je ukupna vrijednost i količina uzoraka, po mišljenju carinskih vlasti teritorija privremenog uvoza, razumna s obzirom na karakter priredbe, broj posjetilaca iste i obim učešća izlagača .

(b) roba koja je uvezena isključivo za demonstriranje ili u svrhu demonstriranja rada mašina ili aparata iz inostranstva koji su izloženi na nekoj priredbi, te konzumirani ili uništeni tokom takve demonstracije, uz uslov da je, po mišljenju carinskih vlasti na teritoriji privremenog uvoza, ukupna vrijednost i količina takve robe u razumnoj mjeri, s obzirom na karakter priredbe, broj posjetilaca iste i obim učešća izlagača ;

(c) proizvodi male vrijednosti koji se koriste za građenje, opremanje i dekorisanje privremenih izlagačkih prostora izlagača iz inostranstva na nekoj priredbi, kao što su boje, lakovi i tapete ;

(d) štampani materijal, katalozi, trgovačka obavještenja, cjenovnici, reklamni posteri, kalendari, ilustrovani ili ne, neuokvirene fotografije koje su reklamni materijal robe iz inostranstva izložene na nekom događanju, uz uslov:

(i) da su besplatno nabavljeni iz inostranstva i koriste se jedino za besplatnu distribuciju među posjetiocima te priredbe;

te

(ii) da je ukupna vrijednost i količina takve robe, po mišljenju carinskih vlasti na teritoriji privremenog uvoza, u razumnoj mjeri s obzirom na karakter priredbe, broj posjetilaca iste i obim učešća izlagača .

(e) spisi, zapisi, formulari i ostali dokumenti koji se uvoze za upotrebu kao takvi ili u vezi sa međunarodnim sastancima, konferencijama ili kongresima .

2. Odredbe iz stava 1. ovog člana neće se primjenjivati na alkoholna pića, duvanske proizvode i goriva .

Član 6.

1. Carinski pregled i carinjenje u uvozu i ponovnom izvozu robe koja će biti ili je već izložena ili korišćena na nekoj priredbi, kad god je to moguće i prikladno, biće izvršeno na mjestu održavanja priredbe.

2. Svaka strana ovog Ugovora će nastojati, kad god će to smatrati prikladnim u pogledu važnosti i veličine događaja, da osnuje carinsku kancelariju koja će, u nekom razumnom vremenskom periodu, djelovati u prostorijama događaja koji se održava na njenoj teritoriji .

Član 7.

Proizvodi dobijeni uzgred u toku održavanja priredbe od privremeno uvezene robe, a kao rezultat demonstriranja izloženih mašina ili aparata, biće predmet odredbi ove Konvencije .

Član 8.

Sve ugovorne strane mogu izjaviti rezerve, u skladu sa članom 29. ove Konvencije, s obzirom na odredbe iz člana 5. stav 1(a) ovog Aneksa .

Član 9.

Po stupanju na snagu, ovaj Aneks će, u skladu sa članom 27. ove Konvencije staviti van snage i zamijeniti Carinsku konvenciju o olakšicama pri uvozu robe na izlaganje ili korišćenje na izložbama, sajmovima, sastancima i sličnim priredbama, Brisel, 8. juna 1961. godine, u odnosu između ugovornih strana koje su prihvatile ovaj Aneks, a ugovorne strane su te Konvencije .

ANEKS B.2

O STRUČNOJ OPREMI

Glava I.

Definicije

Član 1.

U svrhu ovog Aneksa, termin »stručna oprema« znači :

1. oprema za štampanje, za emitovanje zvuka ili televizijsko emitovanje, koja je potrebna predstavnicima štampe, radija ili televizije koji posjećuju teritoriju druge zemlje u svrhe izvještavanja ili da bi emitovali i snimili materijal za određene programe . Opisana lista takve opreme nalazi se u Prilogu I ovom Aneksu ;

2. kinematografska oprema koja je potrebna licu koje posjećuje teritoriju neke druge zemlje radi snimanja jednog ili više filmova . Opisana lista ove opreme nalazi se u Prilogu II ovom Aneksu ;

3. sva ostala oprema koja je neophodna za obavljanje zanimanja, zanata ili profesije lica koja posjećuju teritoriju neke druge zemlje da bi izvršila određeni zadatak . To ne uključuje opremu koja se koristi u industrijskoj proizvodnji i pakovanju robe ili (osim u slučaju ručnog alata) za eksploataciju prirodnih resursa, za izgradnju, popravke ili održavanje zgrada ili zemljanih ili sličnih radova . Opisana lista takve opreme nalazi se u Prilogu III ovom Aneksu ;

4. pomoćni aparati za opremu navedenu u stavovima 1., 2. i 3. ovog člana i propratni pribor .

Glava II.

Predmet

Član 2.

U skladu sa članom 2. ove Konvencije privremeni uvoz odobrava se za sljedeću robu :

(a) stručna oprema;

(b) sastavni djelovi koji su uvezeni za popravku stručne opreme za koju je dozvoljen privremeni uvoz po tački (a) .

Glava III.

Ostale odredbe

Član 3.

1. Za primjenu olakšica koje odobrava ovaj Aneks, stručna oprema će biti:

(a) u vlasništvu lica koje ima sjedište ili prebivalište van teritorije privremenog uvoza ;

(b) uvezena od strane lica koje ima sjedište ili prebivalište van teritorije privremenog uvoza ;

(c) korišćena jedino od strane ili pod ličnim nadzorom lica koja posjećuje teritoriju privremenog uvoza.

2. Stav 1.(c) ovog člana neće se primijeniti u slučaju da je oprema uvezena za proizvodnju filma, televizijskog programa ili audiovizuelnih radova koji su dio koprodukcijskog ugovora u kojem je lice koje je nastanjeno na teritoriji privremenog uvoza jedna od strana, uz odobrenje organa u čijoj je to nadležnosti na toj teritoriji, a slijedeći međudržavni sporazum o koprodukciji.

3. Kinematografska oprema i oprema za štampanje ili za emitovanje zvuka ili televizijsko emitovanje neće biti predmet ugovora o zakupu ili sličnog sporazuma u kojem je lice nastanjeno na teritoriji privremenog uvoza jedna od strana, ali se ovaj uslov ne odnosi na slučajeve zajedničkih programa emitovanja zvuka ili televizijskog emitovanja .

Član 4.

1. Privremeni uvoz radijske i televizijske opreme za produkciju i emitovanje, te specijalno adaptiranih radijskih ili televizijskih vozila i njihove opreme, od strane javnih ili privatnih tijela koja su za to dobila odobrenje carinskih vlasti na teritoriji privremenog uvoza, odobrava se bez zahtjeva za carinskim dokumentom ili obezbjeđenjem.

2. Carinske vlasti mogu zatražiti podnošenje liste ili detaljnog inventara opreme na koju se odnosi stav 1. ovog člana, zajedno sa pisanom izjavom kojom preuzima obavezu ponovnog izvoza.

Član 5.

Vremenski period za ponovni izvoz stručne opreme je najmanje 12 mjeseci od datuma privremenog uvoza. Vremenski period za ponovni izvoz vozila, međutim može biti određen s obzirom na svrhu i namjeravanu dužinu boravka na teritoriji privremenog uvoza.

Član 6.

Svaka ugovorna strana ima pravo odbiti i povući odobrenje za privremeni uvoz u pogledu vozila na koja se odnose Prilozi I i III ovom Aneksu koja, bilo to i samo povremeno, vrše ukrcaj lica uz naplatu ili vrše utovar robe na svojoj teritoriji, da bi se iskrcali, odnosno, istovarili na mjestu koje je unutar iste teritorije .

Član 7.

Prilozi ovom Aneksu čine njegov sastavni dio .

Član 8.

Po stupanju na snagu, ovaj Aneks će, u skladu s članom 27. ove Konvencije, staviti van snage i zamijeniti Carinsku konvenciju o privremenom uvozu stručne opreme, Brisel, 8. juna 1961. godine, u odnosu između ugovornih strana koje prihvataju ovaj Aneks, a ugovorne su strane te Konvencije .

PRILOG I

OPREMA ZA ŠTAMPANJE ILI ZA EMITOVANJE ZVUKA ILI TELEVIZIJSKO EMITOVANJE

Opisna lista

A. Oprema za štampanje, kao što su:

- personalni kompjuteri,

- telefax oprema,

- pisaće mašine,

- sve vrste kamera (filmske i elektronske kamere) ,

- aparati za prenos, snimanje ili reprodukciju zvuka ili slike (magnetofoni i video rekorderi i video plejeri, mikrofoni, miks pultovi, zvučnici),

- nosači zvuka ili slike, prazni ili snimljeni ,

- instrumenti i aparati za testiranje i mjerenje (oscilografi, sistemi za testiranje magnetofona i video rekordera, multimetri, kutije i vreće za alat, vektroskopi, video generatori itd.),

- oprema za rasvjetu (reflektori, konvertori, stativi),

- oprema za rukovanje (kasete, svjetlomjeri, objektivi, stativi, akumulatori, baterijski remeni, punjači baterija, monitori).

B. Oprema za emitovanje zvuka, kao što su:

- telekomunikacijska oprema kao što su odašiljači-prijemnici ili odašiljači, terminali koji se mogu prikopčati na mrežu ili kabal, satelitske veze,

- oprema za proizvodnju audio frekvencije (mikrofoni, aparati za snimanje ili reprodukciju),

- instrumenti i aparati za testiranje i mjerenje (oscilografi, sistemi za testiranje magnetofona i video rekordera, multimetri, kutije i vreće za alat, vektroskopi,

video generatori itd.),

- oprema za rukovanje (satovi, štoperice, kompasi, mikrofoni, miks pultovi, magnetofonske trake, generatori, transformatori, baterije i akumulatori, punjači baterija, uređaji za grijanje, klimatizaciju i ventilaciju itd.),

- nosači zvuka, prazni ili snimljeni.

C. Oprema za televizijsko emitovanje, kao što su:

- televizijske kamere ,

- telekino,

- instrumenti i aparati za testiranje i mjerenje,

- aparati za emitovanje i re-emitovanje,

- komunikaciona oprema,

- oprema za snimanje ili reprodukciju zvuka ili slike (magnetofoni, video rekorderi i video plejeri, mikrofoni, miks pultovi, zvučnici),

- rasvjeta (reflektori, konvertori, stativi),

- uređivačka oprema,

- pribor za rukovanje (satovi, štoperice, kompasi, objektivi, svjetlomjeri, stativi, punjači baterija, kasete, generatori, transformatori, baterije i akumulatori, grijanje, klimatizacioni uređaji i uređaji za ventilaciju, itd.),

- nosači zvuka ili slike, prazni ili snimljeni (odjavne špice, signali stanice, muzički inserti, itd.) ,

- probni snimci ,

- muzički instrumenti, kostimi, scenografija i ostali scenski rekviziti, postolja, šminka, fenovi za kosu .

D. Vozila koja su kreirana ili naročito prilagođena za gore navedene namjene, kao što su:

- vozila za televizijske prenose,

- vozila za televizijsku opremu,

- vozila za video snimanja,

- vozila za snimanje i reprodukciju zvuka,

- vozila za slow-motion,

- vozila za svijetlo .

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PRILOG II

KINEMATOGRAFSKA OPREMA

Opisna lista

A. Oprema kao što su:

- sve vrste kamera (filmske i elektronske kamere) ,

- instrumenti i aparati za testiranje i mjerenje (oscilografi, sistemi za testiranje magnetofona i video rekordera, multimetri, kutije i vreće za alat, vektroskopi, video generatori itd.),

- kranovi i pecaljke,

- rasvjeta (reflektori, konvertori, stativi),

- uređivačka oprema,

- aparati za snimanje i reprodukciju zvuka i slike (magnetofoni, video rekorderi i video plejeri, mikrofoni, miks pultovi, zvučnici),

- nosači zvuka ili slike, prazni ili snimljeni (odjavne špice, signali stanice, muzički inserti itd.) ,

- probni snimci ,

- pribor za rukovanje (satovi, štoperice, kompasi, mikrofoni, miks pultovi, magnetofonske trake, generatori, transformatori, baterije i akumulatori, punjači baterija, grijanje, uređaji za klimatizaciju i uređaji za ventilaciju, itd.),

- muzički instrumenti, kostimi, scenografija i ostali scenski rekviziti, postolje, šminka, fenovi za kosu .

B. Vozila kreirana ili naročito prilagođena za gore navedene svrhe.

PRILOG III

OSTALA OPREMA

Opisna lista

A. Oprema za podizanje, testiranje, stavljanje u pogon, provjeru, kontrolu, održavanje ili popravku mašina, postrojenja, prevoznih sredstava itd., kao što su:

- alati,

- oprema i instrumenti za mjerenje, provjeru ili testiranje (temperature, pritiska, udaljenosti, visine, površine, brzine itd.), uključujući električne instrumente (voltmetri, mjerači jačine struje, kablovi za mjerenje, komparatori, transformatori, instrumenti za snimanje itd.) i stege,

- aparati i oprema za fotografsko snimanje mašina i postrojenja za ili nakon podizanja,

- aparati za istraživanje brodova.

B. Oprema koja je neophodna poslovnim ljudima, poslovnim savjetnicima, stručnjacima za produktivnost, računovođama ili pripadnicima sličnih zanimanja, kao što su:

- personalni kompjuteri,

- pisaće mašine,

- aparati za snimanje, reprodukovanje i emitovanje zvuka ili slike,

- kalkulatori i aparati.

C. Oprema koja je neophodna stručnjacima koji preduzimaju topografska ili geofizička istraživanja, kao što su:

- instrumenti i aparati za mjerenje,

- električne bušilice,

- oprema za emitovanje i komunikaciona oprema.

D. Oprema potrebna stručnjacima za borbu protiv zagađenja.

E. Instrumenti i aparati potrebni ljekarima, hirurzima, veterinarima, babicama i pripadnicima sličnih zanimanja.

F. Oprema potrebna arheolozima, paleontolozima, geografima, zoolozima i ostalim naučnicima.

G. Oprema potrebna zabavljačima, pozorišnim družinama i orkestrima, uključujući sve predmete koji se koriste za javne ili privatne nastupe (muzički instrumenti, kostimi, scenografija itd.).

H. Oprema potrebna predavačima da bi ilustrovali svoja predavanja.

I. Oprema potrebna za fotografisanje (sve vrste kamera, kasete, svjetlomjeri, objektivi, stativi, akumulatori, baterijski remeni, punjači baterija, monitori, rasvjeta, modna odjeća i pribor za modele itd.).

J. Vozila kreirana ili naročito prilagođena za gore navedene svrhe, kao što su pokretne jedinice za ispitivanje, pokretne radionice i pokretne laboratorije.

ANEKS B.3

O KONTEJNERIMA, PALETAMA, AMBALAŽI, UZORCIMA I DRUGOJ ROBI KOJA SE UVOZI U VEZI SA NEKOM KOMERCIJALNOM OPERACIJOM

Glava I.

Definicije

Član 1.

U svrhe ovog Aneksa, termin:

a) »roba uvezena u vezi sa nekom komercijalnom operacijom« označava:
kontejnere, palete, ambalažu, uzorke, reklamne filmove i svu drugu robu koja se uvozi u vezi sa nekom komercijalnom operacijom a čiji uvoz sam po sebi ne predstavlja komercijalnu operaciju ;

b) »ambalaža« označava:
sve predmete i materijale koji se koriste ili se mogu koristiti u onom obliku u kojem su uvezeni za pakovanje, zaštitu, spremanje ili razdvajanje roba, sa izuzetkom ambalažnih materijala kao što su slama, papir, staklena vuna, piljevina i sl., kada se uvoze na veliko. Kontejneri i palete, onako kako su definisani u stavkama (c) odnosno (d) ovog člana takođe su izuzeti .

c) »kontejner« označava:
opremu za prevoz (pokretni kontejner, pokretni rezervoar ili slični objekat) koja je:

(i) potpuno ili djelimično zatvorena tako da sačinjava odjeljak namijenjen prevozu robe;

(ii) trajnog karaktera i stoga dovoljno čvrsta da se može koristiti višekratno;

(iii) posebno dizajnirana za olakšavanje prevoza robe, jednim ili više vrsta transportnih sredstava, bez potrebe međupretovara;

(iv) dizajnirana za lako rukovanje, naročito pri prenošenju iz jednog na drugo prevozno sredstvo;

(v) dizajnirana tako da se lako puni i prazni; te

(vi) unutrašnje zapremine od najmanje jednog kubnog metra.

»Kontejner« uključuje i propratni pribor i opremu kontejnera, adekvatnu tipu kontejnera, pod uslovom da se taj pribor i oprema prevoze s kontejnerom. Termin »kontejner« ne obuhvata vozila, pribor i rezervne djelove vozila, ni ambalažu i palete. »Odvojive prikolice« smatraće se kontejnerima .

d) »paleta« označava:
napravu na čijoj se platformi može smjestiti određena količina robe koja tako čini jedinstveni teret u svrhu prevoza, rukovanja ili slaganja uz pomoć mehaničkih sprava. Ova je naprava izrađena od samo dvije površine koje su razdvojene nosačima, ili pak od samo jedne površine koja stoji na nogarima; visina je smanjena na najmanju moguću mjeru a koja još uvijek omogućava pomicanje viljuškarima ili ručnim viljuškarima; ona može ali ne mora imati nadgradnju;

e) »uzorci« označavaju:
artikle koji su predstavnici određene kategorije roba koje se već proizvode ili pak primjere roba čija se proizvodnja tek planira, ali ne uključuje identične proizvode koje unosi pojedinac, ili koji su poslati jednom primaocu, u takvoj količini da sveukupno više ne predstavljaju uzorke u uobičajenom komercijalnom smislu;

f) »reklamni filmovi« označavaju:
snimljene vizuelne medije, sa ili bez zvuka, koji se u suštini, sastoje od slika koje prikazuju vrstu ili djelovanje proizvoda ili opreme koju, na prodaju ili u zakup, daje lice koje ima sjedište ili prebivalište na teritoriji neke druge ugovorne strane, pod uslovom da su filmovi takvi da se mogu prikazivati potencijalnim kupcima ali ne i u javnosti; te da se uvoze u paketu koji ne sadrži više od jednog primjerka svakog filma i koji ne čini dio veće pošiljke filmova ;

g) »unutrašnji promet« označava:
prevoz roba utovarenih na carinskom području jedne ugovorne strane za istovar u mjestu koje je unutar carinskog područja iste ugovorne strane .

Glava II.

Predmet

Član 2.

Privremeni uvoz biće dopušten za sljedeću robu koja se uvozi u vezi s nekom komercijalnom operacijom u skladu sa članom 2. ove Konvencije:

(a) ambalaža koja se uvozi puna, te se ponovo izvozi prazna ili puna, ili se pak uvozi prazna a izvozi puna ;

(b) kontejneri, prazni ili puni robe, te pribor i oprema za kontejnere koji se privremeno uvoze, koji se ili uvoze zajedno s kontejnerom a ponovo se izvoze odvojeno ili pak sa drugim kontejnerom, ili se uvoze odvojeno da bi se ponovo izvezli sa kontejnerom ;

(c) sastavni djelovi namijenjeni popravci kontejnera koji se privremeno uvoze pod stavom (b) ovog člana;

(d) palete;

(e) uzorci;

(f) reklamni filmovi;

(g) bilo koja druga roba koja se uvozi u neku od svrha navedenih u Prilogu I ovog Aneksa u vezi s komercijalnom operacijom, ali čiji uvoz sam po sebi ne predstavlja komercijalnu operaciju.

Glava III.

Ostale odredbe

Član 3.

Odredbe ovog Aneksa ne zadiru u carinsko zakonodavstvo ugovornih strana u pogledu uvoza roba koje se prenose u kontejnerima, ambalaži ili na paletama .

Član 4.

1. Da bi se olakšice određene ovim Aneksom mogle primjenjivati:

(a) ambalažu može ponovo izvesti samo osoba kojoj je dozvoljen privremeni uvoz. Ona se ne smije, čak ni povremeno, koristiti u unutrašnjem prometu,

(b) kontejneri moraju biti obilježeni na način opisan u Prilogu II ovog Aneksa. Mogu se koristiti za prevoz robe u unutrašnjem prometu, u kom slučaju svaka ugovorna strana ima pravo postaviti sljedeće uslove:

- putovanje će kontejner dovesti prilično direktnom trasom do, ili blizu mjesta gdje se izvozni teret mora utovariti ili odakle će se kontejner prazan izvesti;

- kontejner će se koristiti samo jednom u unutrašnjem prometu prije ponovnog izvoza ;

(c) palete ili isti broj paleta istog tipa i iste vrijednosti morale su prethodno biti izvezene ili će pak biti izvezene ili ponovo izvezene naknadno ;

(d) uzorci i reklamni filmovi moraju biti u vlasništvu lica koje ima firmu ili prebivalište van teritorije na koju se vrši privremeni uvoz i moraju se uvoziti isključivo u svrhu prikazivanja ili prezentacije na teritoriji gdje se privremeno uvoze, za dobijanje narudžbi za uvoz robe na tu teritoriju. Oni se ne smiju prodavati ili koristiti na uobičajen način, osim u svrhe prezentacije, niti se smiju na bilo koji način davati u zakup ili uz naknadu dok se nalaze na teritoriji na koji im je dopušten privremeni uvoz.

(e) roba navedena u stavkama 1 i 2 Priloga I ovog Aneksa, ne smije se koristiti u djelatnostima kojima je svrha dobit .

2. Sve ugovorne strane imaju pravo da ne dozvole privremeni uvoz kontejnera, paleta, ili ambalaže koja je bila predmet kupovine, kupovine na otplatu, zakupa ili nekog sličnog ugovora, koji su zaključila lica sa firmom ili prebivalištem na njihovoj teritoriji .

Član 5.

1. Privremeni uvoz kontejnera, paleta, i ambalaže odobrava se bez carinskog dokumenta ili obezbjeđenja .

2. Umjesto carinskog dokumenta i obezbjeđenja za kontejnere, od lica kome se odobrava privremeni uvoz može biti zatraženo da se pismeno obaveže;

(i) da će carinskim vlastima na njihov zahtjev podnijeti detaljne podatke o kretanju svih kontejnera kojima je dopušten privremeni uvoz, uključujući i datume i mjesta ulaska i izlaska iz teritorija na koji se privremeno uvoze, ili pak popis kontejnera s obavezom na ponovni izvoz;

(ii) da će platiti sve potrebne uvozne carine i porez ukoliko se ne ispune uslovi pod kojima se dozvoljava privremeni uvoz.

3. Umjesto carinskog dokumenta i obezbjeđenja za palete i ambalažu, od lica kome se dozvoljava privremeni uvoz, može biti zatraženo da podnese carinskim vlastima pismenu obavezu za ponovni izvoz .

4. Licima koje redovno koriste proceduru za privremeni uvoz biće dozvoljeno da podnesu opštu obavezu.

Član 6.

Vremenski period u kojem robu uvezenu u vezi s nekom komercijalnom operacijom treba ponovno izvesti mora biti najmanje šest mjeseci do datuma privremenog uvoza .

Član 7.

Sve ugovorne strane mogu, u skladu sa članom 29. ove Konvencije, izjaviti rezerve u pogledu:

(a) ne više od tri grupe roba navedenih u članu 2.;

(b) člana 5. stava 1. ovog Aneksa .

Član 8.

Dodaci ovom Aneksu smatraju se njegovim sastavnim dijelom.

Član 9.

Po stupanju na snagu ovaj će Aneks, u skladu sa članom 27. ove Konvencije, staviti van snage i zamijeniti sljedeće konvencije i odredbe:

- Evropsku konvenciju o carinskom tretmanu paleta u međunarodnom prometu, Ženeva, 9. decembra 1960. godine,

- Carinsku konvenciju o privremenom uvozu ambalaže, Brisel, 6. oktobra 1960. godine,

- članove 2. do 11. te Anekse 1 (stav 1 i 2) do 3 Carinske konvencije o kontejnerima, Ženeva, 2. decembra 1972. godine,

- članove 3., 5. i 6. (1.b i 2) Međunarodne konvencije o olakšavanju uvoza komercijalnih uzoraka i reklamnog materijala, Ženeva, 7. novembra 1952. godine,

u odnosima među ugovornim stranama koje su prihvatile ovaj Aneks i koje su ugovorne strane u ovim Konvencijama .

PRILOG I

Lista roba na koje se odnosi Član 2. (g)

1. Roba koja je uvezena za potrebe testiranja, provjere, eksperimenata ili demonstriranja.

2. Roba koja se koristi u testiranju, provjeravanju, eksperimentima ili demonstriranju.

3. Snimljeni i razvijeni kinematografski filmovi, pozitivni i ostali snimljeni nosači slike namijenjeni prikazivanju koje prethodi komercijalnoj upotrebi istih .

4. Filmovi, magnetske vrpce, magnetizovani filmovi i ostali nosači zvuka ili slike namijenjeni snimanju, zvučnoj montaži ili reprodukciji.

5. Nosači podataka, besplatno poslati, za korišćenje u automatskoj obradi podataka.

6. Predmeti (uključujući i vozila) koji su po svojoj prirodi prikladni jedino za oglašavanje određenih artikala ili za publikovanje u specifične svrhe.

PRILOG II

Odredbe koje se odnose na obilježavanje kontejnera

1. Na odgovarajućim i jasno vidljivim mjestima u kontejnerima trebaju biti trajno označene sljedeće informacije:

(a) identitet vlasnika ili glavnog operatera,

(b) identifikacione oznake i brojevi kontejnera koje daje vlasnik ili operater, te

(c) tara težina kontejnera uključujući i svu trajno instaliranu opremu.

2. Zemlja kojoj pripada kontejner može biti označena ili punim imenom ili kao oznaka države ISO Alpha-2 po međunarodnim standardima ISO 3166 ili upotrebom određenog znaka koji se koristi da bi se označila zemlja registracije motornog vozila koje je učesnik u međunarodnom putnom prometu. Svaka zemlja može korišćenje svog imena ili određenog znaka u kontejneru podvrgnuti svojim nacionalnim zakonima. Identitet vlasnika ili operatera može biti izražen ili njegovim punim imenom ili nekom određenom identifikacijom u koju nije uključena upotreba simbola kao što su amblemi ili zastave.

3. Identifikacione oznake i brojevi na kontejnerima smatraju se trajnim oznakama kada se koriste plastične naljepnice, a moraju odgovarati sljedećim specifikacijama:

(a) Upotreba visokokvalitetnog ljepila. Nanesena naljepnica mora imati snagu rastegljivosti nižu od finalne adhezije tako da je nemoguće odstraniti je a da se ne uništi. Naljepnica proizvedena po metodi odliva u skladu je sa ovim zahtjevima. Naljepnica proizvedena po kalendarskoj metodi ne može se koristiti;

(b) kada se moraju promijeniti identifikacione oznake i brojevi, prije nego se pričvrsti nova naljepnica, stara mora biti u potpunosti odstranjena. Nije dozvoljeno postaviti novu naljepnicu preko već postojeće.

4. Specifikacije za upotrebu plastičnih naljepnica za označavanje kontejnera iz stava 3. ovog Priloga ne isključuje mogućnost upotrebe ostalih načina trajnog označavanja.

ANEKS B.4

O UVOZU ROBE ZA PROIZVODNE DJELATNOSTI

Glava I.

Definicija

Član 1.

Za primjenu ovog Aneksa »roba uvezena za proizvodne djelatnosti« označava:

1. (a) matrice, blokove, ploče, crteže, planove, modele i ostale slične artikle;

(b) predmete za mjerenje, kontrolu i provjeru, te druge slične predmete;

(c) specijalne alate i instrumente;

uvezene za upotrebu u proizvodnim procesima;

2. »rezervna sredstva za proizvodnju« znače:

instrumenti, uređaji, mašine koje dobavljač ili onaj koji je zadužen za popravku daje na raspolaganje kupcu za vrijeme isporuke ili popravke takve robe .

Glava II.

Predmet

Član 2.

Za robu uvezenu za proizvodne djelatnosti biće odobren privremeni uvoz u skladu sa članom 2. ove Konvencije .

Glava III.

Ostale odredbe

Član 3.

Uslovi za primjenu odredbi ovog Aneksa:

(a) roba uvezena za proizvodnu djelatnost mora biti u vlasništvu pravne osobe sa sjedištem van teritorije privremenog uvoza, i namijenjena pravnoj osobi na toj teritoriji ;

(b) sva ili dio (kako to predviđa nacionalno zakonodavstvo) proizvodnje od robe uvezene za proizvodnu djelatnost, opisane u članu 1. stav 1 ovog Aneksa, mora biti izvezena sa teritorije privremenog uvoza ;

(c) zamjena sredstava za proizvodnju mora se omogućiti, privremeno i bez naplate, pravnoj osobi na teritoriji na kojoj je odobren privremeni uvoz, i to od strane ili preko snabdjevača zakašnjelih sredstava za proizvodnju ili sredstava za proizvodnju koje treba popraviti .

Član 4.

1. Vremenski period za ponovni izvoz robe predviđene članom 1. stav 1 ovog Aneksa je najmanje 12 mjeseci od datuma privremenog uvoza.

2. Vremenski period za ponovni izvoz zamijenjenih sredstava za proizvodnju je najmanje 6 mjeseci od datuma privremenog uvoza .

ANEKS B.5

O PROIZVODIMA KOJI SE UVOZE ZA POTREBE OBRAZOVANJA, NAUKE I KULTURE

Glava I.

Definicije

Član 1.

Za svrhe ovog Aneksa:

(a) »roba uvezena za potrebe obrazovanja, nauke i kulture« označava:

naučnu opremu, pedagoški materijal, materijal za razonodu pomoraca, te svu ostalu robu koja je uvezena u vezi s obrazovnim, naučnim ili kulturnim djelovanjem ;

(b) u stavu (a):

(i) »naučna oprema i pedagoški materijal« označava:
- sve modele, instrumente, aparate, mašine ili pribor koji se koristi u svrhu naučnog istraživanja ili u obrazovnom ili strukovnom podučavanju,

(ii) »materijal za razonodu pomoraca« označava:
- materijal potreban za provođenje kulturnih, obrazovnih, rekreativnih, religijskih ili sportskih aktivnosti od strane lica zaduženih za obaveze koje su u vezi s radom ili uslugama na moru ili stranom brodu koji je učesnik u međunarodnom pomorskom prometu .

Opisne liste »pedagoški materijali«, »pomoćni materijali za pomorce« i »ostala roba uvezena u vezi s obrazovnim, naučnim ili kulturnim aktivnostima« nalaze se po istom redosljedu u Prilogu I, II i III ovog Aneksa .

Glava II.

Predmet

Član 2.

Privremeni uvoz biće, u skladu sa članom 2. ove Konvencije, odobren za sljedeću robu :

(a) roba uvezena isključivo u obrazovne, naučne i kulturne svrhe ;

(b) rezervni dijelovi za naučnu opremu i pedagoški materijal za koje je odobren privremeni uvoz u skladu s prethodnim stavom (a), te alati koji su naročito kreirani za održavanje, provjeru, baždarenje ili popravku takve opreme.

Glava III.

Ostale odredbe

Član 3.

Za primjenu olakšica koje odobrava ovaj Aneks:

(a) roba uvezena u obrazovne, naučne ili kulturne svrhe mora biti u posjedu lica sa sjedištem van teritorije privremenog uvoza i mora biti uvezena od strane ovlašćenih institucija u razumnoj količini u skladu sa svrhom uvoza. Ne smije se koristiti u komercijalne svrhe .

(b) materijal za razonodu pomoraca mora se koristiti na palubi stranog broda u međunarodnom pomorskom prometu ili mora biti iskrcan s broda da bi se privremeno koristio na kopnu od strane posade broda ili se uvozi za potrebe hostela, klubova ili rekreacijskih centara namijenjenih pomorcima a kojima upravljaju ili službene organizacije ili religijske i ostale organizacije koje ne stvaraju profit, te za potrebe mjesta na kojima se redovno odvijaju religijske službe za pomorce.

Član 4.

Privremeni uvoz naučne opreme, pedagoškog materijala i materijala za razonodu pomoraca koji se koristi na brodu biće odobren bez podnošenja carinskih dokumenata ili obezbjeđenja. Kada je to potrebno, za naučnu opremu i pedagoške materijale, može se zahtijevati inventarska lista sa izjavom o ponovnom izvozu.

Član 5.

Vremenski period za ponovni izvoz robe uvezene u obrazovne, naučne ili kulturne svrhe je najmanje 12 mjeseci od datuma privremenog uvoza.

Član 6.

U skladu sa članom 29. ove Konvencije svaka ugovorna strana može izjaviti rezerve, u pogledu člana 4. ovog Aneksa, koje se odnose na naučnu opremu i pedagoške materijale.

Član 7.

Prilozi ovom Aneksu čine njegov sastavni dio.

Član 8.

Kada stupi na snagu ovaj Aneks će, u skladu sa članom 27. ove Konvencije, staviti van snage i zamijeniti Carinsku konvenciju o materijalu za razonodu pomoraca, Brisel, 1. decembra 1964. godine, Carinsku konvenciju o privremenom uvozu naučne opreme, Brisel, 11. juna 1968. godine, te Carinsku konvenciju o privremenom uvozu pedagoškog materijala, Brisel, 8. juna 1970. godine, u odnosu ugovornih strana koje prihvataju ovaj Aneks i ugovornih strana tih konvencija .

PRILOG I

Pedagoški materijal

Opisna lista

(a) Aparati za snimanje i reprodukciju zvuka ili slike kao što su:

- projektori za dijapozitive i dijafilmove,

- kinematografski projektori,

- back-projektori i grafoskopi,

- magnetofoni, magnetoskopi i video oprema,

- interna televizijska oprema.

(b) Zvučni i vizuelni materijali kao što su:

- dijapozitivi, dijafilmovi i mikrofilmovi,

- kinematografski filmovi,

- materijali za snimanje zvuka (magnetne vrpce, diskete),

- video vrpce.

(c) Specijalni materijali kao što su:

- bibliografska oprema i audio-vizuelni materijali za biblioteke,

- pokretne biblioteke,

- oprema za jezične vježbe,

- oprema za simultano prevođenje,

- programirane mašine za podučavanje, mehaničke ili elektronske,

- materijali koji su naročito kreirani za obrazovanje i stručno podučavanje hendikepiranih osoba.

d) Ostali materijali kao što su:

- zidne karte, modeli, grafovi, mape, planovi, fotografije i crteži,

- instrumenti, aparati i modeli kreirani za potrebe demonstriranja,

- kompleti koji sadrže vizuelne ili auditivne pedagoške informacije, namijenjeni za podučavanje u nastavnim predmetima (nastavni sklopovi),

- instrumenti, aparati, alati i mašinski alati za učenje posla ili zanata,

- oprema, uključujući i naročito prilagođena ili kreirana vozila za upotrebu u operacijama pomoći, a koja se uvozi radi obučavanja lica koja su uključena u te operacije.

PRILOG II

Materijal za razonodu pomoraca

Opisna lista

(a) Pisani materijali kao što su:

- knjige,

- dopisni tečajevi,

- novine, magazini i periodična štampa,

- pamfleti o pomoćnim uslugama u lukama.

(b) Audio-vizuelni materijali kao što su:

- instrumenti za reprodukciju zvuka i slike,

- magnetofoni,

- radio aparati, televizori,

- kinematografski i drugi projektori,

- snimljene vrpce i diskete (tečajevi jezika, radio programi, pozdravi, muzika i zabava),

- filmovi, snimljeni i razvijeni,

- dijapozitivi,

- video vrpce.

(c) Sportska oprema kao što su:

- sportska odjeća,

- lopte,

- reketi i mreže,

- oprema za igre na brodu,

- oprema za atletiku,

- gimnastička oprema.

(d) Materijali za hobije kao što su:

- kućne igre,

- muzički instrumenti,

- materijali za amaterske dramske priredbe,

- materijali za slikanje, vajarstvo, rad u drvetu, metalu, tapetarstvo itd.

(e) Oprema za religijske aktivnosti.

(f) Djelovi i pribor za materijale za razonodu.

PRILOG III

Druga uvezena roba u vezi sa obrazovnim, naučnim ili kulturnim djelatnostima

Opisna lista

Roba kao što su:

1. kostimi i scenografski predmeti besplatno poslati na posuđivanje dramskim udruženjima ili pozorištima;

2. notni tekstovi besplatno poslati muzičkim pozorištima i orkestrima.

ANEKS B.6.

O LIČNIM PREDMETIMA PUTNIKA I PREDMETIMA UVEZENIM U SPORTSKE SVRHE

Glava I.

Definicije

Član 1.

U svrhu ovog Aneksa:

a) »putnik« označava:
sva lica koja privremeno ulaze na teritoriju strane ovog ugovora na kojem on ili ona nijesu nastanjeni, a zbog turizma, sporta, posla, stručnih sastanaka, zdravlja, studija, itd .

b) »lični predmeti« označavaju:
sve predmete, nove ili upotrebljavane, koje putnik može s razlogom koristiti za njegovu ili njenu ličnu upotrebu za vrijeme putovanja, uzimajući u obzir sve okolnosti putovanja, ali isključujući svu robu uvezenu u komercijalne svrhe. Opisna lista ličnih predmeta nalazi se u Prilogu I ovom Aneksu .

c) »roba uvezena u sportske svrhe« označava:
sportske rekvizite i ostale predmete od strane putnika u sportskim takmičenjima ili demonstriranju ili za potrebe treninga na teritoriji zemlje privremenog uvoza. Opisna lista takve robe nalazi se u Prilogu II ovom Aneksu .

Glava II.

Predmet

Član 2.

Za lične predmete i robu uvezenu u sportske svrhe odobriće se privremeni uvoz u skladu sa članom 2. ove Konvencije .

Glava III.

Ostale odredbe

Član 3.

Da bi se primijenile olakšice koje odobrava ovaj Aneks:

a) lični predmeti moraju biti uvezeni na putnika ili u prtljagu putnika (bilo da stiže sa putnikom ili odvojeno) ;

b) roba uvezena u sportske svrhe mora biti u posjedu lica sa sjedištem ili prebivalištem van teritorije privremenog uvoza i mora biti uvezena u odgovarajućim količinama s obzirom na namjeravanu upotrebu iste .

Član 4.

1. Privremeni uvoz ličnih predmeta biće odobren bez podnošenja carinskih dokumenata ili obezbjeđenja. Međutim, ako se radi o predmetima uz koje je povezan visok iznos uvoznih carina i poreza, može se tražiti carinski dokument i obezbjeđenje .

2. Kad god je moguće, za robu koja se uvozi u sportske svrhe može se prihvatiti inventar robe zajedno sa pismenom obavezom ponovnog izvoza, umjesto carinskog dokumenta i obezbjeđenja .

Član 5.

1. Lični predmeti biće ponovo izvezeni najkasnije onda kada lice koje ih je uvezlo napusti teritoriju privremenog uvoza .

2. Vremenski period za ponovni izvoz robe uvezene u sportske svrhe biće najmanje 12 mjeseci od datuma privremenog uvoza .

Član 6.

Prilozi ovom Aneksu smatraju se sastavnim dijelom ove Konvencije .

Član 7.

Po stupanju na snagu, ovaj Aneks će, u skladu sa članom 27. ove Konvencije, staviti van snage primjenu i zamijeniti član 2. i član 5. Konvencije o carinskim olakšicama za putovanja. Njujork, 4. juna 1954. godine, a odnosi se na ugovorne strane koje prihvataju ovaj Aneks i predstavljaju ugovorne strane te Konvencije .

PRILOG I

Lični predmeti

Opisna lista

1. Odjeća

2. Higijenski artikli

3. Lični nakit

4. Foto aparati i filmske kamere sa odgovarajućom količinom filmova i pribora

5. Prenosivi projektori za dijapozitive ili filmove i pripadajući pribor zajedno s odgovarajućom količinom dijapozitiva ili filmova

6. Video kamere i prenosivi video rekorderi/plejeri sa odgovarajućom količinom vrpce

7. Prenosivi muzički instrumenti

8. Prenosivi gramofoni s gramofonskim pločama

9. Prenosivi aparati za snimanje i reprodukovanje zvuka (uključujući i diktafone) sa vrpcama

10. Prenosivi radio aparati

11. Prenosivi televizori

12. Prenosive pisaće mašine

13. Prenosivi kompjuteri

14. Prenosivi personalni kompjuteri

15. Dvogledi

16. Dječja kolica

17. Invalidska kolica

18. Sportska oprema kao što su šatori i ostala oprema za kampovanje, oprema za ribolov, oprema za planinarenje, oprema za ronjenje, sportsko oružje sa municijom, bicikli bez motora, kanui i kajaci dugi manje od 5.5 metara, skije, reketi za tenis, daske za skijanje na talasima, daske za jedrenje na vodi, zmajevi i delta letilice, oprema za golf

19. Prenosivi aparati za dijalizu ili slični medicinski aparati s potrošnim artiklima koji se uvoze za njihovu upotrebu

20. Ostali artikli koji služe izričito za ličnu upotrebu.

PRILOG II

Roba uvezena u sportske svrhe

Opisna lista

A. Oprema za atletske staze i igrališta, kao što su:

- prepone,

- koplja, diskovi, motke, kugle, kladiva.

B. Oprema za igre sa loptom, kao što su:

- razne vrste lopti,

- reketi, drvena kladiva, palice za golf, štapovi i sl.,

- razne mreže,

- stative za golove.

C. Oprema za zimske sportove, kao što su:

- skije i štapovi,

- klizaljke,

- sanke za bob,

- oprema za led.

D. Sportska odjeća, obuća, rukavice, kape, itd. svih vrsta.

E. Oprema za sportove na vodi, kao što su:

- kanui i kajaci,

- jedrilice i čamci na vesla,

- daske za jedrenje (surf) i jedra.

F. Motorna vozila i plovni objekti , kao što su:

- automobili,

- motocikli,

- motorni čamci.

G. Oprema za ostale sportove, kao što su:

- sportsko oružje i municija,

- bicikli bez motora,

- lukovi i strelice za streličare,

- oprema za mačevanje,

- oprema za gimnastiku,

- kompasi,

- prostirke i strunjače za rvanje,

- oprema za dizanje tegova,

- jahačka oprema, jednosjedi,

- zmajevi, delta letilice, daske za jedrenje na vodi,

- oprema za penjanje,

- kasete s muzikom koja prati događanja.

H. Pomoćna oprema, poput:

- oprema za mjerenje i prikazivanje rezultata,

- uređaji za pregled krvi i urina.

ANEKS B.7

O MATERIJALIMA TURISTIČKE PROMOCIJE

Glava I.

Definicije

Član 1.

U svrhu ovog Aneksa »materijalima turističke promocije« smatra se:

Roba uvezena s ciljem podsticanja javnosti za posjetu drugoj stranoj zemlji, naročito radi prisustvovanja kulturnim, vjerskim, turističkim, sportskim i stručnim sastancima ili izlaganjima koja se tamo održavaju. Opisna lista tih materijala navedena je u Prilogu Aneksa .

Glava II.

Predmet

Član 2.

Osim za materijal o kojem se govori u članu 5. ovog Aneksa za koji će biti odobren direktan uvoz oslobođen uvoznih carina i poreza , za materijale turističke promocije odobriće se privremeni uvoz u skladu sa članom 2. ove Konvencije

Glava III.

Ostale odredbe

Član 3.

Da bi se mogle primijeniti olakšice odobrene ovim Aneksom, materijali turističke promocije moraju biti u vlasništvu pravnog lica sa sjedištem van teritorije privremenog uvoza i moraju se uvesti u razumnim količinama, a u okviru namijenjene upotrebe .

Član 4.

Vremenski period u kojem materijali turističke promocije moraju biti ponovo izvezeni obuhvata najmanje 12 mjeseci od datuma privremenog uvoza .

Član 5.

Direktan uvoz oslobođen od uvozne carine i poreza biće odobren za sljedeće materijale turističke promocije :

(a) dokumenti (prospekti, brošure, knjige, časopisi, vodiči, posteri, uokvireni ili neuokvireni, neuokvirene fotografije i uvećane fotografije, zemljopisne karte bilo da su ilustrovane ili ne, štampani prozirni plakati za izloge) za besplatnu distribuciju, pod uslovom da ti dokumenti ne sadrže više od 25% privatnih komercijalnih reklama i da su očigledno kreirani za opštu javnu upotrebu;

(b) popisi i godišnjaci inostranih hotela u izdanju ili sponzorisani od strane službeničkih turističkih agencija i vozni redovi prevoznih sredstava koja posluju u inostranstvu, kada se takvi dokumenti besplatno distribuiraju i ne sadrže više od 25% privatne komercijalne reklame;

(c) tehnički materijal koji se šalje akreditovanim predstavnicima ili dopisnicima ovlašćenim od službenih turističkih agencija, a koji nije namijenjen besplatnoj distribuciji, npr. godišnjaci, telefonski imenici, popisi hotela, katalozi sajmova, ogledni primjerci rukotvorina zanemarljive vrijednosti, dokumentacija o muzejima, univerzitetima, liječilištima i sličnim ustanovama.

Član 6.

Prilog ovom Aneksu čini njegov sastavni dio.

Član 7.

Po stupanju na snagu ovaj Aneks će, u skladu sa članom 27. ove Konvencije, staviti van snage i zamijeniti dodatni Protokol konvencije o carinskim olakšicama pri kružnim putovanjima, koje se odnose na uvoz dokumenata i materijala za popularizaciju turizma, a koji je donesen u Njujorku, 4. juna 1954. godine, a odnosi se na ugovorne strane koje su prihvatile ovaj Aneks i koje su ugovorne strane tog Protokola .

PRILOG

Turistički reklamni materijal

Opisna lista

1. Materijal koji će biti izložen u kancelariji akreditovanog predstavnika ili dopisnika ovlašćenog od strane službene nacionalne turističke agencije ili na drugim mjestima koja su odobrile carinske vlasti na teritoriji privremenog ulaska: slike i crteže, uramljene fotografije i uvećanja fotografija, knjige o umjetnosti, umjetničke slike, gravure ili litografije, skulpture i tapiserije i ostala slična umjetnička djela.

2. Materijal za izložbe (staklene vitrine, stalci i slični artikli) uključujući elektro i mehaničku opremu koja je potrebna za odvijanje takve izložbe.

3. Dokumentarni filmovi, gramofonske ploče, magnetofonske vrpce i ostali zvučni snimci namijenjeni za upotrebu u priredbama gdje je ulazak slobodan, ali su isključeni oni čije se teme koriste za komercijalno reklamiranje i oni koji su u opštoj prodaji na teritoriji privremenog ulaska.

4. Razuman broj zastava.

5. Okviri za dijapozitive, foto-pozitivi, modeli, dijapozitivi, štamparski slogovi, fotografski negativi.

6. Uzorci, u razumnom broju, proizvoda nacionalnih rukotvorina, narodnih nošnji i sličnih folklornih artikala.

ANEKS B.8

O ROBAMA UVEZENIM U POGRANIČNOM PROMETU

Glava I.

Definicije

Član 1.

U svrhu ovog Dodatka:

(a) »robama uvezenim u pograničnom prometu« smatraju se:

- one robe koje prenose stanovnici pograničnih zona, a radi obavljanja svoje profesije ili trgovine (ljekari, zanatlije, itd.),

- lični ili predmeti za domaćinstvo stanovnika pogranične zone, a koje oni uvoze radi popravke, proizvodnje ili prerade,

- oprema namijenjena obradi zemlje unutar pogranične zone teritorije privremenog uvoza,

- oprema koja pripada nekom službenom tijelu, a uvozi se radi ublažavanja posljedica nekog udesa ili nepogode (požara, poplave, itd.) ;

(b) »pograničnom zonom« smatra se:

prostor carinske teritorije uz kopnenu granicu čija je površina određena nacionalnim zakonodavstvom i čije granice služe da bi se pogranični promet razlikovao od ostalog prometa ;

(c) »stanovnicima pograničnog područja« smatraju se:

lica sa stalnim ili privremenim prebivalištem u pograničnoj zoni ;

(d) »pograničnim prometom« smatra se:

uvoz robe između dvije susjedne pogranične zone, a koji vrše stanovnici pogranične zone.

Glava II.

Predmet

Član 2.

Za robe uvezene u pograničnom prometu biće odobren privremeni uvoz u skladu sa članom 2. ove Konvencije .

Glava III.

Ostale odredbe

Član 3.

Za primjenu povlastica koje odobrava ovaj Aneks:

(a) roba uvezena u pograničnom prometu mora biti vlasništvo stanovnika pogranične zone koja je susjedna zoni privremenog ulaska ;

(b) opremu za obradu zemlje moraju koristiti stanovnici pogranične zone koja je susjedna zoni privremenog uvoza, a koji rade na zemlji koja se nalazi u zoni privremenog uvoza. Ova se oprema mora koristiti za rad u poljoprivredi ili šumarstvu poput utovara ili transporta drveta ili uzgoja riba ;

(c) pogranični promet u svrhu popravke, proizvodnje ili prerade mora biti strogo nekomercijalne prirode .

Član 4.

1. Privremeni uvoz robe uvezene u pograničnom prometu biće odobren bez podnošenja carinskih dokumenata ili obezbjeđenja.

2. Svaka ugovorna strana može za odobrenje privremenog uvoza robe u pograničnom prometu zahtijevati podnošenje popisa robe s izjavom o ponovnom izvozu.

3. Privremeni uvoz također može biti odobren jednostavnim upisom u registar koji vodi carinska služba .

Član 5.

1. Vremenski period određen za ponovni izvoz robe uvezene u pograničnom prometu mora biti najmanje 12 mjeseci od datuma privremenog uvoza .

2. Oprema namijenjena obradi zemlje biće, međutim, ponovo izvezena po završetku radova .

ANEKS B.9

O ROBI UVEZENOJ U HUMANITARNE SVRHE

Glava I.

Definicije

Član 1.

U svrhu ovog Dodatka:

(a) »robom uvezenom u humanitarne svrhe« smatra se:

- medicinska, hirurška i laboratorijska oprema i pošiljke pomoći;

(b) »pošiljkama pomoći« smatra se:

- sva roba, poput vozila ili drugih prevoznih sredstava, pokrivača, šatora, montažnih kuća, ili druge vrste robe za primarne potrebe, koja se upućuje kao pomoć onima koje je pogodila elementarna nepogoda ili slične katastrofe .

Glava II.

Predmet

Član 2.

Robama uvezenim u humanitarne svrhe biće odobren privremeni uvoz u skladu sa članom 2. ove Konvencije .

Glava III.

Ostale odredbe

Član 3.

Za primjenu povlastica koje odobrava ovaj Aneks:

(a) roba uvezena u humanitarne svrhe mora biti vlasništvo lica koje živi van teritorije privremenog uvoza i mora biti posuđena besplatno;

(b) medicinska, hirurška i laboratorijska oprema mora biti namijenjena upotrebi u bolnicama i drugim zdravstvenim ustanovama, kojima je hitno potrebna zbog vanrednih uslova u kojima se nalaze, ako tu opremu nije moguće nabaviti u dovoljnim količinama na teritoriji privremenog uvoza ;

(c) pošiljke pomoći moraju se otpremiti licima koja imaju odobrenje nadležnih vlasti na teritoriji privremenog uvoza .

Član 4.

1. Kad god je to moguće, za medicinsku, hiruršku i laboratorijsku opremu, može se, umjesto carinskog dokumenta i obezbjeđenja, prihvatiti popis robe zajedno sa pismenom obavezom ponovnog izvoza .

2. Privremeni uvoz pošiljkama pomoći biće odobren i bez podnošenja carinskih dokumenata ili obezbjeđenja. Međutim, carinske vlasti mogu zatražiti popis robe zajedno sa izjavom o ponovnom izvozu .

Član 5.

1. Rok u kojem treba izvršiti ponovni izvoz medicinske, hirurške i laboratorijske opreme biće određen u skladu sa potrebama .

2. Rok ponovnog izvoza pošiljaka pomoći biće najmanje 12 mjeseci od datuma privremenog uvoza .

ANEKS C

O PREVOZNIM SREDSTVIMA

Glava I.

Definicije

Član 1.

U svrhu ovog Dodatka:

(a) »prevoznim sredstvom« smatra se:
svaki brod (uključujući tegljače i teretne brodove, bez obzira da li ih nosi brod ili ne, gliseri), letilice, motorna vozila (uključujući motocikle, prikolice, poluprikolice, i kombinacije vozila) i vozila koja se kreću po šinama; zajedno sa njihovim

normalnim rezervnim djelovima, dodacima i opremom ukrcanom na vozila (uključujući specijalnu opremu za utovar, istovar, rukovanje i zaštitu tereta) ;

(b) »komercijalnom upotrebom« smatra se:
prevoz lica uz naknadu ili industrijski ili komercijalni prevoz robe, uz ili bez naknade ;

(c) »privatnom upotrebom« smatra se:
prevoz isključivo u privatne svrhe dotičnog lica, koji isključuje komercijalnu upotrebu ;

(d) »unutrašnjim prometom« smatra se:
prevoz lica ili robe preuzete ili ukrcane na teritoriji privremenog ulaska radi smještaja ili istovara u mjestu iste teritorije;

(e) »normalnim rezervoarima« smatraju se:
rezervoari koje je proizvođač namijenio za sve vrste vozila istog tipa kojeg su i vozila u pitanju, a čije trajno priključenje omogućuje direktnu upotrebu goriva, i u svrhu pogona, i za rad, rashladnih i drugih sistema tokom prevoza. Rezervoari koji se priključuju na prevozna sredstva predviđena za direktnu upotrebu drugih vrsta goriva i cisterne koje odgovaraju drugim sistemima kojima prevozna sredstva mogu biti opremljena također će se smatrati normalnim rezervoarima .

Glava II.

Predmet

Član 2.

Privremeni uvoz biće prema ovoj Konvenciji odobren za sljedeće:

(a) prevozna sredstva za komercijalne ili privatne svrhe;

(b) rezervne djelove i opremu uvezenu radi popravke prevoznih sredstava kojima je već odobren privremeni ulazak. Zamijenjeni djelovi i oprema koja se ne izvozi ponovo podliježe uvoznoj carini i porezima osim kada se njima raspolaže kako je propisano u članu 14. ove Konvencije.

Član 3.

Rutinsko održavanje i popravke prevoznih sredstava koji su nužni tokom putovanja prema ili unutar teritorije privremenog uvoza i koji se obave u periodu odobrenog privremenog uvoza, neće se smatrati promjenom u smislu člana 1. stav (a) ove Konvencije .

Član 4.

1. Za gorivo koje se nalazi u normalnim rezervoarima prevoznih sredstava kojima je odobren privremeni uvoz, kao i za ulja za podmazivanje za redovnu upotrebu tih prevoznih sredstava neće se morati platiti uvozna carina niti porezi i ono ne podliježe primjeni uvoznih zabrana ili ograničenja .

2. U slučaju motornih vozila za komercijalnu upotrebu, svaka ugovorna strana ima, međutim, pravo da utvrdi maksimalne količine za gorivo koje se može unijeti na njenu teritoriju bez uvozne carine i poreza i bez primjene uvoznih zabrana ili ograničenja u normalnim cisternama prevoznih sredstava kojima je odobren privremeni uvoz .

Glava III.

Ostale odredbe

Član 5.

Za primjenu povlastica koje odobrava ovaj Aneks:

(a) prevozna sredstva za komercijalnu upotrebu moraju biti registrovana na teritoriji različitom od teritorije privremenog uvoza, na ime lica sa sjedištem ili prebivalištem na teritoriji van teritorije privremenog uvoza, a moraju ih uvesti ili koristiti lica koja rade na toj teritoriji;

(b) prevozna sredstva za privatnu upotrebu moraju biti registrovana na teritoriji različitom od teritorije privremenog uvoza, na ime lica sa sjedištem ili prebivalištem na teritoriji van teritorije privremenog uvoza, i moraju ih uvesti i koristiti lica koja žive na toj teritoriji .

Član 6.

Privremeni uvoz za prevozna sredstva biće odobren bez traženja carinskih dokumenata ili obezbjeđenja .

Član 7.

Bez obzira na propise u članu 5. ovog Aneksa:

(a) prevozna sredstva za komercijalnu upotrebu mogu koristiti treća lica, čak i kada borave ili su stalno nastanjena na teritoriji privremenog uvoza, a koja imaju punomoć od strane lica kojima je odobren privremeni uvoz i rade u njihovo ime;

(b) prevozna sredstva za privatnu upotrebu mogu koristiti treća lica kojima je data punomoć od strane lica kojima je odobren privremeni uvoz. Svaka ugovorna strana može dozvoliti korišćenje licu koje živi na njenoj teritoriji, posebno ako se prevozno sredstvo koristi u ime i prema uputima lica kojima je odobren privremeni uvoz .

Član 8.

Svaka ugovorna strana ima pravo odbiti povlastice privremenog uvoza ili povući te povlastice za :

(a) prevozna sredstva za komercijalnu upotrebu koja se koriste u unutrašnjem prometu ;

(b) prevozna sredstva za privatnu upotrebu koja se koriste u komercijalne svrhe u unutrašnjem prometu;

(c) prevozna sredstva koja su iznajmljena nakon uvoza ili, ako su uvezena za iznajmljivanje, pa su ponovo iznajmljena ili su data pod zakup u svrhu različitu od neposrednog ponovnog izvoza .

Član 9.

1. Prevozna sredstva za komercijalnu upotrebu biće ponovo izvezena onda kada prevozne operacije radi kojih su bila uvezena budu završene .

2. Prevozna sredstva za privatnu upotrebu mogu ostati na teritoriji privremenog uvoza u periodu, kontinuiranom ili ne, od šest mjeseci za svaki period od 12 mjeseci .

Član 10.

Svaka ugovorna strana, prema članu 29. ove Konvencije, može izjaviti rezerve s obzirom na:

(a) Član 2. stav (a), u dijelu koji se odnosi na privremeni uvoz putničkih motornih vozila i željezničkih šinskih vozila ;

(b) Član 6., u dijelu koji se odnosi na motorna vozila za komercijalnu upotrebu i prevozna sredstva za privatnu upotrebu ;

(c) Član 9. stav 2 ovog Aneksa .

Član 11.

Nakon stupanja na snagu ovaj Aneks će, u skladu sa članom 27. ove Konvencije, staviti van snage i zamijeniti Carinsku konvenciju o privremenom uvozu ličnih vozila, donesenu u Njujorku, 4. juna 1954. godine, Carinsku konvenciju o privremenom uvozu komercijalnih vozila, donesenu u Ženevi, 18. maja 1956. godine, i Carinsku konvenciju o privremenom uvozu za privatnu upotrebu letilica ili izletničkih plovila, donesenu u Ženevi, 18. maja 1956. godine, u odnosima između ugovornih strana koje prihvataju ovaj Aneks i jesu ugovorne strane prema ovoj Konvenciji .

ANEKS D

O ŽIVOTINJAMA

Glava I.

Definicije

Član 1.

U svrhe ovog Aneksa:

(a) termin »životinje« znači:
žive životinje bilo koje vrste ;

(b) termin »pogranično područje« znači:
područje carinske teritorije koja se graniči sa kopnenom granicom, a obim koji je određen nacionalnim zakonodavstvom i čije granice služe da bi se razdvojio pogranični promet od ostalog prometa ;

(c) termin »stanovnici pograničnog područja« znači:
lica sa sjedištem ili prebivalištem u pograničnom području ;

(d) termin »pogranični promet« znači: uvoz od strane stanovnika pograničnog područja između dvije susjedne pogranične zone.

Glava II.

Predmet

Član 2.

Za životinje koje se uvoze u svrhe specificirane u prilogu ovom Aneksu odobriće se privremeni uvoz u skladu sa članom 2. ove Konvencije .

Glava III.

Ostale odredbe

Član 3.

Da bi se primijenile olakšice koje odobrava ovaj Aneks:

(a) životinje moraju biti u posjedu lica sa sjedištem ili prebivalištem van teritorije privremenog uvoza ;

(b) tegleće životinje koje se koriste za rad na zemlji koja je na pograničnom području teritorije privremenog uvoza, moraju biti uvezene od strane stanovnika pograničnog područja koja se graniči sa pograničnim područjem privremenog izvoza .

Član 4.

1. Privremeni uvoz teglećih životinja na koje se odnosi Član 3. stav (b) ovog Aneksa, te životinje uvezene za tranzitnu ispašu ili ispašu na zemlji koja se nalazi unutar pograničnog područja odobriće se bez zahtjeva za carinskim dokumentom ili obezbjeđenjem.

2. Svaka ugovorna strana može uslovljavati odobrenje privremenog uvoza životinja na koje se odnosi stav 1. ovog člana, podnošenjem popisa robe zajedno sa izjavom o ponovnom izvozu .

Član 5.

1. Svaka ugovorna strana može izjaviti rezerve, u skladu sa članom 29. ove Konvencije, s obzirom na Član 4. stav 1 ovog Aneksa .

2. Svaka ugovorna strana takođe može izjaviti rezerve, u skladu sa članom 29. ove Konvencije, s obzirom na stavke 12. i 13. u prilogu ovog Aneksa .

Član 6.

Vremenski period za ponovni izvoz životinja je najmanje 12 mjeseci od datuma privremenog uvoza .

Član 7.

Prilog ovom Aneksu čini njegov sastavni dio.

PRILOG

Lista za Član 2.

1. Dresura

2. Trening

3. Uzgoj

4. Potkivanje i vaganje

5. Veterinarski tretman

6. Testiranje (npr. u pogledu prodaje)

7. Učestvovanje u priredbama, izložbama, takmičenjima ili demonstracijama

8. Zabava (cirkuske životinje, itd.)

9. Putovanje (uključujući i životinje - kućne ljubimce putnika)

10. Vježba ili operacija (policijski psi ili konji, detektorski psi, psi vodiči slijepih lica, itd.)

11. Operacija spašavanja

12. Nomadska (tranzitna) ispaša ili ispaša

13. Rad ili prevoz

14. Medicinske svrhe (dostava zmijskog otrova, itd.)

ANEKS E

O ROBI UVEZENOJ S DJELIMIČNIM OSLOBAĐANJEM OD UVOZNIH CARINA I POREZA

Glava I.

Definicije

Član 1.

U ovom Aneksu termin:

a) »roba uvezena s djelimičnim oslobađanjem« označava:
robu koja se spominje u drugim Aneksima ove Konvencije, no koja ne ispunjava ondje navedene uslove za odobrenje privremenog uvoza uz potpuno oslobađanje od uvoznih carina i poreza, te robu koja se ne spominje u drugim takvim Aneksima, a koja se uvozi za privremenu upotrebu na primjer u proizvodnji ili radnim projektima ;

b) »djelimično oslobađanje« označava:
oslobađanje od plaćanja dijela cjelokupnog iznosa uvoznih carina i poreza, koje bi se trebale platiti da je ta roba bila carinjena na datum kada je ušla u proceduru za privremeni uvoz.

Glava II.

Predmet

Član 2.

Za robu spomenutu u članu 1. stav (a) ovog Aneksa daje se odobrenje za privremeni uvoz s djelimičnim oslobađanjem u skladu sa članom 2. ove Konvencije .

Glava III.

Ostale odredbe

Član 3.

Da bi se olakšice po ovom Aneksu primjenjivale, roba uvezena uz djelimično oslobađanje, mora biti u vlasništvu lica sa sjedištem ili prebivalištem van teritorije privremenog uvoza .

Član 4.

Svaka ugovorna strana može sastaviti popis roba za koje vrijedi, ili za koje ne vrijedi, privremeni uvoz uz djelimično oslobađanje plaćanja.

Depozitar ove Konvencije biće obaviješten o sadržaju tog popisa .

Član 5.

Iznos uvoznih carina i poreza koje se naplaćuju po ovom postupku ne smije preći 5% iznosa uvoznih carina i poreza koje bi se naplatile da je roba ocarinjena na dan kada je roba prijavljena za privremeni uvoz, za svaki mjesec ili dio mjeseca tokom kojeg je roba prijavljena za privremeni uvoz uz djelimično oslobađanje plaćanja .

Član 6.

Iznos uvoznih carina i poreza koji se naplaćuje ni u kom slučaju ne smije preći iznos koji bi se naplatio da je roba carinjena na dan kada je prijavljena za privremeni uvoz .

Član 7.

1. Iznos uvoznih carina i poreza koji se moraju platiti po ovom Aneksu utvrdiće nadležno tijelo po završetku privremenog uvoza .

2. Ondje gdje se, u skladu sa članom 13. ove Konvencije, postupak privremenog uvoza završi carinjenjem, iznos bilo kakvih uvoznih carina i poreza koji je već bio naplaćen po djelimičnom oslobađanju odbiće se od iznosa uvoznih carina i poreza koje treba platiti pri carinjenju .

Član 8.

Vremenski period za ponovni izvoz roba koje su uvezene s djelimičnim oslobađanjem od plaćanja odrediće se uzimajući u obzir odredbe Člana 5. i 6. ovog Aneksa .

Član 9.

Svaka ugovorna strana može izjaviti rezerve, u skladu sa članom 29. ove Konvencije, a u pogledu člana 2. ovog Aneksa, u dijelu koji se odnosi na djelimično oslobađanje od poreza.

Član 3

Ovaj zakon stupa na snagu osmog dana od dana objavljivanja u "Službenom listu Crne Gore".